

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LOS ANGELES REGION**

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**ORDER R4-2020-0053
NPDES NO. CA0064670**

**WASTE DISCHARGE REQUIREMENTS
FOR THE LOS ANGELES COUNTY DEPARTMENT OF BEACHES AND HARBORS,
ROYAL PALMS PUBLIC RESTROOM
DISCHARGE TO THE PACIFIC OCEAN VIA THE JOINT WATER POLLUTION
CONTROL PLANT**

The following Discharger is subject to waste discharge requirements (WDRs) set forth in this Order:

Table 1. Discharger Information

Discharger	Los Angeles County Department of Beaches and Harbors (Discharger or Permittee)
Name of Facility	Royal Palms Public Restroom
Facility Address	2100 Paseo del Mar San Pedro, CA 90732 Los Angeles County

Table 2. Discharge Location

Discharge Point	Effluent Description	Discharge Point Latitude	Discharge Point Longitude	Receiving Water
001	Secondary treated wastewater	33.6892	-118.3167	Pacific Ocean
002	Secondary treated wastewater	33.7008	-118.3381	Pacific Ocean
003	Secondary treated wastewater	33.7008	-118.3300	Pacific Ocean
004	Secondary treated wastewater	33.7061	-118.3283	Pacific Ocean

Table 3. Administrative Information

This Order was adopted on:	April 16, 2020
This Order shall become effective on:	June 01, 2020
This Order shall expire on:	May 31, 2025
The Discharger shall file a Report of Waste Discharge as an application for reissuance of WDRs in accordance with title 23, California Code of Regulations, and an application for reissuance of a National Pollutant Discharge Elimination System (NPDES) permit no later than:	180 days prior to the Order expiration date
The U.S. Environmental Protection Agency (USEPA) and the California Regional Water Quality Control Board, Los Angeles Region, have classified this discharge as follows:	Minor

I, Renee Purdy, Executive Officer, do hereby certify that this Order with all attachments is a full, true, and correct copy of the Order adopted by the California Regional Water Quality Control Board, Los Angeles Region, on **April 16, 2020**.

R. Purdy

Digitally signed by R. Purdy
Date: 2020.04.23 12:30:10
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Renee Purdy, Executive Officer

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I. FACILITY INFORMATION

Information describing the Royal Palms Public Restroom (Facility) is summarized in Table 1 and in sections I and II of the Fact Sheet (Attachment F). Section I of the Fact Sheet also includes information regarding the Facility's permit application.

II. FINDINGS

The California Regional Water Quality Control Board, Los Angeles Region (Regional Water Board), finds:

- A. Legal Authorities.** This Order serves as waste discharge requirements (WDRs) pursuant to article 4, chapter 4, division 7 of the California Water Code (CWC) (commencing with section 13260). This Order is also issued pursuant to section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the USEPA and chapter 5.5, division 7 of the Water Code (commencing with section 13370). It serves as a National Pollutant Discharge Elimination System (NPDES) permit authorizing the Discharger to discharge into waters of the United States at the discharge location described in Table 2 subject to the WDRs in this Order.
- B. Background and Rationale for Requirements.** The Regional Water Board developed the requirements in this Order based on information submitted as part of the application, and other available information. The Fact Sheet (Attachment F), which contains background information and rationale for the requirements in this Order, is hereby incorporated into and constitutes Findings for this Order. Attachments A through E are also incorporated into this Order.
- C. Provisions and Requirements Implementing State Law.** The provisions/requirements in subsections IV.B, IV.C, and V.B are included to implement state law only.
- D. Notification of Interested Parties.** The Regional Water Board has notified the Discharger and interested agencies and persons of its intent to prescribe WDRs for the discharge and has provided them with an opportunity to submit their written comments and recommendations. Details of the notification are provided in the Fact Sheet.
- E. Consideration of Public Comment.** The Regional Water Board, in a public meeting, heard and considered all comments pertaining to the discharge. Details of the Public Hearing are provided in the Fact Sheet.

THEREFORE, IT IS HEREBY ORDERED, that in order to meet the provisions contained in division 7 of the CWC (commencing with section 13000) and regulations adopted thereunder and the provisions of the CWA and regulations and guidelines adopted thereunder, the Discharger is authorized to discharge from the identified facility and outfalls into waters of the United States and shall comply with the requirements in this Order.

III. DISCHARGE PROHIBITIONS

- A.** Discharge of treated wastewater at a location different from that described in this Order is prohibited.

- B. Wastes discharged into the wastewater treatment and disposal system shall be limited to sanitary wastewater from the restroom only, no industrial wastes or wastes from recreational vehicles shall be discharged.
- C. The discharge of any radiological, chemical, or biological warfare agent or high-level radioactive waste into the ocean is prohibited.
- D. Discharge to designated Areas of Special Biological Significance is prohibited.
- E. Pipeline discharge of sludge to the ocean is prohibited by federal law. The discharge of municipal and industrial waste sludge directly to the ocean, or into a waste stream that discharges to the ocean is prohibited by the California Ocean Plan. The discharge of sludge digester supernatant directly to the ocean, or to a waste stream that discharges to the ocean without further treatment, is prohibited.
- F. The treatment, use, and disposal of sewage sludge shall be carried out in the manner found to have the least adverse impact on the total natural and human environment.
- G. The bypass of untreated wastes containing concentrations of pollutants in excess of those of Table 3 or Table 4 of the Ocean Plan to the ocean is prohibited.
- H. The bypass or overflow of untreated wastewater or wastes to surface waters or surface water drainage courses is prohibited, except as allowed in Standard Provision I.G. of Attachment D, Standard Provisions.
- I. The discharge of trash to surface waters of the State or the deposition of trash where it may be discharged into surface waters of the State is prohibited.
- J. Odors of sewage origin shall not be detectable.

IV. EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

A. Effluent Limitations– Discharge Point 001, 002, 003 and 004

Effluent limitations for Discharge Points 001, 002, 003, and 004 are specified below. The discharge of treated wastewater with constituents in excess of the effluent limitations is prohibited.

1. Final Effluent Limitations – Discharge Points 001, 002, 003, and 004

- a. The Discharger shall maintain compliance with the following effluent limitations at Discharge Points 001, 002, 003, and 004 with compliance measured at Monitoring Location EFF-001 as described in the Monitoring and Reporting Program, Attachment E.

Table 4. Final Effluent Limitations^{1,2}

Parameter	Units	Average Monthly	Average Weekly	Instantaneous Minimum	Instantaneous Maximum
Biochemical Oxygen Demand 5-day @ 20°C (BOD)	mg/L	30	45	---	---
BOD 5-day @ 20°C	lbs/day ²	0.13	0.19	---	---
Total Suspended Solids (TSS)	mg/L	30	45	---	---
TSS	lbs/day	0.13	0.19	---	---
Removal efficiency for TSS	%	85	---	---	---
Removal efficiency for BOD	%	85	---	---	---
pH	Standard Units	---	---	6.0	9.0
Oil and Grease	mg/L	25	40	---	75
	lbs/day	0.10	0.17	---	0.31
Settleable Solids	mL/L	1.0	1.5	---	3.0
Turbidity	NTU	75	100	---	225

- b. Bacteria: The permittee shall ensure that bacterial concentrations in the effluent do not result in an exceedance of the single sample numeric limits or geometric mean limits (based on Basin Plan bacteria objectives for marine waters designated REC-1, see Section V.A.1.b and Santa Monica Bay Bacteria TMDL) at shoreline compliance points, as specified in the Basin Plan, Chapter 7, section 7-4 “Santa Monica Bay Beaches Bacteria TMDL.”
- c. Temperature: Elevated temperature wastes shall be discharged to the open ocean away from the shoreline to achieve dispersion through the vertical water column.
- d. DDTs and PCBs: The permittee shall ensure that effluent from the Facility to the outfalls of the Joint Water Pollution Control Plant (JWPCP) shall not cause an exceedance of the JWPCP’s Waste Load Allocations (WLAs) of 15.8 ng/l DDT or 0.351 ng/l PCBs or 8,717 g/yr DDT or 194 g/yr PCBs (Table 6-2, *Santa Monica Bay Total Maximum Daily Loads for DDTs and PCBs*).

¹ The instantaneous maximum effluent limitations shall apply to grab samples.

² The mass emission rates are calculated using 0.0005 MGD, consistent with the existing facility design discharge flow rate: lbs/day = 0.00834 x Ce (effluent concentration in µg/L) x Q (flow rate in MGD).

- e. Waste discharged to the ocean must be essentially free of:
 - i. Material that is floatable or will become floatable upon discharge.
 - ii. Settleable material or substances that may form sediments which will degrade benthic communities or other aquatic life.
 - iii. Substances that will accumulate to toxic levels in marine waters, sediments or biota.
 - iv. Substances that significantly decrease the natural light to benthic communities and other marine life.
 - v. Materials that result in aesthetically undesirable discoloration of the ocean surface.

2. Interim Effluent Limitations – Not Applicable

B. Land Discharge Specifications –Not Applicable

C. Recycling Specifications – Not Applicable

V. RECEIVING WATER LIMITATIONS

The Discharger shall not cause a violation of the following water quality objectives. Compliance with these water quality objectives shall be determined by samples collected at stations outside the zone of initial dilution as specified in the Monitoring and Reporting Program (MRP) and identified in the Joint Water Pollution Control Plant (JWPCP) Order No. R4-2017-0180 or subsequent Order.

A. Surface Water Limitations

1. Bacterial Characteristics

a. State/Regional Water Board Contact Standards

Within a zone bounded by the shoreline and a distance of 1,000 feet from the shoreline or the 30-foot depth contour, whichever is further from the shoreline, and in areas outside this zone used for water contact sports, as determined by the Regional Water Board (i.e., waters designated as REC-1), but including all kelp beds, the following bacterial objectives shall be maintained throughout the water column.

- i. Rolling 30-day Geometric Mean Limits
 - (a) Total coliform density shall not exceed 1,000/100 mL
 - (b) Fecal coliform density shall not exceed 200/100 mL
 - (c) *Enterococcus* density shall not exceed 35/100 mL
- ii. Single Sample Maximum Limits (SSM)
 - (a) Total coliform density shall not exceed 10,000/100 mL
 - (b) Fecal coliform density shall not exceed 400/100 mL
 - (c) *Enterococcus* density shall not exceed 104/100 mL

- (d) Total coliform density shall not exceed 1,000/100 mL, if the ratio of fecal-to-total coliform exceeds 0.1

The geometric mean values should be calculated based on a statistically sufficient number of samples (generally not less than 5 samples equally spaced over a 30-day period). If any of the single sample limits are exceeded, the Regional Water Board may require daily repeat sampling until the sample falls below the single sample limit to determine the persistence of the exceedance. When repeat sampling is required because of an exceedance of any one single sample limit, values from all samples collected during that 30-day period will be used to calculate the geometric mean.

- b. The Initial Dilution Zone of wastewater outfalls shall be excluded from designation as kelp beds for purposes of bacterial standards. Adventitious assemblages of kelp on waste discharge structures (e.g., outfall pipes and multiport diffusers) do not constitute kelp beds for the purposes of bacterial standards.

- c. Shellfish Harvesting Standards

At all areas where shellfish may be harvested for human consumption, as determined by the Regional Water Board, the following bacterial objectives shall be maintained throughout the water column: The median total coliform density shall not exceed 70 per 100 mL, and not more than 10 percent of the samples shall exceed 230 per 100 mL.

2. Physical Characteristics

The waste discharged shall not:

- a. result in increases in the natural water temperature exceeding 4°F at (a) the shoreline, (b) the surface of any ocean substrate, or (c) the ocean surface beyond 1,000 feet from the discharge system. The surface temperature limitation shall be maintained at least 50 percent of the duration of any complete tidal cycle.
- b. cause floating particulates and oil and grease to be visible;
- c. cause aesthetically undesirable discoloration on the ocean surface;
- d. significantly reduce the transmittance of natural light at any point outside the initial dilution zone;
- e. change the rate of deposition of inert solids and the characteristics of inert solids in ocean sediments such that benthic communities are degraded; and
- f. cause trash to be present in ocean waters, along shorelines or adjacent areas in amounts that adversely affect beneficial uses or cause nuisance.

3. Chemical Characteristics

The waste discharged shall not:

- a. cause the dissolved oxygen concentration at any time to be depressed more than 10 percent from that which occurs naturally, as a result of the discharge of oxygen demanding waste;
- b. change the pH of the receiving waters at any time more than 0.2 units from that which occurs naturally;
- c. cause the dissolved sulfide concentration of waters in and near sediments to be significantly increased above that present under natural conditions;
- d. cause concentration of substances (as set forth in Chapter II, Table 3 of the Ocean Plan) in marine sediments to be increased to levels that would degrade indigenous biota;
- e. cause the concentration of organic materials in marine sediments to be increased to levels that would degrade marine life;
- f. contain nutrients at levels that will cause objectionable aquatic growths or degrade indigenous biota;
- g. produce concentrations of substances in the receiving water that are toxic to or cause detrimental physiological responses in human, animal, or aquatic life;
- h. contain individual pesticides or combinations of pesticides in concentrations that adversely affect beneficial uses; and
- i. cause the numeric water quality objectives established in the Ocean Plan to be exceeded outside the zone of initial dilution.

4. Biological Characteristics

The waste discharged shall not:

- a. degrade marine communities, including vertebrate, invertebrate, and plant species;
- b. alter the natural taste, odor, and color of fish, shellfish, or other marine resources used for human consumption;
- c. cause the concentration of organic materials in fish, shellfish or other marine resources used for human consumption to bioaccumulate to levels that are harmful to human health; and
- d. contain substances that result in biochemical oxygen demand that adversely affects the beneficial uses of the receiving water.

5. Radioactivity

Discharge of radioactive waste shall not degrade marine life.

B. Groundwater Limitations – Not Applicable

VI. PROVISIONS

A. Standard Provisions

1. The Discharger shall comply with all Standard Provisions included in Attachment D.
2. **Regional Water Board Standard Provisions.** The Discharger shall comply with the following provisions. In the event that there is any conflict, duplication, or overlap between provisions specified by this Order, the more stringent provision shall apply:
 - a. Neither the treatment nor the discharge of pollutants shall create a pollution, contamination, or nuisance as defined by section 13050 of the CWC.
 - b. Odors, vectors, and other nuisances of sewage or sludge origin beyond the limits of the treatment plant site or the sewage collection system due to improper operation of facilities, as determined by the Regional Water Board, are prohibited.
 - c. All facilities used for collection, transport, treatment, or disposal of wastes shall be adequately protected against damage resulting from overflow, washout, or inundation from a storm or flood having a recurrence interval of once in 100 years.
 - d. Collection, treatment, and disposal systems shall be operated in a manner that precludes public contact with wastewater.
 - e. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed of in a manner approved by the Executive Officer of the Regional Water Board.
 - f. The provisions of this Order are severable. If any provision of this Order or the application of any provision of this Order is found invalid, the remainder of this Order shall not be affected.
 - g. Nothing in this Order shall be construed to preclude the institution of any legal action or relieve the Discharger from any responsibilities, liabilities or penalties established pursuant to any applicable state law or regulation under authority preserved by section 311 of the CWA, related to oil and hazardous substances liability.
 - h. The Discharger shall comply with all applicable effluent limitations, national standards of performance, toxic effluent standards, and all federal regulations established pursuant to sections 301, 302, 303(d), 304, 306, 307, 316, 403, and 405 of the federal CWA and amendments thereto.
 - i. These requirements do not exempt the operator of the waste disposal facility from compliance with any other laws, regulations, or ordinances which may be applicable; they do not legalize this waste disposal facility; and they leave unaffected any further restraints on the disposal of wastes at this site, which may be contained in other statutes or required by other agencies.

- j. The Facility shall be protected to reduce infrastructure vulnerability to current and future impacts resulting from climate change, including but not limited to extreme wet weather events, flooding, storm surges, and projected sea level rise when the facility is located near the ocean or discharges to the ocean.
- k. Oil or oily material, chemicals, refuse, or other polluting materials shall not be stored or deposited in areas where they may be picked up by rainfall and carried off the property and/or discharged to surface waters. Any such spill of such materials shall be contained and removed immediately.
- l. A copy of these waste discharge specifications shall be maintained at the discharge Facility and be available at all times to operating personnel.
- m. If there is any storage of hazardous or toxic materials or hydrocarbons at this Facility and if the Facility is not staffed at all times, a 24-hour emergency response telephone number shall be prominently posted where it can easily be read from the outside.
- n. The Discharger shall file with the Regional Water Board a Report of Waste Discharge at least 120 days before making any proposed change in the character, location or volume of the discharge.
- o. In the event of any change in name, ownership, or control of these waste disposal facilities, the Discharger shall notify the Regional Water Board of such change and shall notify the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be forwarded to the Regional Water Board, 30 days prior to taking effect.
- p. The discharge of any waste resulting from the combustion of toxic or hazardous wastes to any waste stream that ultimately discharges to waters of the United States is prohibited, unless specifically authorized elsewhere in this Order.
- q. The Discharger shall notify the Executive Officer in writing no later than 6 months prior to planned discharge of any chemical, other than the products previously reported to the Executive Officer, which may be toxic to aquatic life. Such notification shall include:
 - i. Name and general composition of the chemical,
 - ii. Frequency of use,
 - iii. Quantities to be used,
 - iv. Proposed discharge concentrations, and
 - v. USEPA registration number, if applicable.
- r. Failure to comply with provisions or requirements of this Order, or violation of other applicable laws or regulations governing discharges from this facility, may subject the Discharger to administrative or civil liabilities, criminal penalties, and/or other enforcement remedies to ensure compliance. Additionally, certain violations may subject the Discharger to civil or criminal enforcement from appropriate local, state, or federal law enforcement entities.

- s. CWC section 13385(h)(i) requires the Regional Water Board to assess a mandatory minimum penalty of three thousand dollars (\$3,000) for each serious violation. Pursuant to CWC section 13385(h)(2), a “serious violation” is defined as any waste discharge that violates the effluent limitations contained in the applicable waste discharge requirements for a Group II pollutant by 20 percent or more, or for a Group I pollutant by 40 percent or more. Appendix A of Title 40 of the Code of Federal Regulations (40 CFR) § 123.45 specifies the Group I and II pollutants. Pursuant to CWC section 13385.1(a)(1), a “serious violation” is also defined as “a failure to file a discharge monitoring report required pursuant to section 13383 for each complete period of 30 days following the deadline for submitting the report, if the report is designed to ensure compliance with limitations contained in waste discharge requirements that contain effluent limitations.”
- t. CWC section 13385(i) also requires the Regional Water Board to assess a mandatory minimum penalty of three thousand dollars (\$3,000) for each violation whenever a person violates a waste discharge requirement effluent limitation in any period of six consecutive months, except that the requirement to assess the mandatory minimum penalty shall not be applicable to the first three non-serious violations within that time period.
- u. Pursuant to CWC section 13385.1(d), for the purposes of section 13385.1 and subdivisions (h), (i), and (j) of section 13385, “effluent limitation” means a numeric restriction or a numerically expressed narrative restriction, on the quantity, discharge rate, concentration, or toxicity units of a pollutant or pollutants that may be discharged from an authorized location. An effluent limitation may be final or interim and may be expressed as a prohibition. An effluent limitation, for these purposes, does not include a receiving water limitation, a compliance schedule, or a best management practice.
- v. CWC section 13387 provides that any person who knowingly makes any false statement, representation, or certification in any record or other document submitted or required to be maintained under this Order, including monitoring reports or reports of compliance or noncompliance, or who knowingly falsifies, tampers with, or renders inaccurate any monitoring device or method required to be maintained in this Order is subject to a fine of not more than \$25,000 or imprisonment of not more than two years, or both. For a second conviction, such a person shall be punished by a fine of not more than \$25,000 per day of violation, or by imprisonment of not more than four years, or by both.
- w. In the event the Discharger does not comply or will be unable to comply for any reason, with any prohibition, effluent limitation, or receiving water limitation of this Order that may endanger health or the environment, the Discharger shall notify the Chief of the Watershed Regulatory Section at the Regional Water Board by telephone at (213) 620-2083, or by fax at (213) 576-6660, within 24 hours of having knowledge of such noncompliance, and shall confirm this notification in writing to the Regional Water Board within five days, unless the Regional Water Board waives confirmation. The written notification shall state the nature, time, duration, and cause of

noncompliance, and shall describe the measures being taken to remedy the current noncompliance and prevent recurrence including, where applicable, a schedule of implementation. The written notification shall also be submitted via email with reference to CI-10512 to losangeles@waterboards.ca.gov. The Discharger shall also notify the Sanitation Districts of Los Angeles County within 24 hours of having knowledge of such noncompliance by telephone at (562) 908-4288. Other noncompliance requires written notification as above at the time of the normal monitoring report.

B. Monitoring and Reporting Program (MRP) Requirements

The Discharger shall comply with the MRP, and future revisions thereto, in Attachment E.

C. Special Provisions

1. Reopener Provisions

- a. This Order may be reopened and modified to include an effluent limitation based on future reasonable potential analysis conducted using monitoring data collected by the Discharger and evaluated by the Regional Water Board.
- b. This Order may be reopened and modified, in accordance with the provisions set forth in 40 CFR § 122 and 124, to incorporate requirements for the implementation of the watershed protection management approach.
- c. This Order may be modified, in accordance with the provisions set forth in 40 CFR § 122 to 124, to include new minimum levels (MLs).
- d. This Order may be reopened and modified to revise effluent limitations as a result of future additions or amendments to a statewide water quality control plan or the Los Angeles Region's Basin Plan or the adoption or revision of a Total Maximum Daily Load (TMDL).
- e. The Regional Water Board may modify or revoke and reissue this Order if present or future investigations demonstrate that the discharge(s) governed by this Order will cause, have the potential to cause, or will contribute to adverse impacts on water quality and/or beneficial uses of the receiving waters.
- f. This Order may be modified, revoked, and reissued or terminated in accordance with the provisions of 40 CFR § 122.44, 122.62 to 122.64, 125.62, and 125.64. Causes for taking such actions include, but are not limited to, failure to comply with any condition of this Order, endangerment to human health or the environment resulting from the permitted activity, or acquisition of newly obtained information which would have justified the application of different conditions if known at the time of Order adoption and issuance. The filing of a request by the Discharger for an Order modification, revocation, and issuance or termination, or a notification of planned changes or anticipated noncompliance does not stay any condition of this Order.
- g. This Order may be reopened and modified to incorporate conforming monitoring requirements and schedule dates for implementation of the

Comprehensive Monitoring Program for Santa Monica Bay (Santa Monica Bay Restoration Commission, January 2007).

- h. This Order may be modified, revoked and reissued, or terminated for cause, including, but not limited to:
 - i. Violation of any term or condition contained in this Order;
 - j. Obtaining this Order by misrepresentation, or by failure to disclose fully all relevant facts; or
 - k. A change in any condition that requires either a temporary or permanent reduction or elimination of the authorized discharge.
 - l. If an applicable toxic effluent standard or prohibition (including any schedule of compliance specified in such effluent standard or prohibition) is promulgated under section 307(a) of the CWA for a toxic pollutant and that standard or prohibition is more stringent than any limitation on the pollutant in this Order, the Regional Water Board may institute proceedings under these regulations to modify or revoke and reissue the Order to conform to the toxic effluent standard or prohibition.
 - m. If more stringent applicable water quality standards are promulgated or approved pursuant to section 303 of the CWA, or amendments, thereto, the Regional Water Board may revise and modify this Order in accordance with such standards.
 - n. This Order may be reopened and modified, to revise effluent limitations as a result of the delisting of a pollutant from the 303(d) list.
 - o. This Order may be reopened and modified to the extent necessary, to be consistent with new policies, a new state-wide plan, new laws, or new regulations.

2. Special Studies, Technical Reports and Additional Monitoring Requirements

a. Treatment Plant Capacity

The Discharger shall submit a written report to the Executive Officer of the Regional Water Board within 90 days after the "30-day (monthly) average" daily dry-weather flow equals or exceeds 75 percent of the design capacity of waste treatment and/or disposal facilities. The Discharger's senior administrative officer shall sign a letter, which transmits that report and certifies that the discharger's policy-making body is adequately informed of the report's contents. The report shall include the following:

- i. The average daily flow for the calendar month, the date on which the peak flow occurred, the rate of that peak flow, and the total flow for the day;
- ii. The Discharger's best estimate of when the monthly average daily dry-weather flow rate will equal or exceed the design capacity of the POTW; and

- iii. A schedule for studies, design, and other steps needed to provide additional capacity for waste treatment and/or disposal facilities before the waste flow rate equals the capacity of present units.

This requirement is applicable to those facilities that have not reached 75 percent of capacity as of the effective date of this Order. For those facilities that have reached 75 percent of capacity by that date but for which no such report has been previously submitted, such report shall be filed within 90 days of the issuance of this Order.

3. Best Management Practices and Pollution Prevention

a. Storm Water Pollution Prevention Plan (SWPPP) – NOT APPLICABLE

b. Spill Clean-up Contingency Plan (SCCP)

Within 90 days of the effective date of this Order, the Discharger is required to submit a SCCP. The SCCP shall describe the activities and protocols to address clean-up of spills, overflows, and bypasses of untreated wastewater from the Discharger's collection system or treatment facilities that reach water bodies including dry channels and beach sands. At a minimum, the plan shall describe compliance with section VI.C.6. of this Order and include sections on spill clean-up and containment measures, public notifications, and monitoring. The Discharger shall review and amend the plan as appropriate after each spill from the Facility or in the service area of the Facility. The Discharger shall include a discussion in the annual summary report of any modifications to the plan and the application of the plan to all spills during the year.

4. Construction, Operation and Maintenance Specifications

- a. Certified Wastewater Treatment Plant Operator:** Wastewater treatment facilities subject to this Order shall be supervised and operated by persons possessing certificates of appropriate grade pursuant to CCR, title 23, division 3, chapter 26 (CWC sections 13625 – 13633).
- b. Climate Change Effects Vulnerability Assessment and Mitigation Plan:** The Discharger shall consider the impacts of climate change as they affect the operation of the treatment facility due to flooding, wildfire, sea level rise, or other climate-related changes. The Permittee shall develop a Climate Change Effects Vulnerability Assessment and Mitigation Plan (Climate Change Plan) to assess and manage climate change-related effects that may impact the wastewater treatment facility's operation, water supplies, its collection system, and water quality, including any projected changes to the influent water temperature and pollutant concentrations, and beneficial uses. For facilities that discharge to the ocean including desalination plants, the Climate Change Plan shall also include the impacts from sea level rise. The Climate Change Plan is due 12 months after adoption of this Order.
- c. Alternate Power Source:** The Discharger shall maintain in good working order a sufficient alternate power source if operation is necessary to achieve compliance with the conditions of the permit. All equipment shall be located to

minimize failure due to moisture, liquid spray, flooding, wildfires, and other physical phenomena. If necessary, the alternate power source shall be designed to allow inspection and maintenance and shall provide for periodic testing. If an alternate power source is not in existence, the Discharger shall halt, reduce, or otherwise control all discharges upon the reduction, loss, or failure of the primary source of power. The Discharger shall provide standby or emergency power facilities and/or storage capacity or other means so that in the event of plant upset or outage due to power failure or other cause, discharge of raw or inadequately treated sewage does not occur.

- d. Operation and Maintenance Manual:** The Discharger shall develop as necessary, the "Operation and Maintenance Manual (O&M Manual)" for the treatment facility. The O&M Manual shall be readily available to operating personnel onsite. The O&M Manual shall include the following:
- i. Description of the treatment facility personnel organization and listing of emergency contacts.
 - ii. Detailed description of safe and effective operation and maintenance of treatment processes, process control instrumentation and equipment.
 - iii. Process and equipment inspection and maintenance schedules.
 - iv. Description of safeguards to ensure that, should there be reduction, loss, or failure of electric power, the Discharger will be able to comply with requirements of this Order.
 - v. Reference to the most current SCCP.

5. Special Provisions for Publicly Owned Treatment Works (POTWs)

a. Biosolids Disposal Requirements

- i. All biosolids generated at the wastewater treatment plant must be disposed of, treated, or applied to land in accordance with federal regulations contained in 40 CFR § 503. These requirements are enforceable by USEPA.
- ii. The Discharger is separately required to comply with the requirements in State Water Board Order No. 2004-0012-DWQ, General Waste Discharge Requirements for the Discharge of Biosolids to Land for Use as a Soil Amendment in Agricultural, Silvicultural, Horticultural and Land Reclamation Activities, for those sites receiving the Discharger's biosolids which a Regional Water Board has placed under this general order, and with the requirements in individual WDRs issued by a Regional Water Board for sites receiving the Discharger's biosolids.

b. Collection System Requirements

The Discharger's collection system is part of the system that is subject to this Order. As such, the Discharger must properly operate and maintain its collection system (40 CFR part 122.41(e)), report any noncompliance (40 CFR parts 122.41(l)(6) and (7)), and mitigate any discharge from the collection system in violation of the permit (40 CFR 122.41(d)). See

attachment D, subsections I.C, I.D, V.E, and V.H, and the following section (Spill Reporting Requirements) of this Order.

6. Spill Reporting Requirements for POTWs

a. Initial Notification

Although State and Regional Water Board staff do not have duties as first responders, this requirement is an appropriate mechanism to ensure that the agencies that do have first responder duties are notified in a timely manner to protect public health and beneficial uses. For certain spills, overflows and bypasses, the Discharger shall make notifications as required below:

- i. In accordance with the requirements of Health and Safety Code section 5411.5, the Discharger shall provide notification to the local health officer or the director of environmental health with jurisdiction over the affected water body of any unauthorized release of sewage or other waste that causes, or probably will cause, a discharge to any waters of the state as soon as possible, but no later than **two hours** after becoming aware of the release.
- ii. In accordance with the requirements of CWC section 13271, the Discharger shall provide notification to the California Office of Emergency Services (Cal OES) of the release of reportable amounts of hazardous substances or sewage that causes, or probably will cause, a discharge to any waters of the state as soon as possible, but not later than two hours after becoming aware of the release. The CCR, Title 23, section 2250, defines a reportable amount of sewage as being 1,000 gallons. The phone number for reporting these releases to the Cal OES is (800) 852-7550.
- iii. The Discharger shall notify the Regional Water Board of any unauthorized release of sewage from its POTW that causes, or probably will cause, a discharge to a water of the state as soon as possible, but not later than **two hours** after becoming aware of the release. This initial notification does not need to be made if the Discharger has notified Cal OES and the local health officer or the director of environmental health with jurisdiction over the affected water body. The phone number for reporting these releases of sewage to the Regional Water Board is (213) 576-6657. The phone numbers for after hours and weekend reporting of releases of sewage to the Regional Water Board are (213) 305-2284 and (213) 305-2253.

At a minimum, the following information shall be provided to the Regional Water Board:

- (a) The location, date, and time of the release;
- (b) The route of the spill including the water body that received or will receive the discharge;

- (c) An estimate of the amount of sewage or other waste released and the amount that reached a surface water at the time of notification;
- (d) If ongoing, the estimated flow rate of the release at the time of the notification; and,
- (e) The name, organization, phone number and email address of the reporting representative.
- (f) A certification that the State Office of Emergency Services and the local health officers or directors of environmental health with jurisdiction over the affected water bodies have been notified of the discharge.

b. Monitoring

For spills, overflows and bypasses reported under section VI.C.6.a, the Discharger shall monitor as required below:

To define the geographical extent of the spill's impact, the Discharger shall obtain grab samples from the receiving water for all spills, overflows or bypasses of any volume that reach any waters of the state (including surface and ground waters). If a grab sample cannot be obtained due to accessibility or safety concerns, the sample shall be obtained as soon as it becomes safe to do so. The Discharger shall analyze the samples for total coliform, fecal coliform, *E. coli* (if fecal coliform tests positive), *Enterococcus*, and relevant pollutants of concern, upstream and downstream of the point of entry of the spill (if feasible, accessible, and safe). This monitoring shall be conducted daily from the time the spill is known until the results of two consecutive sets of bacteriological monitoring indicate the return to the background level or the County Department of Public Health authorizes cessation of monitoring.

c. Reporting

The initial notification required under section VI.C.6.a shall be followed by:

- i. As soon as possible, but **not later than twenty-four (24) hours** after becoming aware of an unauthorized discharge of sewage or other waste from its wastewater treatment plant to a water of the state, the Discharger shall submit a statement to the Regional Water Board by email at augustine.anijelo@waterboards.ca.gov. If the discharge is 1,000 gallons or more, this statement shall certify that Cal OES has been notified of the discharge in accordance with CWC section 13271. The statement shall also certify that the local health officer or director of environmental health with jurisdiction over the affected water bodies has been notified of the discharge in accordance with Health and Safety Code section 5411.5. The statement shall also include at a minimum the following information:
 - (a) Agency, NPDES No., Order No., and MRP CI No., if applicable;
 - (b) The location, date, and time of the discharge;
 - (c) The water body that received the discharge;

- (d) A description of the level of treatment of the sewage or other waste discharged;
 - (e) An initial estimate of the amount of sewage or other waste released and the amount that reached a surface water;
 - (f) The Cal OES control number and the date and time that notification of the incident was provided to Cal OES; and,
 - (g) The name of the local health officer or director of environmental health representative notified (if contacted directly); the date and time of notification; and the method of notification (e.g., phone, fax, email).
- ii. A written preliminary report five (5) working days after disclosure of the incident is required. Submission to the Water Board's California Integrated Water Quality System (CIWQS) as evidenced by a Sanitary Sewer Overflow (SSO) event number shall satisfy this requirement. Within 30 days after submitting the preliminary report, the Discharger shall submit the final written report to this Regional Water Board. The written report shall document the information required in paragraph "d." below, monitoring results and any other information required in provisions of the Standard Provisions document including corrective measures implemented or proposed to be implemented to prevent/minimize future occurrences. The Executive Officer may grant an extension for submittal of the final written report for just cause.
 - iii. The Discharger shall include a certification in the annual summary report (due according to the schedule in the MRP) that states that the sewer system emergency equipment, including alarm systems, backup pumps, standby power generators, and other critical emergency pump station components were maintained and tested in accordance with the Discharger's preventive maintenance plan. Any deviations from or modifications to the plan shall be discussed.

d. Records

The Discharger shall develop and maintain a record of all spills, overflows or bypasses of raw or partially treated sewage from its collection system or treatment plant. This record shall be made available to the Regional Water Board upon request and a spill summary shall be included in the annual summary report. The records shall contain:

- i. The date and time of each spill, overflow, or bypass;
- ii. The location of each spill, overflow, or bypass;
- iii. The estimated volume of each spill, overflow, and bypass including gross volume, amount recovered and amount not recovered, monitoring results as required by section VI.C.6.b;
- iv. The cause of each spill, overflow, or bypass;

- v. Whether each spill, overflow, or bypass entered a receiving water and, if so, the name of the water body and whether it entered via storm drains or other man-made conveyances;
- vi. Any mitigation measures implemented;
- vii. Any corrective measures implemented or proposed to be implemented to prevent/minimize future occurrences; and,
- viii. The mandatory information included in SSO online reporting for finalizing and certifying the SSO report for each spill, overflow, or bypass under the SSO WDR.

e. Activities Coordination

Although not required by this Order, the Regional Water Board expects that the POTW's owners/operators will coordinate their compliance activities for consistency and efficiency with other entities that have responsibilities to implement: (i) this NPDES permit, (ii) an MS4 NPDES permit that may contain spill prevention, sewer maintenance, reporting requirements, and (iii) any other order issued to the POTW regulating the discharge of waste to waters of the United States and waters of the state.

f. Consistency with the Sanitary Sewer Overflow (SSO) WDRs

- i. The CWA prohibits the discharge of pollutants from point sources to surface waters of the United States unless authorized under an NPDES permit. (33 United States Code sections 1311, 1342). Any public agencies that own or operate sanitary sewer systems with greater than one mile of sewer lines must enroll for coverage of the State Water Board Order No. 2006-0003-DWQ, Statewide General Waste Discharge Requirements for Sanitary Sewer Systems, (SSO WDR) as amended by State Water Board Order No. WQ 2013-0058-exec. Since the Discharger has less than one mile of sewer lines (from the restroom to the discharge point is 230 feet), the Discharger is not required to enroll for coverage of the SSO WDR. However, the Discharger's collection system is part of the POTW that is subject to this permit. As such, pursuant to federal regulations, the Discharger must properly operate and maintain its collection system (40 CFR §122.41(e)), report any non-compliance (40 CFR § 122.41(l)(6) and (7)), and mitigate any discharge from the collection system in violation of this NPDES permit (40 CFR§ 122.41(d
- ii. The requirements contained in this Order in sections VI.C.3.b (SCCP), VI.C.4 (Construction, Operation and Maintenance Specifications), and VI.C.7 (Spill Reporting Requirements) are intended to be consistent with the requirements of the SSO WDR.

7. Other Special Provisions – Not Applicable

8. Compliance Schedules – Not Applicable

VII. COMPLIANCE DETERMINATION

Compliance with the effluent limitations contained in section IV of this Order will be determined as specified below:

A. General

Compliance with effluent limitations for priority pollutants shall be determined using sample reporting protocols defined in the MRP and Attachment A of this Order. For purposes of reporting and administrative enforcement by the Regional and State Water Boards, the Regional Water Board considers the Discharger out of compliance with effluent limitations if the concentration of the priority pollutant in the monitoring sample is greater than the corresponding effluent limitation and greater than or equal to the reporting level (RL) or minimum level (ML).

B. Multiple Sample Data

When determining compliance with an AMEL, AWEL, or MDEL for priority pollutants and more than one sample result is available, the Discharger shall compute the arithmetic mean unless the data set contains one or more reported determinations of DNQ or ND. In those cases, the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:

1. The data set shall be ranked from low to high, ranking the reported ND determinations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND or DNQ determinations is unimportant.
2. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both points are ND or DNQ, in which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.

C. Average Monthly Effluent Limitation (AMEL)

If the average (or when applicable, the median determined by subsection B above for multiple sample data) of daily discharges over a calendar month exceeds the AMEL for a given parameter, this will represent a single violation for the purpose of calculating mandatory minimum penalties, though the Discharger may be considered out of compliance for each day of that month for that parameter (e.g., resulting in 31 days of non-compliance in a 31-day month) in cases where discretionary administrative civil liabilities are appropriate. If only a single sample is collected during the calendar month and the analytical result for that sample exceeds the AMEL, the Discharger may be considered out of compliance for that calendar month. For those average monthly effluent limitations that are based on the 6-month median water quality objectives in the 2019 Ocean Plan, the daily value used to calculate these average monthly values for intermittent discharges, shall be considered to equal zero for days on which no discharge occurred. The Discharger will only be considered out of compliance for days

when the discharge occurs. For any one calendar month during which no sample (daily discharge) is collected, no compliance determination can be made for that calendar month with respect to the AMEL.

If the analytical result of a single sample, monitored monthly, quarterly, semiannually, or annually, does not exceed the AMEL for a given parameter, the Discharger will have demonstrated compliance with the AMEL for each day of that month for that parameter.

If the analytical result of any single sample, monitored monthly, quarterly, semiannually, or annually, exceeds the AMEL for any parameter, the Discharger may collect up to four additional samples within the same calendar month. All analytical results shall be reported in the monitoring report for that month. The concentration of pollutant (an arithmetic mean or a median) in these samples estimated from the "Multiple Sample Data" section above, will be used for compliance determination.

In the event of noncompliance with an AMEL, the sampling frequency for that parameter shall be increased to weekly and shall continue at this level until compliance with the AMEL has been demonstrated.

D. Average Weekly Effluent Limitation (AWEL)

If the average of daily discharges over a calendar week exceeds the AWEL for a given parameter, a potential violation will be flagged and the Discharger will be considered out of compliance for each day of that week for that parameter, resulting in 7 days of non-compliance. The average of daily discharges over the calendar week that exceeds the AWEL for a parameter will be considered out of compliance for that week only. If only a single sample is collected during the calendar week and the analytical result for that sample exceeds the AWEL, the Discharger will be considered out of compliance for that calendar week. For any one calendar week during which no sample is collected due to no discharges, no compliance determination can be made for that calendar week with respect to the AWEL.

A calendar week will begin on Sunday and end on Saturday. Partial calendar weeks at the end of calendar month will be carried forward to the next month to calculate and report a consecutive seven-day average value on Saturday.

E. Instantaneous Minimum Effluent Limitation

If the analytical result of a single grab sample is lower than the instantaneous minimum effluent limitation for a parameter, a potential violation will be flagged and the Discharger will be considered out of compliance for that parameter for that single sample. Non-compliance for each sample will be considered separately (e.g., the results of two grab samples collected within a calendar day that both are lower than the instantaneous minimum effluent limitation would result in two instances of non-compliance with the instantaneous minimum effluent limitation).

F. Instantaneous Maximum Effluent Limitation

If the analytical result of a single grab sample is higher than the instantaneous maximum effluent limitation for a parameter, a potential violation will be flagged and the Discharger will be considered out of compliance for that parameter for that single sample. Non-compliance for each sample will be considered separately (e.g., the

results of two grab samples collected within a calendar day that both exceed the instantaneous maximum effluent limitation would result in two instances of non-compliance with the instantaneous maximum effluent limitation).

G. Six-month Median Effluent Limitation

If the median of daily discharges over any 180-day period exceeds the six-month median effluent limitation for a given parameter, a potential violation will be flagged and the Discharger will be considered out of compliance for each day of that 180-day period for that parameter. The next assessment of compliance will occur after the next sample is collected. If only a single sample is collected during a given 180-day period and the analytical result for that sample exceeds the six-month median, the Discharger will be considered out of compliance for the 180-day period. For any 180-period during which no sample is collected, no compliance determination can be made for the six-month median effluent limitation.

H. Annual Average Effluent Limitation

If the annual average of monthly discharges over a calendar year exceeds the annual average effluent limitation for a given parameter, a potential violation will be flagged and the Discharger will be considered out of compliance for each month of that year for that parameter. A potential violation of the annual average effluent limitation will be considered one violation for assessing State mandatory minimum penalties. If no sample (daily discharge) is collected over a calendar year, no compliance determination can be made for that year with respect to effluent violation determination, but compliance determination can be made for that month with respect to reporting violation determination.

I. Percent Removal

The average monthly percent removal is the removal efficiency expressed in percentage across a treatment plant for a given pollutant parameter, as determined from the 30-day average values of pollutant concentrations (C in mg/L) of influent and effluent samples collected at about the same time using the following equation:

$$\text{Percent Removal (\%)} = [1 - (C_{\text{Effluent}}/C_{\text{Influent}})] \times 100\%$$

When preferred, the Discharger may substitute mass loadings and mass emissions for the concentrations.

J. Mass and Concentration Limitations

Compliance with mass and concentration effluent limitations for the same parameter shall be determined separately with their respective limitations. When the concentration of a constituent in an effluent sample is determined to be ND or DNQ, the corresponding mass emission rate determined from that sample concentration shall also be reported as ND or DNQ.

K. Compliance with Single Constituent Effluent Limitations

Dischargers may be considered out of compliance with the effluent limitation if the concentration of the pollutant (see section B "Multiple Sample Data" above) in the

monitoring sample is greater than the effluent limitation and greater than or equal to the ML or RL.

L. Compliance with effluent limitations expressed as a sum of several constituents

Dischargers are out of compliance with an effluent limitation that applies to the sum of a group of chemicals (e.g., PCBs) if the sum of the individual pollutant concentrations is greater than the effluent limitation. Individual pollutants of the group will be considered to have a concentration of zero if the constituent is reported as ND or DNQ.

M. Compliance with Total Maximum Daily Loads

The NPDES regulations at 40 CFR § 122.44(d)(1)(vii)(B) require that NPDES permits include effluent limitations developed consistent with the assumptions and requirements of any WLA that has been assigned to the discharge as part of an approved TMDL. There are three TMDLs for the Santa Monica Bay: the *Santa Monica Bay Beaches Bacteria TMDL*, the *Santa Monica Bay Nearshore and Offshore Debris TMDL*, and the *Santa Monica Bay Total Maximum Daily Loads for DDT and PCBs* (Santa Monica Bay TMDLs for DDTs and PCBs).

Santa Monica Bay Beaches Bacteria TMDL. WLAs in the *Santa Monica Bay Beaches Bacteria TMDL* are expressed as an allowed number of exceedance days and discharges from the Joint Water Pollution Control Plant (JWPCP) are assigned an individual WLA of zero days of exceedances during both summer dry weather and winter dry weather. This is also applicable to the Royal Palms Public Restroom since it discharges into the JWPCP ocean outfall.

Santa Monica Bay Nearshore and Offshore Debris TMDL. For point sources, the debris TMDL is implemented through the LA County MS4 and Ventura County MS4 permits (i.e. no Waste Load allocation for the JWPCP or the Facility).

Santa Monica Bay TMDLs for DDTs and PCBs. The *Santa Monica Bay TMDLs for DDTs and PCBs* includes WLAs for the total loads from the Hyperion Treatment Plant, JWPCP, and West Basin's water recycling plants (including the Edward C. Little Water Reclamation Plant and the Juanita Millender-McDonald Carson WRP). These total loads are 14,567 g/yr for DDT and 351 g/yr for PCBs. Since this facility is a new facility that does not have any specified WLAs for DDTs and PCBs under the TMDL, a reasonable potential analysis was conducted to determine if a water quality-based effluent limitation is required. It was determined that the discharger does not have a reasonable potential to cause or to contribute to an exceedance of PCBs and DDTs. Thus, no effluent limitations were established for DDTs and PCBs, however, this Order requires effluent from the Facility to not cause an exceedance of the JWPCP WLA. This approach is also consistent with the implementation recommendations of this TMDL.

N. Mass Emission Rate

The mass emission rate shall be obtained from the following calculation for any calendar day:

$$\text{Mass emission rate (kg/day)} = \frac{3.79}{N} \sum_{i=1}^N Q_i C_i$$

$$\text{Mass emission rate (lb/day)} = \frac{8.34}{N} \sum_{i=1}^N Q_i C_i$$

in which 'N' is the number of samples analyzed in any calendar day. 'Q_i' and 'C_i' are the flow rate (mgd) and the constituent concentration (mg/L), respectively, which are associated with each of the 'N' grab samples, which may be collected on any calendar day. If a composite sample is taken, 'C_i' is the concentration measured in the composite sample and 'Q_i' is the average flow rate occurring during the period over which samples are composited.

The daily concentration of all constituents shall be determined from the flow-weighted average of the same constituents in the combined waste streams as follows:

$$\text{Daily concentration} = \frac{1}{Q_t} \sum_{i=1}^N Q_i C_i$$

in which 'N' is the number of component waste streams. 'Q_i' and 'C_i' are the flow rate (mgd) and the constituent concentration (mg/L), respectively, which are associated with each of the 'N' waste streams. 'Q_t' is the total flow rate of the combined waste streams.

O. Bacterial Standards and Analysis

1. The geometric mean used for determining compliance with bacterial standards is calculated with the following equation:

$$\text{Geometric Mean} = (C_1 \times C_2 \times \dots \times C_n)^{1/n}$$

where n is the number of days samples were collected during the period and C is the concentration of bacteria (MPN/100 mL or CFU/100 mL) found on each day of sampling.

2. For bacterial analyses, sample dilutions should be performed so the expected range of values is bracketed (for example, with multiple tube fermentation method or membrane filtration method, 2 to 16,000 per 100 mL for total and fecal coliform, at a minimum, and 1 to 1000 per 100 mL for *Enterococcus*). The detection methods used for each analysis shall be reported with the results of the analyses.
3. Detection methods used for coliforms (total and fecal) shall be those presented in Table 1A of 40 CFR § 136, unless alternate methods have been approved by USEPA pursuant to 40 CFR § 136, or improved methods have been determined by the Executive Officer and/or USEPA.

4. Detection methods used for *Enterococcus* shall be those presented in Table 1A of 40 CFR § 136 or in the USEPA publication EPA 600/4-85/076, *Test Methods for Escherichia coli and Enterococci in Water By Membrane Filter Procedure* or any improved method determined by the Executive Officer and/or USEPA to be appropriate.

P. Single Operational Upset (SOU)

A SOU that leads to simultaneous violations of more than one pollutant parameter shall be treated as a single violation and limits the Discharger's liability in accordance with the following conditions:

1. A SOU is broadly defined as a single unusual event that temporarily disrupts the usually satisfactory operation of a system in such a way that it results in violation of multiple pollutant parameters.
2. A Discharger may assert SOU to limit liability only for those violations which the Discharger submitted notice of the upset as required in Provision V.E.2 (b) of Attachment D – Standard Provisions.
3. For purpose outside of CWC section 13385 subdivisions (h) and (i), determination of compliance and civil liability (including any more specific definition of SOU, the requirements for Dischargers to assert the SOU limitation of liability, and the manner of counting violations) shall be in accordance with USEPA Memorandum "Issuance of Guidance Interpreting Single Operational Upset" (September 27, 1989).
4. For purpose of CWC section 13385 (h) and (i), determination of compliance and civil liability (including any more specific definition of SOU, the requirements for Dischargers to assert the SOU limitation of liability, and the manner of counting violations) shall be in accordance with CWC section 13385 (f)(2).

ATTACHMENT A – DEFINITIONS

Arithmetic Mean (μ)

Also called the average, is the sum of measured values divided by the number of samples. For ambient water concentrations, the arithmetic mean is calculated as follows:

$$\text{Arithmetic mean} = \mu = \Sigma x / n$$

where: Σx is the sum of the measured ambient water concentrations, and n is the number of samples.

Areas of Special Biological Significance (ASBS)

Those areas designated by the State Water Resources Control Board (State Water Board) as ocean areas requiring protection of species or biological communities to the extent that alteration of natural water quality is undesirable. All Areas of Special Biological Significance are also classified as a subset of STATE WATER QUALITY PROTECTION AREAS.

Average Monthly Effluent Limitation (AMEL)

The highest allowable average of daily discharges over a calendar month, calculated as the sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

Average Weekly Effluent Limitation (AWEL)

The highest allowable average of daily discharges over a calendar week (Sunday through Saturday), calculated as the sum of all daily discharges measured during a calendar week divided by the number of daily discharges measured during that week.

Best Management Practice (BMP)

BMPs are schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to prevent or reduce the pollution of waters of the United States. BMPs may include, but are not limited to treatment requirements, operating procedures, or practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw material storage.

Bioaccumulative

Those substances taken up by an organism from its surrounding medium through gill membranes, epithelial tissue, or from food and subsequently concentrated and retained in the body of the organism.

Biosolids

Sewage sludge that has been treated and tested and shown to be capable of being beneficially and legally used pursuant to federal and state regulators as a soil amendment for agricultural, silvicultural, horticultural, and land reclamation activities as specified under 40 C.F.R. Part 503.

Carcinogenic

Pollutants are substances that are known to cause cancer in living organisms.

Chlordane

Shall mean the sum of chlordane-alpha, chlordane-gamma, chlordene-alpha, chlordene-gamma, nonachlor-alpha, nonachlor-gamma, and oxychlordane.

Composite Sample, 24-hour

For flow rate measurements, the arithmetic mean of no fewer than eight individual measurements taken at equal intervals for 24 hours or for the duration of discharge, whichever is shorter.

Composite sample, for other than flow rate measurements:

- a. No fewer than eight individual sample portions taken at equal time intervals for 24 hours. The volume of each individual sample portion shall be directly proportional to the discharge flow rate at the time of sampling; or,
- b. No fewer than eight individual sample portions taken of equal time volume taken over a 24-hour period. The time interval between each individual sample portion shall vary such that the volume of the discharge between each individual sample portion remains constant.

The compositing period shall equal 24 hours.

The composite sample result shall be reported for the calendar day during which composite sampling ends.

Daily Discharge

Daily Discharge is defined as either: (1) the total mass of the constituent discharged over the calendar day (12:00 am through 11:59 pm) or any 24-hour period that reasonably represents a calendar day for purposes of sampling (as specified in the permit), for a constituent with limitations expressed in units of mass or; (2) the unweighted arithmetic mean measurement of the constituent over the day for a constituent with limitations expressed in other units of measurement (e.g., concentration).

The daily discharge may be determined by the analytical results of a composite sample taken over the course of one day (a calendar day or other 24-hour period defined as a day) or by the arithmetic mean of analytical results from one or more grab samples taken over the course of the day.

For composite sampling, if 1 day is defined as a 24-hour period other than a calendar day, the analytical result for the 24-hour period will be considered as the result for the calendar day in which the 24-hour period ends.

DDT

Shall mean the sum of 4,4'DDT, 2,4'DDT, 4,4'DDE, 2,4'DDE, 4,4'DDD, and 2,4'DDD.

Degrade

Degradation shall be determined by comparison of the waste field and reference site(s) for characteristic species diversity, population density, contamination, growth anomalies, debility, or supplanting of normal species by undesirable plant and animal species. Degradation occurs if there are significant differences in any of three major biotic groups, namely, demersal fish, benthic invertebrates, or attached algae. Other groups may be evaluated where benthic species are not affected or are not the only ones affected.

Detected, but Not Quantified (DNQ)

Sample results that are less than the reported Minimum Level, but greater than or equal to the laboratory's MDL. Sample results reported as DNQ are estimated concentrations.

Dichlorobenzenes

Shall mean the sum of 1,2- and 1,3-dichlorobenzene.

Dilution Credit

Dilution Credit is the amount of dilution granted to a discharge in the calculation of a water quality-based effluent limitation, based on the allowance of a specified mixing zone. It is calculated from the dilution ratio or determined through conducting a mixing zone study or modeling of the discharge and receiving water.

Downstream Ocean Waters

Waters downstream with respect to ocean currents.

Dredged Material

Any material excavated or dredged from the navigable waters of the United States, including material otherwise referred to as "spoil."

Enclosed Bays

Indentations along the coast that enclose an area of oceanic water within distinct headlands or harbor works. Enclosed bays include all bays where the narrowest distance between headlands or outermost harbor works is less than 75 percent of the greatest dimension of the enclosed portion of the bay. This definition includes but is not limited to: Humboldt Bay, Bodega Harbor, Tomales Bay, Drakes Estero, San Francisco Bay, Morro Bay, Los Angeles Harbor, Upper and Lower Newport Bay, Mission Bay, and San Diego Bay.

Endosulfan

The sum of endosulfan-alpha and -beta and endosulfan sulfate.

Estimated Chemical Concentration

The estimated chemical concentration that results from the confirmed detection of the substance by the analytical method below the ML value.

Estuaries and Coastal Lagoons

Waters at the mouths of streams that serve as mixing zones for fresh and ocean waters during a major portion of the year. Mouths of streams that are temporarily separated from the ocean by sandbars shall be considered as estuaries. Estuarine waters will generally be considered to extend from a bay or the open ocean to the upstream limit of tidal action but may be considered to extend seaward if significant mixing of fresh and salt water occurs in the open coastal waters. The waters described by this definition include but are not limited to the Sacramento-San Joaquin Delta as defined by Section 12220 of the California Water Code, Suisun Bay, Carquinez Strait downstream to Carquinez Bridge, and appropriate areas of the Smith, Klamath, Mad, Eel, Noyo, and Russian Rivers.

Grab Sample

An individual sample collected during a period of time not to exceed 15 minutes. Grab samples shall be collected during normal peak loading conditions for the parameter of interest, which may or may not occur during hydraulic peaks.

Halomethanes

The sum of bromoform, bromomethane (methyl bromide) and chloromethane (methyl chloride).

HCH

The sum of the alpha, beta, gamma (lindane) and delta isomers of hexachlorocyclohexane.

Initial Dilution

The process that results in the rapid and irreversible turbulent mixing of wastewater with ocean water around the point of discharge.

For a submerged buoyant discharge, characteristic of most municipal and industrial wastes that are released from the submarine outfalls, the momentum of the discharge and its initial buoyancy act together to produce turbulent mixing. Initial dilution in this case is completed when the diluting wastewater ceases to rise in the water column and first begins to spread horizontally.

For shallow water submerged discharges, surface discharges, and non-buoyant discharges, characteristic of cooling water wastes and some individual discharges, turbulent mixing results primarily from the momentum of discharge. Initial dilution, in these cases, is considered to be completed when the momentum induced velocity of the discharge ceases to produce significant mixing of the waste, or the diluting plume reaches a fixed distance from the discharge to be specified by the Regional Water Board, whichever results in the lower estimate for initial dilution.

Instantaneous Maximum Effluent Limitation

The highest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous maximum limitation).

Instantaneous Minimum Effluent Limitation

The lowest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous minimum limitation).

Kelp Beds

For purposes of the bacteriological standards of the Ocean Plan, are significant aggregations of marine algae of the genera *Macrocystis* and *Nereocystis*. Kelp beds include the total foliage canopy of *Macrocystis* and *Nereocystis* plants throughout the water column.

Mariculture

The culture of plants and animals in marine waters independent of any pollution source.

Material

(a) In common usage: (1) the substance or substances of which a thing is made or composed (2) substantial; (b) For purposes of the Ocean Plan relating to waste disposal, dredging and the disposal of dredged material and fill, MATERIAL means matter of any kind or description which is subject to regulation as waste, or any material dredged from the navigable waters of the United States. See also, DREDGED MATERIAL.

Median

The middle measurement in a set of data. The median of a set of data is found by first arranging the measurements in order of magnitude (either increasing or decreasing order). If the number of measurements (n) is odd, then the median = $X_{(n+1)/2}$. If n is even, then the median = $(X_{n/2} + X_{(n/2)+1})/2$ (i.e., the midpoint between the $n/2$ and $n/2+1$).

Method Detection Limit (MDL)

The minimum concentration of a substance that can be reported with 99 percent confidence that the measured concentration is distinguishable from method blank results, as defined in 40 CFR part 136, Attachment B.

Minimum Level (ML)

The concentration at which the entire analytical system must give a recognizable signal and acceptable calibration point. The ML is the concentration in a sample that is equivalent to the concentration of the lowest calibration standard analyzed by a specific analytical procedure, assuming that all the method specified sample weights, volumes, and processing steps have been followed.

Natural Light

Reduction of natural light may be determined by the Regional Water Board by measurement of light transmissivity or total irradiance, or both, according to the monitoring needs of the Regional Water Board.

Not Detected (ND)

Those sample results less than the laboratory's MDL.

Ocean Waters

The territorial marine waters of the state as defined by California law to the extent these waters are outside of enclosed bays, estuaries, and coastal lagoons. If a discharge outside the territorial waters of the state could affect the quality of the waters of the state, the discharge may be regulated to assure no violation of the Ocean Plan will occur in ocean waters.

PAHs (polynuclear aromatic hydrocarbons)

The sum of acenaphthylene, anthracene, 1,2-benzanthracene, 3,4-benzofluoranthene, benzo[k]fluoranthene, 1,12-benzoperylene, benzo[a]pyrene, chrysene, dibenzo[ah]anthracene, fluorene, indeno[1,2,3-cd]pyrene, phenanthrene and pyrene.

PCBs (polychlorinated biphenyls) as Aroclors

The sum of chlorinated biphenyls whose analytical characteristics resemble those of Aroclor-1016, Aroclor-1221, Aroclor-1232, Aroclor-1242, Aroclor-1248, Aroclor-1254 and Aroclor-1260.

PCBs as Congeners

The sum of the following 41 individually quantified PCB congeners or mixtures of isomers of a single congener in a co-elution: PCB-18, 28, 37, 44, 49, 52, 66, 70, 74, 77, 81, 87, 99, 101, 105, 110, 114, 118, 119, 123, 126, 128, 138, 149, 151, 153, 156, 157, 158, 167, 168, 169, 170, 177, 180, 183, 187, 189, 194, 201, and 206.

Persistent Pollutants

Persistent pollutants are substances for which degradation or decomposition in the environment is nonexistent or very slow.

Phenolic Compounds (chlorinated)

The sum of 2-chlorophenol, 2,4-dichlorophenol, 4-chloro-3-methylphenol, 2,4,6-trichlorophenol, and pentachlorophenol.

Phenolic Compounds (non-chlorinated)

The sum of 2,4-dimethylphenol, 2-nitrophenol, 4-nitrophenol, 2,4-dinitrophenol, 4,6-dinitro-2-methylphenol, and phenol.

Pollution Prevention

Any action that causes a net reduction in the use or generation of a hazardous substance or other pollutant that is discharged into water and includes, but is not limited to, input change, operational improvement, production process change, and product reformulation (as defined in CWC section 13263.3). Pollution prevention does not include actions that merely shift a

pollutant in wastewater from one environmental medium to another environmental medium, unless clear environmental benefits of such an approach are identified to the satisfaction of the State Water Resources Control Board (State Water Board), Regional Water Board, or USEPA.

Publicly Owned Treatment Works

A treatment works as defined by section 212 of the CWA, which is owned by a State or municipality (as defined by section 502(4) of the Act). This definition includes any devices and systems used in the storage, treatment, recycling and reclamation of municipal sewage or industrial wastes of a liquid nature. It also includes sewers, pipes and other conveyances only if they convey wastewater to a POTW Treatment Plant. The term also means the municipality which has jurisdiction over the Indirect Discharges to and the discharges from such treatment works. (40 CFR § 403.3(q).)

Reported Minimum Level

The reported ML (also known as the Reporting Level or RL) is the ML (and its associated analytical method) chosen by the Discharger for reporting and compliance determination from the MLs included in this Order, including an additional factor if applicable as discussed herein. The MLs included in this Order correspond to approved analytical methods for reporting a sample result that are selected by the Regional Water Board either from Appendix II of the Ocean Plan in accordance with section III.C.5.a. of the Ocean Plan or established in accordance with section III.C.5.b. of the Ocean Plan. The ML is based on the proper application of method-based analytical procedures for sample preparation and the absence of any matrix interferences. Other factors may be applied to the ML depending on the specific sample preparation steps employed. For example, the treatment typically applied in cases where there are matrix-effects is to dilute the sample or sample aliquot by a factor of ten. In such cases, this additional factor must be applied to the ML in the computation of the reported ML.

Satellite Collection System

The portion, if any, of a sanitary sewer system owned or operated by a different public agency than the agency that owns and operates the wastewater treatment facility that a sanitary sewer system is tributary to.

Shellfish

Organisms identified by the California Department of Health Services as shellfish for public health purposes (i.e., mussels, clams and oysters).

Significant Difference

Defined as a statistically significant difference in the means of two distributions of sampling results at the 95 percent confidence level.

Six-Month Median Effluent Limitation

The highest allowable moving median of all daily discharges for any 180-day period.

Standard Deviation (σ)

Standard Deviation is a measure of variability that is calculated as follows:

$$\text{Standard Deviation } (\sigma) = \frac{\sum (X - \mu)^2}{(n - 1)^{0.5}}$$

where:

x is the observed value;

μ is the arithmetic mean of the observed values; and
 n is the number of samples.

State Water Quality Protection Areas (SWQPAs)

Non-terrestrial marine or estuarine areas designated to protect marine species or biological communities from an undesirable alteration in natural water quality. All AREAS OF SPECIAL BIOLOGICAL SIGNIFICANCE (ASBS) that were previously designated by the State Water Board in Resolutions 74-28, 74-32, and 75-61 are now also classified as a subset of State Water Quality Protection Areas and require special protections afforded by the Ocean Plan.

Statistical Threshold Value (STV)

The STV for the bacteria water quality objective is a set value that approximates the 90th percentile of the water quality distribution of a bacteria population. The STV for the bacteria water quality objective is 100 cfu/100mL.

TCDD Equivalents

The sum of the concentrations of chlorinated dibenzodioxins (2,3,7,8-CDDs) and chlorinated dibenzofurans (2,3,7,8-CDFs) multiplied by their respective toxicity factors, as shown in the table below.

Isomer Group	Toxicity Equivalence Factor
	1.0
2,3,7,8-tetra CDD	
2,3,7,8-penta CDD	0.5
2,3,7,8-hexa CDDs	0.1
2,3,7,8-hepta CDD	0.01
octa CDD	0.001
2,3,7,8 tetra CDF	0.1
1,2,3,7,8 penta CDF	0.05
2,3,4,7,8 penta CDF	0.5
2,3,7,8 hexa CDFs	0.1
2,3,7,8 hepta CDFs	0.01
octa CDF	0.001

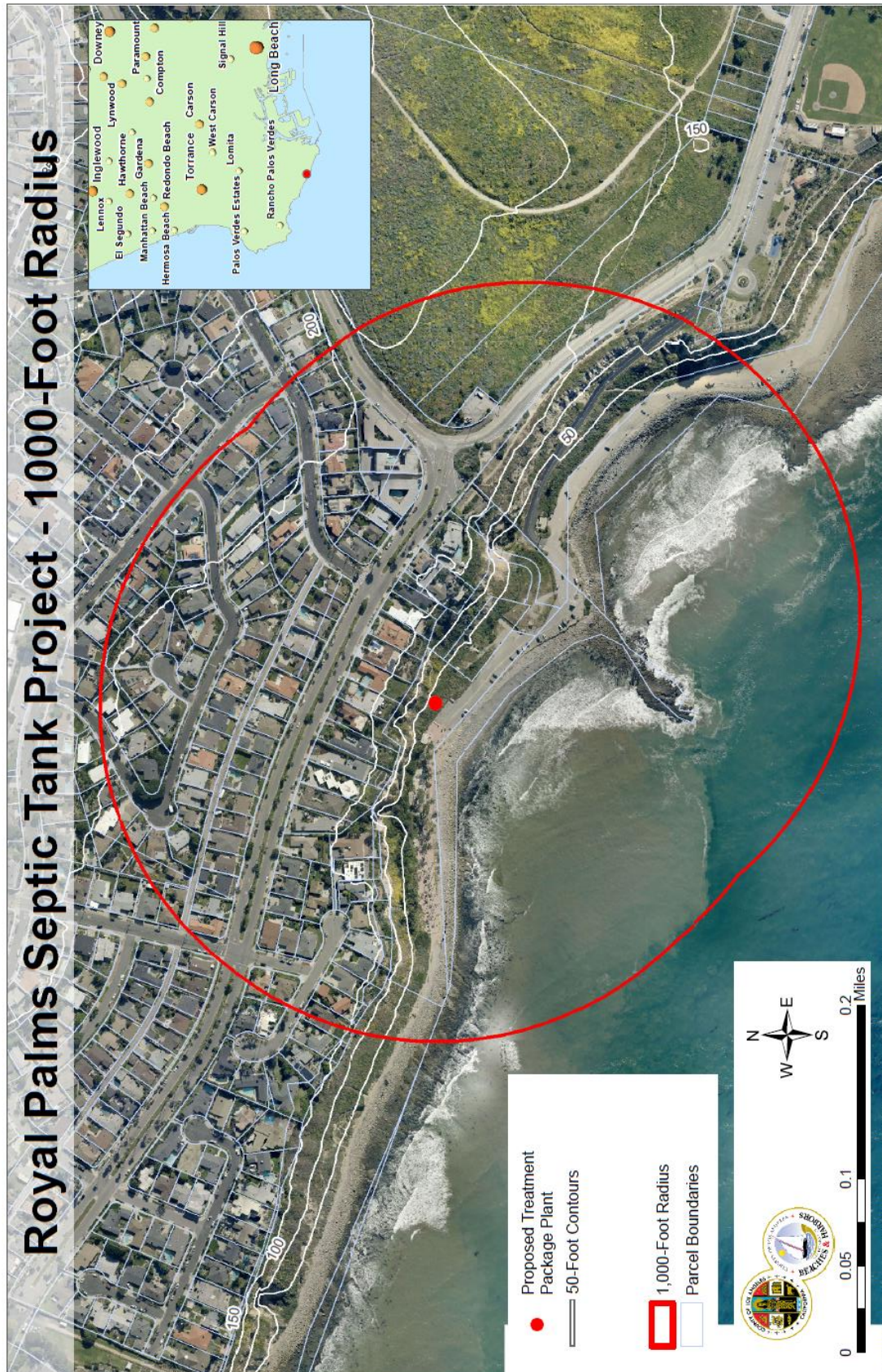
Waste

As used in the Ocean Plan, waste includes a Discharger's total discharge, of whatever origin, i.e., gross, not net, discharge.

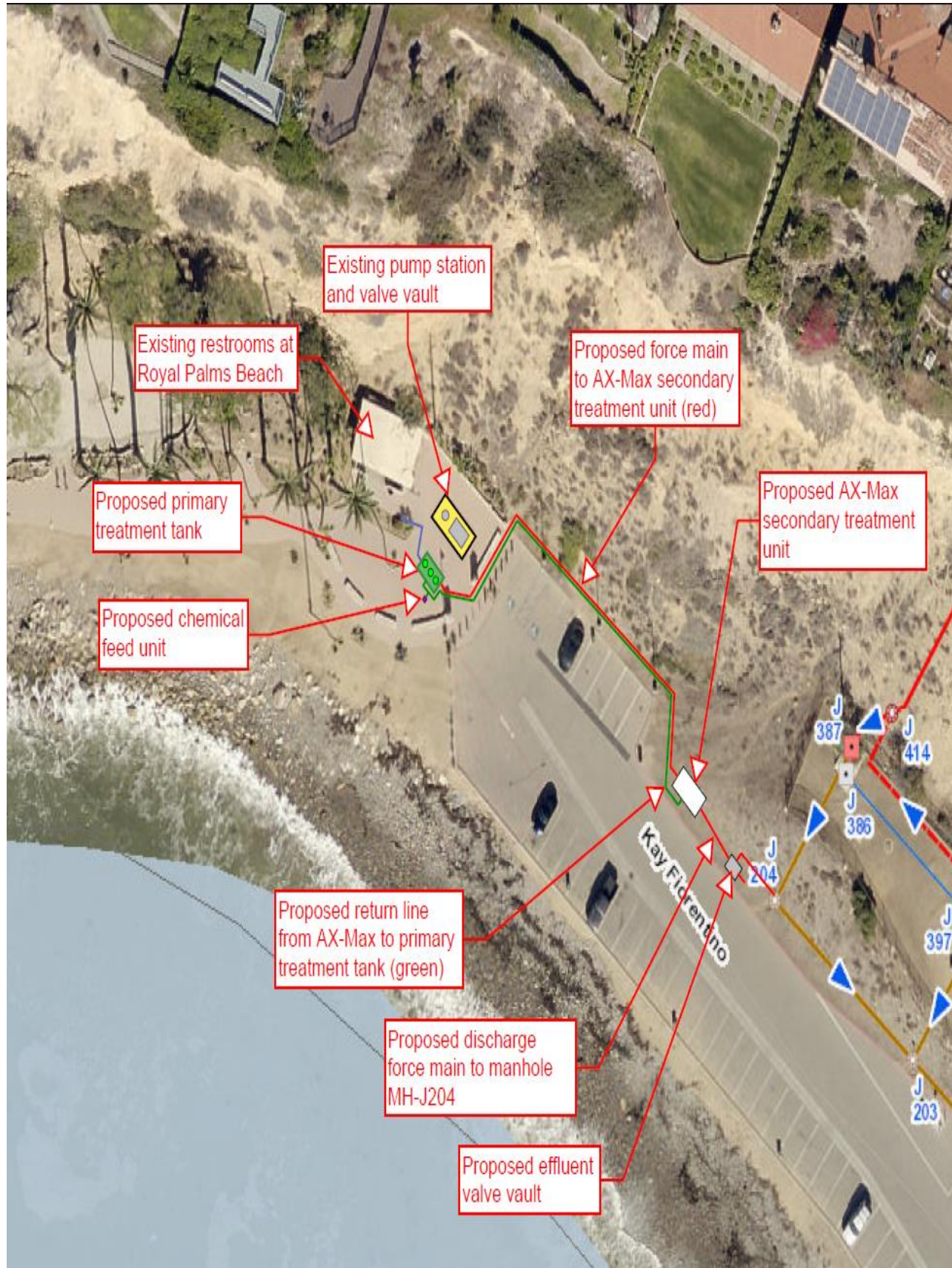
Water Recycling

The treatment of wastewater to render it suitable for reuse, the transportation of treated wastewater to the place of use, and the actual use of treated wastewater for a direct beneficial use or controlled use that would not otherwise occur.

ATTACHMENT B1 – MAP OF ROYAL PALMS BEACH AND SURROUNDING AREA



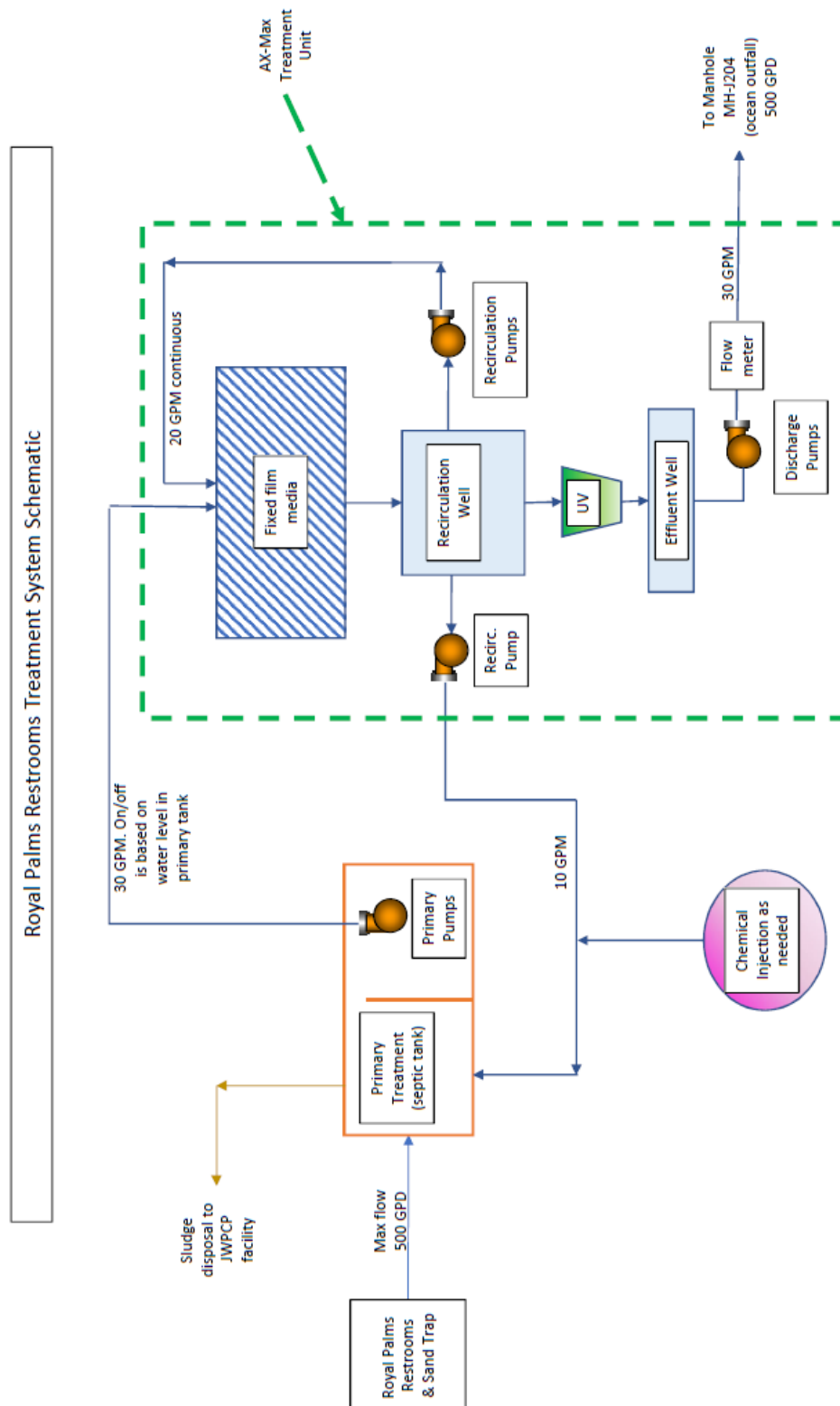
ATTACHMENT B2 – SITE LAYOUT OF PROPOSED TREATMENT UNIT



ATTACHMENT B3 – SITE LAYOUT INCLUDING OCEAN OUTFALL



ATTACHMENT C – FLOW SCHEMATIC



ATTACHMENT D – STANDARD PROVISIONS

I. STANDARD PROVISIONS – PERMIT COMPLIANCE

A. Duty to Comply

1. The Discharger must comply with all the terms, requirements, and conditions of this Order. Any noncompliance constitutes a violation of the Clean Water Act (CWA) and the California Water Code (CWC) and is grounds for enforcement action; permit termination, revocation and reissuance, or modification; denial of a permit renewal application; or a combination thereof. (40 CFR § 122.41(a); Wat. Code, §§ 13261, 13263, 13265, 13268, 13000, 13001, 13304, 13350, 13385.)
2. The Discharger shall comply with effluent standards or prohibitions established under Section 307(a) of the CWA for toxic pollutants within the time provided in the regulations that establish these standards or prohibitions, even if this Order has not yet been modified to incorporate the requirement. (40 CFR § 122.41(a)(1).)

B. Need to Halt or Reduce Activity Not a Defense

It shall not be a defense for a Discharger in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this Order. (40 CFR § 122.41(c).)

C. Duty to Mitigate

The Discharger shall take all reasonable steps to minimize or prevent any discharge in violation of this Order that has a reasonable likelihood of adversely affecting human health or the environment. (40 CFR § 122.41(d).)

D. Proper Operation and Maintenance

The Discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the Discharger to achieve compliance with the conditions of this Order. Proper operation and maintenance also includes adequate laboratory controls and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by a Discharger only when necessary to achieve compliance with the conditions of this Order. (40 CFR § 122.41(e).)

E. Property Rights

1. This Order does not convey any property rights of any sort or any exclusive privileges. (40 CFR § 122.41(g).)
2. The issuance of this Order does not authorize any injury to persons or property or invasion of other private rights, or any infringement of state or local law or regulations. (40 CFR § 122.5(c).)

F. Inspection and Entry

The Discharger shall allow the Regional Water Board, State Water Board, USEPA, and/or their authorized representatives (including an authorized contractor acting as their representative), upon the presentation of credentials and other documents, as may be required by law, to (33 U.S.C. § 1318(a)(B); 40 C.F.R. § 122.41(i); Wat. Code, §§ 13267, 13383):

1. Enter upon the Discharger's premises where a regulated facility or activity is located or conducted, or where records are kept under the conditions of this Order (33 U.S.C. § 1318(a)(4)(b)(i); 40 C.F.R. § 122.41(i)(1); Wat. Code, §§ 13267, 13383);
2. Have access to and copy, at reasonable times, any records that must be kept under the conditions of this Order (33 U.S.C. § 1318(a)(4)(b)(ii); 40 C.F.R. § 122.41(i)(2); Wat. Code, §§ 13267, 13383);
3. Inspect and photograph, at reasonable times, any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this Order (33 U.S.C. § 1318(a)(4)(b)(ii); 40 C.F.R. § 122.41(i)(3); Wat. Code, §§ 13267, 13383); and
4. Sample or monitor, at reasonable times, for the purposes of assuring Order compliance or as otherwise authorized by the CWA or the Water Code, any substances or parameters at any location. (33 U.S.C. § 1318(a)(4)(b); 40 C.F.R. § 122.41(i)(4); Wat. Code, §§ 13267, 13383.)

D. Bypass

1. Definitions
 - a. "Bypass" means the intentional diversion of waste streams from any portion of a treatment facility. (40 CFR § 122.41(m)(1)(i).)
 - b. "Severe property damage" means substantial physical damage to property, damage to the treatment facilities, which causes them to become inoperable, or substantial and permanent loss of natural resources that can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production. (40 CFR § 122.41(m)(1)(ii).)
2. Bypass not exceeding limitations. The Discharger may allow any bypass to occur which does not cause exceedances of effluent limitations, but only if it is for essential maintenance to assure efficient operation. These bypasses are not subject to the provisions listed in Standard Provisions – Permit Compliance I.G.3, I.G.4, and I.G.5 below. (40 CFR § 122.41(m)(2).)
3. Prohibition of bypass. Bypass is prohibited, and the Regional Water Board may take enforcement action against a Discharger for bypass, unless (40 CFR § 122.41(m)(4)(i)):
 - a. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage (40 CFR § 122.41(m)(4)(i)(A));

- b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that occurred during normal periods of equipment downtime or preventive maintenance (40 CFR § 122.41(m)(4)(i)(B)); and
 - c. The Discharger submitted notice to the Regional Water Board as required under Standard Provisions – Permit Compliance I.G.5 below. (40 CFR § 122.41(m)(4)(i)(C).)
- 4. The Regional Water Board may approve an anticipated bypass, after considering its adverse effects, if the Regional Water Board determines that it will meet the three conditions listed in Standard Provisions – Permit Compliance I.G.3 above. (40 CFR § 122.41(m)(4)(ii).)
- 5. Notice
 - a. *Anticipated bypass.* If the Discharger knows in advance of the need for a bypass, it shall submit prior notice, if possible at least 10 days before the date of the bypass. As of December 21, 2020, all notices must be submitted electronically to the initial recipient defined in Standard Provisions – Reporting V.J below. Notices shall comply with 40 CFR part 3, 40 CFR section 122.22, and 40 CFR part 127. (40 CFR § 122.41(m)(3)(i).)
 - b. *Unanticipated bypass.* The Discharger shall submit a notice of an unanticipated bypass as required in Standard Provisions - Reporting V.E below (24-hour notice). As of December 21, 2020, all notices must be submitted electronically to the initial recipient defined in Standard Provisions – Reporting V.J below. Notices shall comply with 40 CFR part 3, 40 CFR section 122.22, and 40 CFR part 127. (40 CFR § 122.41(m)(3)(ii).)

E. Upset

Upset means an exceptional incident in which there is unintentional and temporary noncompliance with technology-based permit effluent limitations because of factors beyond the reasonable control of the Discharger. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.
(40 CFR § 122.41(n)(1).)

- 1. **Effect of an upset.** An upset constitutes an affirmative defense to an action brought for noncompliance with such technology-based permit effluent limitations if the requirements of Standard Provisions – Permit Compliance I.H.2 below are met. No determination made during administrative review of claims that noncompliance was caused by upset, and before an action for noncompliance, is final administrative action subject to judicial review. (40 CFR § 122.41(n)(2).)
- 2. **Conditions necessary for a demonstration of upset.** A Discharger who wishes to establish the affirmative defense of upset shall demonstrate, through properly

signed, contemporaneous operating logs or other relevant evidence that (40 CFR § 122.41(n)(3)):

- a. An upset occurred and that the Discharger can identify the cause(s) of the upset (40 CFR § 122.41(n)(3)(i));
 - b. The permitted facility was, at the time, being properly operated (40 CFR § 122.41(n)(3)(ii));
 - c. The Discharger submitted notice of the upset as required in Standard Provisions – Reporting V.E.2.b below (24-hour notice) (40 CFR § 122.41(n)(3)(iii)); and
 - d. The Discharger complied with any remedial measures required under Standard Provisions – Permit Compliance I.C above. (40 CFR § 122.41(n)(3)(iv).)
3. **Burden of proof.** In any enforcement proceeding, the Discharger seeking to establish the occurrence of an upset has the burden of proof. (40 CFR § 122.41(n)(4).)

II. STANDARD PROVISIONS – PERMIT ACTION

A. General

This Order may be modified, revoked and reissued, or terminated for cause. The filing of a request by the Discharger for modification, revocation and reissuance, or termination, or a notification of planned changes or anticipated noncompliance does not stay any Order condition. (40 CFR § 122.41(f).)

B. Duty to Reapply

If the Discharger wishes to continue an activity regulated by this Order after the expiration date of this Order, the Discharger must apply for and obtain a new permit. (40 CFR § 122.41(b).)

C. Transfers

This Order is not transferable to any person except after notice to the Regional Water Board. The Regional Water Board may require modification or revocation and reissuance of the Order to change the name of the Discharger and incorporate such other requirements as may be necessary under the CWA and the Water Code. (40 CFR §§ 122.41(l)(3), 122.61.)

III. STANDARD PROVISIONS – MONITORING

A. Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity. (40 CFR § 122.41(j)(1).)

Monitoring must be conducted according to test procedures approved under 40 CFR part 136 for the analyses of pollutants unless another method is required under 40 CFR chapter 1, subchapter N. Monitoring must be conducted according to sufficiently sensitive test methods approved under 40 CFR part 136 for the analysis of pollutants or pollutant parameters or as required under 40 CFR chapter 1, subchapter N. For the purposes of this paragraph, a method is sufficiently sensitive when:

1. The method minimum level (ML) is at or below the level of the most stringent effluent limitation established in the permit for the measured pollutant or pollutant parameter, and either the method ML is at or below the level of the most stringent applicable water quality criterion for the measured pollutant or pollutant parameter or the method ML is above the applicable water quality criterion but the amount of the pollutant or pollutant parameter in the facility's discharge is high enough that the method detects and quantifies the level of the pollutant or pollutant parameter in the discharge; or
2. The method has the lowest ML of the analytical methods approved under 40 CFR part 136 or required under 40 CFR chapter 1, subchapter N for the measured pollutant or pollutant parameter.

In the case of pollutants or pollutant parameters for which there are no approved methods under 40 CFR part 136 or otherwise required under 40 CFR chapter 1, subchapter N, monitoring must be conducted according to a test procedure specified in this Order for such pollutants or pollutant parameters. (40 CFR §§ 122.21(e)(3), 122.41(j)(4), 122.44(i)(1)(iv).)

IV. STANDARD PROVISIONS – RECORDS

A. The Discharger shall retain records of all monitoring information, including all calibration and maintenance records and all original strip chart recordings for continuous monitoring instrumentation, copies of all reports required by this Order, and records of all data used to complete the application for this Order, for a period of at least three (3) years from the date of the sample, measurement, report or application. This period may be extended by request of the Regional Water Board Executive Officer at any time. (40 CFR § 122.41(j)(2).)

B. Records of monitoring information shall include:

1. The date, exact place, and time of sampling or measurements (40 CFR § 122.41(j)(3)(i));
2. The individual(s) who performed the sampling or measurements (40 CFR § 122.41(j)(3)(ii));
3. The date(s) analyses were performed (40 CFR § 122.41(j)(3)(iii));
4. The individual(s) who performed the analyses (40 CFR § 122.41(j)(3)(iv));
5. The analytical techniques or methods used (40 CFR § 122.41(j)(3)(v)); and
6. The results of such analyses. (40 CFR § 122.41(j)(3)(vi).)

C. Claims of confidentiality for the following information will be denied (40 CFR § 122.7(b)):

1. The name and address of any permit applicant or Discharger (40 CFR § 122.7(b)(1)); and
2. Permit applications and attachments, permits and effluent data. (40 CFR § 122.7(b)(2).)

V. STANDARD PROVISIONS – REPORTING

A. Duty to Provide Information

The Discharger shall furnish to the Regional Water Board, State Water Board, or USEPA within a reasonable time, any information which the Regional Water Board, State Water Board, or USEPA may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this Order or to determine compliance with this Order. Upon request, the Discharger shall also furnish to the Regional Water Board, State Water Board, or USEPA copies of records required to be kept by this Order. (40 CFR § 122.41(h); Wat. Code, §§ 13267, 13383.)

B. Signatory and Certification Requirements

1. All applications, reports, or information submitted to the Regional Water Board, State Water Board, and/or USEPA shall be signed and certified in accordance with Standard Provisions – Reporting V.B.2, V.B.3, V.B.4, V.B.5, and V.B.6 below. (40 CFR § 122.41(k).)
2. All permit applications shall be signed by either a principal executive officer or ranking elected official. For purposes of this provision, a principal executive officer of a federal agency includes: (i) the chief executive officer of the agency, or (ii) a senior executive officer having responsibility for the overall operations of a principal geographic unit of the agency (e.g., Regional Administrators of USEPA). (40 CFR § 122.22(a)(3).)
3. All reports required by this Order and other information requested by the Regional Water Board, State Water Board, or USEPA shall be signed by a person described in Standard Provisions – Reporting V.B.2 above, or by a duly authorized representative of that person. A person is a duly authorized representative only if:
 - a. The authorization is made in writing by a person described in Standard Provisions – Reporting V.B.2 above (40 CFR § 122.22(b)(1));
 - b. The authorization specifies either an individual or a position having responsibility for the overall operation of the regulated facility or activity such as the position of plant manager, operator of a well or a well field, superintendent, position of equivalent responsibility, or an individual or position having overall responsibility for environmental matters for the company. (A duly authorized representative may thus be either a named individual or any individual occupying a named position.) (40 CFR § 122.22(b)(2)); and
 - c. The written authorization is submitted to the Regional Water Board and State Water Board. (40 CFR § 122.22(b)(3).)
4. If an authorization under Standard Provisions – Reporting V.B.3 above is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, a new authorization satisfying the requirements of Standard Provisions – Reporting V.B.3 above must be submitted to the Regional Water Board and State Water Board prior to or together with any reports,

information, or applications, to be signed by an authorized representative. (40 CFR § 122.22(c).)

5. Any person signing a document under Standard Provisions – Reporting V.B.2 or V.B.3 above shall make the following certification:

“I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.” (40 CFR § 122.22(d).)

6. Any person providing the electronic signature for documents described in Standard Provisions – V.B.1, V.B.2, or V.B.3 that are submitted electronically shall meet all relevant requirements of Standard Provisions – Reporting V.B, and shall ensure that all relevant requirements of 40 CFR part 3 (Cross-Media Electronic Reporting) and 40 CFR part 127 (NPDES Electronic Reporting Requirements) are met for that submission. (40 CFR § 122.22(e).)

C. Monitoring Reports

1. Monitoring results shall be reported at the intervals specified in the Monitoring and Reporting Program (Attachment E) in this Order. (40 CFR § 122.41(l)(4).)
2. Monitoring results must be reported on a Discharge Monitoring Report (DMR) form or forms provided or specified by the Regional Water Board or State Water Board. As of December 21, 2016, all reports and forms must be submitted electronically to the initial recipient defined in Standard Provisions – Reporting V.J and comply with 40 CFR part 3, 40 CFR section 122.22, and 40 CFR part 127. (40 CFR § 122.41(l)(4)(i).)
3. If the Discharger monitors any pollutant more frequently than required by this Order using test procedures approved under 40 CFR part 136, or another method required for an industry-specific waste stream under 40 CFR chapter 1, subchapter N, the results of such monitoring shall be included in the calculation and reporting of the data submitted in the DMR or reporting form specified by the Regional Water Board or State Water Board. (40 CFR § 122.41(l)(4)(ii).)
4. Calculations for all limitations, which require averaging of measurements, shall utilize an arithmetic mean unless otherwise specified in this Order. (40 CFR § 122.41(l)(4)(iii).)

D. Compliance Schedules

Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule of this Order, shall be submitted no later than 14 days following each schedule date. (40 CFR § 122.41(l)(5).)

E. Twenty-Four Hour Reporting

1. The Discharger shall report any noncompliance which may endanger health or the environment. Any information shall be provided orally within 24 hours from the time the Discharger becomes aware of the circumstances. A report shall also be provided within five (5) days of the time the Discharger becomes aware of the circumstances. The report shall contain a description of the noncompliance and its cause; the period of noncompliance, including exact dates and times, and if the noncompliance has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the noncompliance.

For noncompliance events related to combined sewer overflows, sanitary sewer overflows, or bypass events, these reports must include the data described above (with the exception of time of discovery) as well as the type of event (i.e., combined sewer overflow, sanitary sewer overflow, or bypass event), type of overflow structure (e.g., manhole, combined sewer overflow outfall), discharge volume untreated by the treatment works treating domestic sewage, types of human health and environmental impacts of the event, and whether the noncompliance was related to wet weather.

As of December 21, 2020, all reports related to combined sewer overflows, sanitary sewer overflows, or bypass events must be submitted to the Regional Water Board and must be submitted electronically to the initial recipient defined in Standard Provisions – Reporting V.J. The reports shall comply with 40 CFR part 3, 40 CFR section 122.22, and 40 CFR part 127. The Regional Water Board may also require the Discharger to electronically submit reports not related to combined sewer overflows, sanitary sewer overflows, or bypass events under this section. (40 CFR § 122.41(l)(6)(i).)

2. The following shall be included as information that must be reported within 24 hours:
 - a. Any unanticipated bypass that exceeds any effluent limitation in this Order. (40 CFR § 122.41(l)(6)(ii)(A).)
 - b. Any upset that exceeds any effluent limitation in this Order. (40 CFR § 122.41(l)(6)(ii)(B).)
3. The Regional Water Board may waive the above required written report on a case-by-case basis if an oral report has been received within 24 hours. (40 CFR § 122.41(l)(6)(ii)(B).)

F. Planned Changes

The Discharger shall give notice to the Regional Water Board as soon as possible of any planned physical alterations or additions to the permitted facility. Notice is required under this provision only when (40 CFR § 122.41(l)(1)):

1. The alteration or addition to a permitted facility may meet one of the criteria for determining whether a facility is a new source in section 122.29(b) (40 CFR § 122.41(l)(1)(i)); or

2. The alteration or addition could significantly change the nature or increase the quantity of pollutants discharged. This notification applies to pollutants that are not subject to effluent limitations in this Order. (40 CFR § 122.41(l)(1)(ii).)
3. The alteration or addition results in a significant change in the Discharger's sludge use or disposal practices, and such alteration, addition, or change may justify the application of permit conditions that are different from or absent in the existing permit, including notification of additional use or disposal sites not reported during the permit application process or not reported pursuant to an approved land application plan. (40 CFR § 122.41(l)(1)(iii).)

G. Anticipated Noncompliance

The Discharger shall give advance notice to the Regional Water Board of any planned changes in the permitted facility or activity that may result in noncompliance with this Order's requirements. The Sanitation Districts of Los Angeles County shall also be notified. (40 CFR § 122.41(l)(2).)

H. Other Noncompliance

The Discharger shall report all instances of noncompliance not reported under Standard Provisions – Reporting V.C, V.D, and V.E above at the time monitoring reports are submitted. The reports shall contain the information listed in Standard Provision – Reporting V.E above. For noncompliance events related to combined sewer overflows, sanitary sewer overflows, or bypass events, these reports shall contain the information described in Standard Provision – Reporting V.E and the applicable required data in appendix A to 40 CFR part 127. The Regional Water Board may also require the Discharger to electronically submit reports not related to combined sewer overflows, sanitary sewer overflows, or bypass events under this section. (40 CFR § 122.41(l)(7).)

I. Other Information

When the Discharger becomes aware that it failed to submit any relevant facts in a permit application, or submitted incorrect information in a permit application or in any report to the Regional Water Board, State Water Board, or USEPA, the Discharger shall promptly submit such facts or information. (40 CFR § 122.41(l)(8).)

J. Initial Recipient for Electronic Reporting Data

The owner, operator, or the duly authorized representative is required to electronically submit NPDES information specified in appendix A to 40 CFR part 127 to the initial recipient defined in 40 CFR section 127.2(b). USEPA will identify and publish the list of initial recipients on its website and in the Federal Register, by state and by NPDES data group [see 40 CFR section 127.2(c)]. USEPA will update and maintain this listing.
(40 CFR § 122.41(l)(9).)

VI. STANDARD PROVISIONS – ENFORCEMENT

- A. The Regional Water Board is authorized to enforce the terms of this permit under several provisions of the Water Code, including, but not limited to, sections 13268, 13385, 13386, and 13387.

- B.** The CWA provides that any person who violates section 301, 302, 306, 307, 308, 318 or 405 of the CWA, or any permit condition or limitation implementing any such sections in a permit issued under section 402, or any requirement imposed in a pretreatment program approved under sections 402(a)(3) or 402(b)(8) of the CWA, is subject to a civil penalty not to exceed \$25,000 per day for each violation. The CWA provides that any person who *negligently* violates sections 301, 302, 306, 307, 308, 318, or 405 of the CWA, or any condition or limitation implementing any of such sections in a permit issued under section 402 of the CWA, or any requirement imposed in a pretreatment program approved under section 402(a)(3) or 402(b)(8) of the CWA, is subject to criminal penalties of \$2,500 to \$25,000 per day of violation, or imprisonment of not more than one year, or both. In the case of a second or subsequent conviction for a negligent violation, a person shall be subject to criminal penalties of not more than \$50,000 per day of violation, or by imprisonment of not more than two years, or both. Any person who *knowingly* violates such conditions or limitations is subject to criminal penalties of \$5,000 to \$50,000 per day of violation, or imprisonment for not more than three years, or both. In the case of a second or subsequent conviction for a knowing violation, a person shall be subject to criminal penalties of not more than \$100,000 per day of violation, or imprisonment of not more than 6 years, or both. Any person who *knowingly* violates section 301, 302, 303, 306, 307, 308, 318 or 405 of the CWA, or any permit condition or limitation implementing any of such sections in a permit issued under section 402 of the CWA, and who knows at that time that he thereby places another person in imminent danger of death or serious bodily injury, shall, upon conviction, be subject to a fine of not more than \$250,000 or imprisonment of not more than 15 years, or both. In the case of a second or subsequent conviction for a knowing endangerment violation, a person shall be subject to a fine of not more than \$500,000 or by imprisonment of not more than 30 years, or both. An organization, as defined in section 309(c)(3)(B)(iii) of the CWA, shall, upon conviction of violating the imminent danger provision, be subject to a fine of not more than \$1,000,000 and can be fined up to \$2,000,000 for second or subsequent convictions (40 CFR § 122.41(a)(2); CWC section 13385 and 13387).
- C.** Any person may be assessed an administrative penalty by the Administrator of USEPA, or an administrative civil liability by the Regional Water Board, or State Water Board for violating section 301, 302, 306, 307, 308, 318 or 405 of this CWA, or any permit condition or limitation implementing any of such sections in a permit issued under section 402 of the CWA. Administrative penalties for Class I violations are not to exceed \$10,000 per violation, with the maximum amount of any Class I penalty assessed not to exceed \$25,000. Penalties for Class II violations are not to exceed \$10,000 per day for each day during which the violation continues, with the maximum amount of any Class II penalty not to exceed \$125,000. (40 CFR § 122.41(a)(3).)
- D.** The CWA provides that any person who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required to be maintained under this permit shall, upon conviction, be punished by a fine of not more than \$10,000, or imprisonment of not more than two years, or both. If a conviction of a person is for a violation committed after a first conviction of such person under this paragraph, punishment is a fine of not more than \$20,000 per day of violation, or imprisonment of not more than four years, or both. (40 CFR § 122.41(j)(5).)

- E. The CWA provides that any person who knowingly makes a false statement, representation, or certification, in any record or other document submitted or required to be maintained under this permit, including monitoring reports or reports of compliance or non-compliance shall, upon conviction, be punished by a fine of not more than \$10,000 per violation, or by imprisonment for not more than six months per violation, or both (40 CFR § 122.41(k)(2).)

VII. ADDITIONAL PROVISIONS – NOTIFICATION LEVELS

A. Publicly Owned Treatment Works (POTWs)

All POTWs shall provide adequate notice to the Regional Water Board of the following (40 CFR § 122.42(b)):

1. Any new introduction of pollutants into the POTW from an indirect discharger that would be subject to sections 301 or 306 of the CWA if it were directly discharging those pollutants (40 CFR § 122.42(b)(1)); and
2. Any substantial change in the volume or character of pollutants being introduced into that POTW by a source introducing pollutants into the POTW at the time of adoption of the Order. (40 CFR § 122.42(b)(2).)
3. Adequate notice shall include information on the quality and quantity of effluent introduced into the POTW as well as any anticipated impact of the change on the quantity or quality of effluent to be discharged from the POTW. (40 CFR § 122.42(b)(3).)

ATTACHMENT E – MONITORING AND REPORTING PROGRAM CI-10512

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ATTACHMENT E – MONITORING AND REPORTING PROGRAM (MRP)

Section 308 of the federal Clean Water Act (CWA) and sections 122.41(h), (j)-(l), 122.44(i), and 122.48 of title 40 of the Code of Federal Regulations (40 CFR) require that all NPDES permits specify monitoring and reporting requirements. California Water Code sections 13267 and 13383 also authorize the Regional Water Board to establish monitoring, inspection, entry, reporting, and recordkeeping requirements. This MRP establishes monitoring, reporting, and recordkeeping requirements that implement the federal and California laws and/or regulations.

I. GENERAL MONITORING PROVISIONS

- A.** All samples shall be representative of the waste discharge under conditions of peak load. Quarterly influent and effluent analyses shall be performed during the first quarter (January, February, and March), the second quarter (April, May, and June), the third quarter (July, August, and September), and the fourth quarter (October, November, and December). Semiannual influent and effluent analyses shall be performed during the first quarter (January, February, and March) and third quarter (July, August, and September). Annual analyses shall be performed during the third quarter (July, August, and September). Should there be instances when monitoring could not be performed during these specified months, the Discharger must notify the Regional Water Board, state the reason why monitoring could not be conducted, and obtain approval from the Executive Officer for an alternate schedule. Results of quarterly, semiannual, and annual analyses shall be reported by the due date specified in Table E-4 of the MRP.
- B.** Pollutants shall be analyzed using the analytical methods described in 40 CFR § 136.3, 136.4, and 136.5; or where no methods are specified for a given pollutant, by methods approved by this Regional Water Board or the State Water Board. Laboratories analyzing effluent samples and receiving water samples shall be certified by the State Water Resources Control Board, Division of Drinking Water (DDW) Environmental Laboratory Accreditation Program (ELAP) or approved by the Executive Officer and must include quality assurance/quality control (QA/QC) data in their reports. A copy of the laboratory certification shall be provided in the Annual Report due to the Regional Water Board each time a new certification and/or renewal of the certification is obtained from ELAP.
- C.** Water/wastewater samples must be analyzed within allowable holding time limits as specified in 40 CFR § 136.3. All QA/QC analyses must be run on the same dates that samples are analyzed. The Discharger shall retain the QA/QC documentation in its files and make available for inspection and/or submit this documentation when requested by the Regional Water Board. Proper chain of custody procedures must be followed, and a copy of this documentation shall be submitted with the monthly report.
- D.** The Discharger shall calibrate and perform maintenance procedures on all monitoring instruments to ensure accuracy of measurements or shall ensure that both equipment activities will be conducted.
- E.** For any analyses performed for which no procedure is specified in the United States Environmental Protection Agency (USEPA) guidelines, or in the MRP, the constituent or parameter analyzed, and method or procedure used must be specified in the monitoring report.

- F. Each monitoring report must affirm in writing, “all analyses were conducted at a laboratory certified for such analyses under the ELAP, or approved by the Executive Officer and in accordance with current USEPA guideline procedures or as specified in this monitoring and reporting program.”
- G. The monitoring report shall specify the USEPA analytical method used, the Method Detection Limit (MDL), and the Reporting Level (RL) [the applicable Minimum Level (ML) or Reported Minimum Level (RML)] for each pollutant. The MLs are those published by the State Water Board in Appendix II of the 2019 Ocean Plan. The ML represents the lowest quantifiable concentration in a sample based on the proper application of all method-based analytical procedures and the absence of any matrix interference. When all specific analytical steps are followed and after appropriate application of method specific factors, the ML also represents the lowest standard in the calibration curve for that specific analytical technique. When there is deviation from the analytical method for dilution or concentration of samples, other factors are applied to the ML depending on the sample preparation. The resulting value is the reported Minimum Level.
- H. The Discharger shall select the analytical method that provides an ML lower than the effluent limitation or performance goal established for a given parameter or where no such requirement exists, the lowest applicable water quality objective in the Ocean Plan. If the effluent limitation, performance goal, or the lowest applicable water quality objective is lower than all the MLs in Appendix II of the 2019 Ocean Plan, the Discharger must select the method with the lowest ML for compliance purposes. The Discharger shall include in the annual summary reports a list of the analytical methods and MLs employed for each test.
- I. The Discharger shall instruct its laboratories to establish calibration standards so that the ML (or its equivalent if there is differential treatment of samples relative to calibration standards) is the lowest calibration standard. At no time is the Discharger to use analytical data derived from extrapolation beyond the lowest point of the calibration curve.
- J. The Discharger shall develop and maintain a record of all spills or bypasses of raw or partially treated sewage from its collection system or treatment plant according to the requirements in the Waste Discharge Requirements (WDRs) of this Order. This record shall be made available to the Regional Water Board upon request and a spill summary shall be included in the annual summary report.
- K. If the Discharger samples and performs analyses (other than for process/operational control, startup, research, or equipment testing) on any influent, effluent, or receiving water constituent more frequently than required by this Order using approved analytical methods, the results of those analyses shall be included in the monitoring report. These results shall be reflected in the calculation of the average (or median) used in demonstrating compliance with limitations set forth in this Order.
- L. For all bacterial analyses, sample dilutions should be performed so the expected range of values is bracketed (for example, with multiple tube fermentation method or membrane filtration method, 2 to 16,000 per 100 mL for total and fecal coliforms, at a minimum; and 1 to 1000 per 100 mL for *Enterococcus*). The detection methods used for each analysis shall be reported with the results of the analyses.

1. Detection methods used for coliforms (total and fecal) shall be those presented in Table 1A of 40 CFR § 136, unless alternate methods have been approved in advance by the USEPA pursuant to 40 CFR § 136.
 2. Detection methods for *Enterococci* shall be those presented in Table 1A of 40 CFR § 136 or in the USEPA publication EPA 600/4-85/076, *Test Methods for Escherichia coli and Enterococci in Water By Membrane Filter Procedure*, or any improved method determined by the Regional Water Board and USEPA to be appropriate.
- M. All receiving and ambient water monitoring conducted in compliance with the MRP must be consistent with the Quality Assurance requirements of the Surface Water Ambient Monitoring Program (SWAMP).
- N. Laboratory Certification. Laboratories analyzing monitoring samples shall be certified by the State Water Resources Control Board (State Water Board), in accordance with the provision of Water Code section 13176, and must include quality assurance/quality control data with their reports.

II. MONITORING LOCATIONS

The Discharger shall establish the following monitoring locations to demonstrate compliance with the effluent limitations, discharge specifications, and other requirements in this Order:

Table E-1. Monitoring Station Locations

Discharge Point Name	Monitoring Location Name	Monitoring Location Description
--	INF-001	The influent monitoring location shall be at the point of inflow to the sewage treatment unit and where representative samples of the influent can be obtained. Influent samples shall be collected on the same day effluent samples are collected. Latitude: 33.71895° Longitude: -118.32310°
001 002 003 004	EFF-001	The effluent monitoring location shall be after the final disinfection process but before entering the connection to JWPCP's pipeline at Manhole MH J204 where representative samples of the effluent can be obtained. Latitude: 33.71859° Longitude: -118.32251°

Discharge Points 001, 002, 003, and 004 in the Order correspond to Outfall No. 001, 002, 003, and 004 in the Los Angeles County Sanitation Districts' Joint Water Pollution Control Plant (JWPCP) NPDES Permit (CA0053813) Order No. R4-2017-0180.

Receiving water monitoring will be conducted by Los Angeles County Sanitation Districts (LACSD) under Order R4-2017-0180 or any subsequent order. The North latitude and West longitude information in Table E-1 are approximate for administrative purposes.

III. INFLUENT MONITORING REQUIREMENTS

Influent monitoring is required to determine compliance with NPDES permit conditions and to assess treatment plant performance.

A. Monitoring Location INF-001

1. The Discharger shall monitor influent to the facility at Monitoring Location INF-001 as follows:

Table E-2. Influent Monitoring

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
pH	pH Units	Grab	Weekly (Refer to Note a)	(Refer to Note b)
Total Suspended Solids (TSS)	mg/L	Grab	Weekly (Refer to Note a)	(Refer to Note b)
BOD ₅ 20°C	mg/L	Grab	Weekly (Refer to Note a)	(Refer to Note b)
Oil and Grease	mg/L	Grab (Refer to Note c)	Weekly (Refer to Note a)	(Refer to Note b)
Total Organic Carbon	mg/L	Grab	Quarterly	(Refer to Note b)
Nitrate Nitrogen	mg/L	Grab	Quarterly	(Refer to Note b)
Organic Nitrogen	mg/L	Grab	Quarterly	(Refer to Note b)
Total Phosphorus	mg/L	Grab	Quarterly	(Refer to Note b)
Dissolved Oxygen	mg/L	Grab	Quarterly	(Refer to Note b)
Arsenic	µg/L	Grab	Twice (Refer to Note d)	(Refer to Note b)
Cadmium	µg/L	Grab	Twice	(Refer to Note b)
Chromium VI (Refer to Note e)	µg/L	Grab	Twice	(Refer to Note b)
Copper	µg/L	Grab	Twice	(Refer to Note b)
Lead	µg/L	Grab	Twice	(Refer to Note b)
Mercury	µg/L	Grab	Twice	(Refer to Note f)
Nickel	µg/L	Grab	Twice	(Refer to Note b)
Selenium	µg/L	Grab	Twice	(Refer to Note b)
Silver	µg/L	Grab	Twice	(Refer to Note b)
Zinc	µg/L	Grab	Twice	(Refer to Note b)
Cyanide	µg/L	Grab	Twice	(Refer to Note b)
Phenolic Compounds (non-chlorinated)	µg/L	Grab	Twice	(Refer to Notes b and g)
Phenolic Compounds (chlorinated)	µg/L	Grab	Twice	(Refer to Notes b and g)
Endosulfan	µg/L	Grab	Twice	(Refer to Notes b and g)
Endrin	µg/L	Grab	Twice	(Refer to Note b)
Hexachlorocyclohexane (HCH)	µg/L	Grab	Twice	(Refer to Notes b and g)
Radioactivity (including gross alpha, gross, beta, combined radium-226 & radium-228, tritium, strontium-90 and uranium)	pCi/L	Grab	Twice	(Refer to Note b)
Acrolein	µg/L	Grab	Twice	(Refer to Note b)
Antimony	µg/L	Grab	Twice	(Refer to Note b)

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Bis(2-chloroethoxy) methane	µg/L	Grab	Twice	(Refer to Note b)
Bis(2-chloroisopropyl) ether	µg/L	Grab	Twice	(Refer to Note b)
Chlorobenzene	µg/L	Grab	Twice	(Refer to Note b)
Chromium (III) (Refer to Note e)	µg/L	Grab	Twice	(Refer to Note b)
Di-n-butyl phthalate	µg/L	Grab	Twice	(Refer to Note b)
Dichlorobenzenes	µg/L	Grab	Twice	(Refer to Notes b and g)
Diethyl phthalate	µg/L	Grab	Twice	(Refer to Note b)
Dimethyl phthalate	µg/L	Grab	Twice	(Refer to Note b)
4,6-dinitro-2-methylphenol	µg/L	Grab	Twice	(Refer to Note b)
2,4-dinitrophenol	µg/L	Grab	Twice	(Refer to Note b)
Ethylbenzene	µg/L	Grab	Twice	(Refer to Note b)
Fluoranthene	µg/L	Grab	Twice	(Refer to Note b)
Hexachlorocyclopentadiene	µg/L	Grab	Twice	(Refer to Note b)
Nitrobenzene	µg/L	Grab	Twice	(Refer to Note b)
Thallium	µg/L	Grab	Twice	(Refer to Note b)
Toluene	µg/L	Grab	Twice	(Refer to Note b)
Tributyltin	ng/L	Grab	Twice	(Refer to Note b)
1,1,1-Trichloroethane	µg/L	Grab	Twice	(Refer to Note b)
Acrylonitrile	µg/L	Grab	Twice	(Refer to Note b)
Aldrin	µg/L	Grab	Twice	(Refer to Note b)
Benzene	µg/L	Grab	Twice	(Refer to Note b)
Benzidine	µg/L	Grab	Twice	(Refer to Note b)
Beryllium	µg/L	Grab	Twice	(Refer to Note b)
Bis(2-chloroethyl) ether	µg/L	Grab	Twice	(Refer to Note b)
Bis(2-ethylhexyl) phthalate	µg/L	Grab	Twice	(Refer to Note b)
Carbon tetrachloride	µg/L	Grab	Twice	(Refer to Note b)
Chlordane	µg/L	Grab	Twice	(Refer to Notes b and g)
Chlorodibromomethane	µg/L	Grab	Twice	(Refer to Note b)
Chloroform	µg/L	Grab	Twice	(Refer to Note b)
DDT	µg/L	Grab	Twice	(Refer to Notes b and g)
1,4-dichlorobenzene	µg/L	Grab	Twice	(Refer to Note b)
3,3'-dichlorobenzidine	µg/L	Grab	Twice	(Refer to Note b)
1,2-Dichloroethane	µg/L	Grab	Twice	(Refer to Note b)
1,1-Dichloroethylene	µg/L	Grab	Twice	(Refer to Note b)
Dichlorobromomethane	µg/L	Grab	Twice	(Refer to Note b)
Dichloromethane	µg/L	Grab	Twice	(Refer to Note b)
1,3-Dichloropropene	µg/L	Grab	Twice	(Refer to Note b)

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Dieldrin	µg/L	Grab	Twice	(Refer to Note b)
2,4-dinitrotoluene	µg/L	Grab	Twice	(Refer to Note b)
1,2-diphenylhydrazine	µg/L	Grab	Twice	(Refer to Note b)
Halomethanes	µg/L	Grab	Twice	(Refer to Notes b and g)
Heptachlor	µg/L	Grab	Twice	(Refer to Note b)
Heptachlor epoxide	µg/L	Grab	Twice	(Refer to Note b)
Hexachlorobenzene	µg/L	Grab	Twice	(Refer to Note b)
Hexachlorobutadiene	µg/L	Grab	Twice	(Refer to Note b)
Hexachloroethane	µg/L	Grab	Twice	(Refer to Note b)
Isophorone	µg/L	Grab	Twice	(Refer to Note b)
N-Nitrosodimethylamine	µg/L	Grab	Twice	(Refer to Note b)
N-Nitrosodi-n-propylamine	µg/L	Grab	Twice	(Refer to Note b)
N-Nitrosodiphenylamine	µg/L	Grab	Twice	(Refer to Note b)
Polycyclic Aromatic Hydrocarbons (PAHs)	µg/L	Grab	Twice	(Refer to Notes b and g)
Polychlorinated Biphenyls (PCBs) total	µg/L	Grab	Twice	(Refer to Notes b and i)
TCDD Equivalents	pg/L	Grab	Twice	(Refer to Notes g and h)
1,1,2,2-Tetrachloroethane	µg/L	Grab	Twice	(Refer to Note b)
Tetrachloroethylene	µg/L	Grab	Twice	(Refer to Note b)
Toxaphene	µg/L	Grab	Twice	(Refer to Note b)
Trichloroethylene	µg/L	Grab	Twice	(Refer to Note b)
1,1,2-Trichloroethane	µg/L	Grab	Twice	(Refer to Note b)
2,4,6-Trichlorophenol	µg/L	Grab	Twice	(Refer to Note b)
Vinyl chloride	µg/L	Grab	Twice	(Refer to Note b)

Footnotes for Table E-2

- For intermittent discharges, the discharger shall monitor and record data for all the parameters on the first day of each such intermittent discharge, after which the frequencies of analysis given in the schedules shall apply for the duration of each such intermittent discharge. In no event shall the discharger be required to monitor and record data more often than twice the frequencies listed in the schedules.
- Pollutants shall be analyzed using the analytical methods described in 40 CFR Part 136; where no methods are specified for a given pollutant, those methods shall be approved by this Regional Water Board, the State Water Board, or USEPA Region 9. For any pollutant whose effluent limitation is lower than all the MLs specified in Appendix II of the Ocean Plan, the analytical method with the lowest ML must be selected.
- Oil and grease monitoring shall consist of a single grab sample at peak flow over a 24-hour period.
- The monitoring shall be conducted during the first and the last year of the permit term for all pollutants with minimum sampling frequency of twice.
- The Discharger may, at its option, meet the hexavalent chromium limitation by analyzing for total chromium rather than hexavalent chromium.
- USEPA Method 1631E, with a quantitation level of 0.5 ng/L, shall be used to analyze total mercury. If an alternative method with an equivalent or more sensitive method detection limit is approved in 40 CFR Part 136, the Discharger may use that method in lieu of USEPA Method 1631E.
- See Attachment A for definition of terms.

- h. USEPA Method 1613 shall be used to analyze TCDD equivalents. If an alternative method with an equivalent or more sensitive method detection limit is approved in 40 CFR Part 136, the Discharger may use that method in lieu of USEPA Method 1613.
- i. PCBs as Aroclors is the sum of PCB 1016, PCB 1221, PCB 1232, PCB 1242, PCB 1248, PCB 1254, and PCB 1260 when monitoring using USEPA method 608.3. PCBs as congeners shall mean the sum of 41 congeners when monitoring using USEPA proposed method 1668c. PCB-18, 28, 37, 44, 49, 52, 66, 70, 74, 77, 81, 87, 99, 101, 105, 110, 114, 118, 119, 123, 126, 128, 138, 149, 151, 153, 156, 157, 158, 167, 168, 169, 170, 177, 180, 183, 187, 189, 194, 201, and 206 shall be individually quantified, or quantified as co-elutions as appropriate. PCBs as congeners shall be analyzed using method EPA 1668C for three years and may be discontinued for the remaining life of this Order if none of the PCB congeners are detected using method EPA 1668C. USEPA recommends that until USEPA proposed method 1668C for PCBs is incorporated into 40 CFR 136, Permittees should use for discharge monitoring reports/State monitoring reports: (1) USEPA method 608.3 for monitoring data, reported as aroclor results, that will be used for assessing compliance with WQBELs (if applicable) and (2) USEPA proposed method 1668C for monitoring data, reported as 41 congener results, that will be used for informational purposes.

End of Footnotes for Table E-2

IV. EFFLUENT MONITORING REQUIREMENTS

Effluent monitoring is required to determine compliance with National Pollutant Discharge Elimination System (NPDES) permit conditions, including receiving water limitations; assess and improve plant performance and identify operational problems; provide information on wastewater characteristics and flows for use in interpreting water quality and biological data; and to conduct reasonable potential analyses.

A. Monitoring Location EFF-001

1. The Discharger shall monitor effluent at EFF-001 as follows. If more than one analytical test method is listed for a given parameter, the Discharger must select from the listed methods and corresponding Minimum Level:

Table E-3. Effluent Monitoring

Parameter	Units	Sample Type (Refer to Note a)	Minimum Sampling Frequency (refer to note b)	Required Analytical Test Method and (Minimum Level, units), respectively
Flow	mgd	Recorder/totalizer	Continuous (refer to note c)	(Refer to note d)
BOD ₅ 20°C	mg/L	Grab	Weekly	(Refer to note d)
TSS	mg/L	Grab	Weekly	(Refer to note d)
pH	Standard units	Grab	Weekly	(Refer to note d)
Oil and Grease	mg/L	Grab (Refer to note e)	Weekly	(Refer to note d)
Temperature	°F	Grab	Monthly	(Refer to note d)
Settleable Solids	mL/L	Grab (Refer to note e)	Monthly	(Refer to note d)
Dissolved Oxygen	mg/L	Grab	Monthly	(Refer to note d)
Turbidity	NTU	Grab	Monthly	(Refer to note d)

Parameter	Units	Sample Type (Refer to Note a)	Minimum Sampling Frequency (refer to note b)	Required Analytical Test Method and (Minimum Level, units), respectively
Total Dissolved Solids	mg/L	Grab	Monthly	(Refer to note d)
Total coliform	CFU/100 mL or MPN/100 mL	Grab	Monthly	(Refer to note d)
Fecal Coliform	CFU/100mL or MPN/100mL	Grab	Monthly	(Refer to note d)
Enterococcus (refer to note f)	CFU/100mL or MPN/100mL	Grab	Monthly	(Refer to note d)
Total Organic Carbon	mg/L	Grab	Quarterly	(Refer to note d)
Nitrate Nitrogen	mg/L	Grab	Quarterly	(Refer to note d)
Organic Nitrogen	mg/L	Grab	Quarterly	(Refer to note d)
Total Phosphorus	mg/L	Grab	Quarterly	(Refer to note d)
Ammonia Nitrogen	mg/L	Grab	Quarterly	(Refer to note d)
Arsenic	µg/L	Grab	Twice (Refer to note g)	(Refer to note d)
Cadmium	µg/L	Grab	Twice	(Refer to note d)
Chromium (VI) (refer to note h)	µg/L	Grab	Twice	(Refer to note d)
Copper	µg/L	Grab	Twice	(Refer to note d)
Lead	µg/L	Grab	Twice	(Refer to note d)
Mercury	µg/L	Grab	Twice	(Refer to note i)
Nickel	µg/L	Grab	Twice	(Refer to note d)
Selenium	µg/L	Grab	Twice	(Refer to note d)
Silver	µg/L	Grab	Twice	(Refer to note d)
Zinc	µg/L	Grab	Twice	(Refer to note d)
Cyanide	mg/L	Grab	Twice	(Refer to note d)
Total Chlorine Residual	µg/L	Grab	Twice	(Refer to note d)
Ammonia Nitrogen	mg/L	Grab	Twice	(Refer to note d)
Phenolic compounds (non-chlorinated)	µg/L	Grab	Twice	(Refer to notes d and j)
Phenolic compounds (chlorinated)	µg/L	Grab	Twice	(Refer to notes d and j)
Endosulfan	µg/L	Grab	Twice	(Refer to notes d and j)
Endrin	µg/L	Grab	Twice	(Refer to note d)
HCH	µg/L	Grab	Twice	(Refer to notes d and j)
Radioactivity (including gross alpha, gross beta, combined radium-226 & radium-228, tritium, strontium-90 and uranium)	pCi/L	Grab	Twice	(Refer to note k)

Parameter	Units	Sample Type (Refer to Note a)	Minimum Sampling Frequency (refer to note b)	Required Analytical Test Method and (Minimum Level, units), respectively
Acrolein	µg/L	Grab	Twice	(Refer to note d)
Antimony	µg/L	Grab	Twice	(Refer to note d)
Bis(2-chloroethoxy) methane	µg/L	Grab	Twice	(Refer to note d)
Bis(2-chloroisopropyl) ether	µg/L	Grab	Twice	(Refer to note d)
Chlorobenzene	µg/L	Grab	Twice	(Refer to note d)
Chromium (III)	µg/L	Grab	Twice	(Refer to note d and h)
Di-n-butyl phthalate	µg/L	Grab	Twice	(Refer to note d)
Dichlorobenzenes ¹⁷	µg/L	Grab	Twice	(Refer to notes d and j)
Diethyl Phthalate	µg/L	Grab	Twice	(Refer to note d)
Dimethyl Phthalate	µg/L	Grab	Twice	(Refer to note d)
4,6-dinitro-2-methylphenol	µg/L	Grab	Twice	(Refer to note d)
2,4-dinitrophenol	µg/L	Grab	Twice	(Refer to note d)
Ethylbenzene	µg/L	Grab	Twice	(Refer to note d)
Fluoranthene	µg/L	Grab	Twice	(Refer to note d)
Hexachlorocyclopentadiene	µg/L	Grab	Twice	(Refer to note d)
Nitrobenzene	µg/L	Grab	Twice	(Refer to note d)
Thallium	µg/L	Grab	Twice	(Refer to note d)
Toluene	µg/L	Grab	Twice	(Refer to note d)
Tributyltin	ng/L	Grab	Twice	(Refer to note d)
1,1,1-Trichloroethane	µg/L	Grab	Twice	(Refer to note d)
Acrylonitrile	µg/L	Grab	Twice	(Refer to note d)
Aldrin	µg/L	Grab	Twice	(Refer to note d)
Benzene	µg/L	Grab	Twice	(Refer to note d)
Benzidine	µg/L	Grab	Twice	(Refer to note d)
Beryllium	µg/L	Grab	Twice	(Refer to note d)
Bis(2-chloroethyl) ether	µg/L	Grab	Twice	(Refer to note d)
Bis(2-ethylhexyl) phthalate	µg/L	Grab	Twice	(Refer to note d)
Carbon Tetrachloride	µg/L	Grab	Twice	(Refer to note d)
Chlordane ¹⁷	µg/L	Grab	Twice	(Refer to notes d and j)
Chlorodibromomethane	µg/L	Grab	Twice	(Refer to note d)
Chloroform	µg/L	Grab	Twice	(Refer to note d)
DDT ¹⁷	µg/L	Grab	Twice	(Refer to notes d and j)
1,4-dichlorobenzene	µg/L	Grab	Twice	(Refer to note d)
3,3'-dichlorobenzidine	µg/L	Grab	Twice	(Refer to note d)
1,2-dichloroethane	µg/L	Grab	Twice	(Refer to note d)
1,1-dichloroethylene	µg/L	Grab	Twice	(Refer to note d)
Dichlorobromomethane	µg/L	Grab	Twice	(Refer to note d)

Parameter	Units	Sample Type (Refer to Note a)	Minimum Sampling Frequency (refer to note b)	Required Analytical Test Method and (Minimum Level, units), respectively
Dichloromethane	µg/L	Grab	Twice	(Refer to note d)
1,3-Dichloropropene	µg/L	Grab	Twice	(Refer to note d)
Dieldrin	µg/L	Grab	Twice	(Refer to note d)
2,4-dinitrotoluene	µg/L	Grab	Twice	(Refer to note d)
1,2-diphenylhydrazine	µg/L	Grab	Twice	(Refer to note d)
Halomethanes ¹⁷	µg/L	Grab	Twice	(Refer to notes d and j)
Heptachlor	µg/L	Grab	Twice	(Refer to note d)
Heptachlor Epoxide	µg/L	Grab	Twice	(Refer to note d)
Hexachlorobenzene	µg/L	Grab	Twice	(Refer to note d)
Hexachlorobutadiene	µg/L	Grab	Twice	(Refer to note d)
Hexachloroethane	µg/L	Grab	Twice	(Refer to note d)
Isophorone	µg/L	Grab	Twice	(Refer to note d)
N-Nitrosodimethylamine	µg/L	Grab	Twice	(Refer to note d)
N-Nitrosodi-n-propylamine	µg/L	Grab	Twice	(Refer to note d)
N-Nitrosodiphenylamine	µg/L	Grab	Twice	(Refer to note d)
PAHs ¹⁶	µg/L	Grab	Twice	(Refer to note d)
PCBs (total)	µg/L	Grab	Twice	(Refer to note d and l)
TCDD Equivalents	pg/L	Grab	Twice	(Refer to note d and m)
1,1,2,2-Tetrachloroethane	µg/L	Grab	Twice	(Refer to note d)
Tetrachloroethylene	µg/L	Grab	Twice	(Refer to note d)
Toxaphene	µg/L	Grab	Twice	(Refer to note d)
Trichloroethylene	µg/L	Grab	Twice	(Refer to note d)
1,1,2-Trichloroethane	µg/L	Grab	Twice	(Refer to note d)
2,4,6-Trichlorophenol	µg/L	Grab	Twice	(Refer to note d)
Vinyl chloride	µg/L	Grab	Twice	(Refer to note d)
Methyl-tert-butyl-ether	µg/L	Grab	Twice	(Refer to note d)

Footnotes for Table E-2

- For 24-hour composite samples, if the duration of the discharge is less than 24 hours but greater than 8 hours, at least eight flow-weighted samples shall be obtained during the discharge period and composited. For discharge durations of less than eight hours, individual grab samples may be substituted. A grab sample is an individual sample collected in less than 15 minutes.
- Weekly and monthly sampling shall be arranged so that each day of the week is represented over a seven week or month period, except Saturday and Sunday. The schedule should be repeated every seven weeks or months.
- When continuous monitoring of flow is required, total daily flow, monthly average flow, and instantaneous peak daily flow (24-hour basis) shall be reported. Actual monitored flow shall be reported (not design capacity).
- Pollutants shall be analyzed using the analytical methods described in 40 CFR Part 136; where no methods are specified for a given pollutant, those methods shall be approved by this Regional Water Board, the State Water Board, or USEPA Region 9. For any pollutant whose effluent limitation is lower

- than all the MLs specified in Appendix II of the Ocean Plan, the analytical method with the lowest ML must be selected.
- e. Oil and grease, and settleable solids monitoring shall consist of a single grab sample at peak flow over a 24-hour period.
 - f. USEPA recommends using USEPA Method 1600 or other equivalent method to measure culturable enterococci.
 - g. The monitoring shall be conducted during the first and the last year of the permit term for all pollutants with minimum sampling frequency of twice.
 - h. The Discharger may, at its option, meet the hexavalent chromium limitation by analyzing for total chromium rather than hexavalent chromium.
 - i. USEPA Method 1631E, with a quantitation level of 0.5 ng/L, shall be used to analyze total mercury. If an alternative method with an equivalent or more sensitive method detection limit is approved in 40 CFR Part 136, the Discharger may use that method in lieu of USEPA Method 1631E.
 - j. See Attachment A for definition of terms.
 - k. Analyze these radionuclides by the following USEPA methods: Method 900.0 (or Standard Method 7110 if there is interference due to high dissolved solids in the sample) for gross alpha and gross beta, Method 903.0 or 903.1 for radium-226, Method 904.0 for radium-228, Method 906.0 for tritium, Method 905.0 for strontium-90, and Method 908.0 for uranium. Analysis for combined radium-226 and 228 shall be conducted only if gross alpha or gross beta results for the same sample exceed 15 pCi/L or 50 pCi/L, respectively. If radium-226 and 228 exceeds 5.0 pCi/L, then analyze for tritium, strontium-90, and uranium.
 - l. PCBs as Aroclors is the sum of PCB 1016, PCB 1221, PCB 1232, PCB 1242, PCB 1248, PCB 1254, and PCB 1260 when monitoring using USEPA method 608.3. PCBs as congeners shall mean the sum of 41 congeners when monitoring using USEPA proposed method 1668c. PCB-18, 28, 37, 44, 49, 52, 66, 70, 74, 77, 81, 87, 99, 101, 105, 110, 114, 118, 119, 123, 126, 128, 138, 149, 151, 153, 156, 157, 158, 167, 168, 169, 170, 177, 180, 183, 187, 189, 194, 201, and 206 shall be individually quantified, or quantified as co-elutions as appropriate. PCBs as congeners shall be analyzed using method EPA 1668C for three years and may be discontinued for the remaining life of this Order if none of the PCB congeners are detected using method EPA 1668C. USEPA recommends that until USEPA proposed method 1668C for PCBs is incorporated into 40 CFR 136, Permittees should use for discharge monitoring reports/State monitoring reports: (1) USEPA method 608.3 for monitoring data, reported as aroclor results, that will be used for assessing compliance with WQBELs (if applicable) and (2) USEPA proposed method 1668C for monitoring data, reported as 41 congener results, that will be used for informational purposes.
 - m. USEPA Method 1613 shall be used to analyze TCDD equivalents. If an alternative method with an equivalent or more sensitive method detection limit is approved in 40 CFR Part 136, the Discharger may use that method in lieu of USEPA Method 1613.

End of Footnotes for Table E-3

V. WHOLE EFFLUENT TOXICITY TESTING REQUIREMENTS—NOT APPLICABLE

Whole Effluent Toxicity (WET) testing is not required for this discharge due to the negligible potential impact to the receiving water. Please see the Section IV.C.6 of the Fact Sheet for detailed discussion.

VI. LAND DISCHARGE MONITORING REQUIREMENTS - NOT APPLICABLE

VII. RECYCLING MONITORING REQUIREMENTS - NOT APPLICABLE

VIII. RECEIVING WATER MONITORING REQUIREMENTS

The receiving water monitoring component for Discharge Points 001, 002, 003, and 004, is not prescribed in this Order because it is covered under the JWPCP NPDES permit (CA0053813), monitoring and reporting program CI-1758.

IX. OTHER MONITORING REQUIREMENTS

A. Biosolids and Sludge Management

The sludge from the primary treatment chamber will be periodically removed and hauled off-site for treatment and disposal at the JWPCP. The Discharger shall comply with all Clean Water Act and regulatory requirements of 40 CFR § 257, 258, 501, and 503, including all applicable monitoring, recordkeeping, and reporting requirements.

X. REPORTING REQUIREMENTS

A. General Monitoring and Reporting Requirements

1. The Discharger shall comply with all Standard Provisions (Attachment D) related to monitoring, reporting, and recordkeeping.
2. If there is no discharge during any reporting period, the report shall so state.
3. Each monitoring report shall contain a separate section titled "Summary of Non-compliance" which discusses the compliance record and the corrective actions taken or planned that may be needed to bring the discharge into full compliance with waste discharge requirements. This section shall clearly list all non-compliance with discharge requirements as well as all excursions of effluent limitations.
4. The Discharger shall inform the Regional Water Board well in advance of any proposed construction or maintenance activity, or modification to the POTW that could potentially affect compliance with applicable requirements.
5. The date and time of sampling (as appropriate) shall be reported with the analytical values determined.
6. The pollutant mass discharged shall be reported in addition to the reported concentration for those pollutants with mass-based final effluent limitations.
7. The laboratory conducting analyses shall be certified by ELAP, in accordance with CWC section 13176, or approved by the Regional Water Board Executive Officer, in consultation with the State Water Board's Quality Assurance Program, and USEPA for that parameter and must include quality assurance/quality control (QA/QC) data in their reports. A copy of the laboratory certification shall be provided each time a new/renewal certification is obtained from ELAP and must be submitted with the annual summary report. Each monitoring report must affirm in writing that: "All analyses were conducted at a laboratory certified for such analyses by the State Water Resources Control Board Division of Drinking Water or approved by the Regional Water Board Executive Officer (in consultation with the State Water Board's Quality Assurance Program) and USEPA, and in accordance with current USEPA guideline procedures or as specified in this MRP."
8. Upon request by the Discharger, the Regional Water Board, in consultation with the State Water Board's Quality Assurance Program and/or USEPA, may establish an ML that is not contained in Appendix II of the 2019 Ocean Plan, to be included in the Discharger's NPDES permit, in any of the following situations:

- a. When the pollutant under consideration is not included in Appendix II;
- b. When the Discharger agrees to use a test method that is more sensitive than those specified in 40 CFR Part 136 (most recent revision);
- c. When the Discharger agrees to use an ML lower than those listed in Appendix II;
- d. When the Discharger demonstrates that the calibration standard matrix is sufficiently different from that used to establish the ML in Appendix II and proposes an appropriate ML for their matrix; or
- e. When the Discharger uses a method whose quantification practices are not consistent with the definition of an ML. Examples of such methods are the USEPA-approved Method 1613 for dioxins and furans, Method 1624 for volatile organic substances, and Method 1625 for semi-volatile organic substances. In such cases, the Discharger, Regional Water Board, State Water Board and USEPA shall agree on a lowest quantifiable limit, and that limit will substitute for the ML for reporting and compliance determination purposes.

B. Self-Monitoring Reports (SMRs)

1. The Discharger shall electronically submit SMRs using the State Water Board's California Integrated Water Quality System (CIWQS) Program website (http://www.waterboards.ca.gov/water_issues/programs/ciwqs/). The CIWQS website will provide additional information for SMR submittal in the event there will be a planned service interruption for electronic submittal.
 - a. The Discharger shall report in the SMR the results for all monitoring specified in this MRP. The Discharger shall submit monthly, quarterly, semiannual, and annual SMRs including the results of all required monitoring using USEPA-approved test methods or other test methods specified in this Order. SMRs are to include all new monitoring results obtained since the last SMR was submitted. If the Discharger monitors any pollutant more frequently than required by this Order, the results of this monitoring shall be included in the calculations and reporting of the data submitted in the SMR.
 - b. Monitoring periods and reporting for all required monitoring shall be completed according to the following schedule, except where specific monitoring periods and reporting dates are required elsewhere in the Order:

Table E-4. Monitoring Periods and Reporting Schedule

Sampling Frequency	Monitoring Period Begins On:	Monitoring Period	SMR Due Date
Continuous	Order Effective Date	All	Submit with monthly SMR
Hourly	Order Effective Date	Hourly	Submit with monthly SMR
Daily	Order Effective Date	(Midnight through 11:59 PM) or any 24-hour period that reasonably represents a calendar day for purposes of sampling.	Submit with monthly SMR

Sampling Frequency	Monitoring Period Begins On:	Monitoring Period	SMR Due Date
Weekly	Sunday following Order effective date or on Order effective date if on a Sunday	Sunday through Saturday	Submit with monthly SMR
Monthly	First day of calendar month following permit effective date or on permit effective date if that date is first day of the month	1 st day of calendar month through last day of calendar month	By the 15 th day of the second month after the month of sampling
Quarterly	Closest of January 1, April 1, July 1, or October 1 following (or on) permit effective date	January 1 through March 31 April 1 through June 30 July 1 through September 30 October 1 through December 31	May 15 August 15 November 15 February 15
Semiannually	Closest of January 1 or July 1 following (or on) permit effective date	January 1 through June 30 July 1 through December 31	August 15 February 15
Annually	January 1 following (or on) permit effective date	January 1 through December 31	April 15

- c. Reporting Protocols. The Discharger shall report with each sample result the applicable reported Minimum Level (reported ML, also known as the Reporting Level, or RL) and the current Method Detection Limit (MDL), as determined by the procedure in 40 CFR Part 136.

The Discharger shall report the results of analytical determinations for the presence of chemical constituents in a sample using the following reporting protocols:

- i. Sample results greater than or equal to the reported ML shall be reported as measured by the laboratory (i.e., the measured chemical concentration in the sample).
- ii. Sample results less than the reported ML, but greater than or equal to the laboratory's MDL, shall be reported as "Detected, but Not Quantified," or DNQ. The estimated chemical concentration of the sample shall also be reported.

For the purposes of data collection, the laboratory shall write the estimated chemical concentration next to DNQ. The laboratory may, if such information is available, include numerical estimates of the data quality for the reported result. Numerical estimates of data quality may be percent accuracy ($\pm$ a percentage of the reported value), numerical ranges (low to high), or any other means considered appropriate by the laboratory.

- d. Sample results less than the laboratory's MDL shall be reported as "Not Detected," or ND.
- e. Dischargers are to instruct laboratories to establish calibration standards so that the ML value (or its equivalent if there is differential treatment of samples relative to calibration standards) is the lowest calibration standard.

At no time is the Discharger to use analytical data derived from extrapolation beyond the lowest point of the calibration curve.

- f. Multiple Sample Data. When determining compliance with a measure of central tendency (arithmetic mean, geometric mean, median, etc.) of multiple sample analyses and the data set contains one or more reported determinations of “Detected, but Not Quantified” (DNQ) or “Not Detected” (ND), the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:
- g. The data set shall be ranked from low to high, ranking the reported ND determinations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND or DNQ determinations is unimportant.
- h. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both points are ND or DNQ, in which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.
- i. The Discharger shall submit SMRs in accordance with the following requirements:
- j. The Discharger shall arrange all reported data in a tabular format. The data shall be summarized to clearly illustrate whether the facility is operating in compliance with interim and/or final effluent limitations. The Discharger is not required to duplicate the submittal of data that is entered in a tabular format within CIWQS. When electronic submittal of data is required and CIWQS does not provide for entry into a tabular format within the system, the Discharger shall electronically submit the data in a tabular format as an attachment.
- k. The Discharger shall attach a cover letter to the SMR. The information contained in the cover letter shall clearly identify violations of the waste discharge requirements; discuss corrective actions taken or planned; and the proposed time schedule for corrective actions. Identified violations must include a description of the requirement that was violated and a description of the violation.

C. Discharge Monitoring Reports (DMRs)

DMRs are USEPA reporting requirements. The Discharger shall electronically certify and submit DMRs together with SMRs using Electronic Self-Monitoring Reports module eSMR 2.5 or any upgraded version. Electronic DMR submittal shall be in addition to electronic SMR submittal. Information about electronic DMR submittal is available at the DMR website at:

http://www.waterboards.ca.gov/water_issues/programs/discharge_monitoring.

D. Other Reports

1. The Discharger shall report the results of any special studies, acute and chronic toxicity testing, TRE/TIE, BMPs, and PMP required by Special Provisions – VI.C. The Discharger shall submit reports in compliance with SMR reporting requirements described in subsection X.B above.

2. Annual Summary Report

By April 15 of each year, the Discharger shall submit an annual report containing a discussion of the previous year's influent/effluent analytical results (including the average and peak flow for the year). The annual report shall contain an overview of any plans for upgrades to the treatment plant's collection system, the treatment processes, the outfall system, or any changes that may affect the quality of the final effluent. The Discharger shall submit annual reports to the Regional Water Board in accordance with the requirements described in subsection X.B.7. above.

Each annual monitoring report shall contain a separate section titled "Reasonable Potential Analysis" which discusses whether reasonable potential was triggered for pollutants which do not have a final effluent limitation in the NPDES permit. This section shall contain the following statement: "The analytical results for this sampling period did/ did not trigger reasonable potential." If reasonable potential was triggered, the following additional information shall be provided:

- a. A list of the pollutants(s) that triggered reasonable potential;
 - b. The criteria that was exceeded for each given pollutant;
 - c. The concentration of the pollutant(s);
 - d. The test method used to analyze the sample; and,
 - e. The date and time of sample collection.
3. The Discharger shall submit to the Regional Water Board, together with the first monitoring report required by this permit, a list of all chemicals and proprietary additives which could affect this waste discharge, including quantities of each. Any subsequent changes in types and/or quantities shall be reported promptly.
 4. Technical Report on Preventive and Contingency Plans
The Regional Water Board requires the Discharger to file with the Regional Water Board, within 90 days after the effective date of this Order, a technical report on its preventive (failsafe) and contingency (cleanup) plans for controlling accidental discharges, and for minimizing the effect of such events. The technical report should:
 - a. Identify the possible sources of accidental loss, untreated waste bypass, and contaminated drainage. Loading and storage areas, power outage, waste treatment unit outage, and failure of process equipment, tanks, and pipes should be considered.
 - b. Evaluate the effectiveness of present facilities and procedures and state when they become operational.

- c. Describe facilities and procedures needed for effective preventive and contingency plans.
- d. Predict the effectiveness of the proposed facilities and procedures and provide an implementation schedule contingent on interim and final dates when they will be constructed, implemented, or operational.

ATTACHMENT F – FACT SHEET

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ATTACHMENT F – FACT SHEET

As described in section II.B of this Order, the Regional Water Board incorporates this Fact Sheet as findings of the Regional Water Board supporting the issuance of this Order. This Fact Sheet includes the legal requirements and technical rationale that serve as the basis for the requirements of this Order.

This Order has been prepared under a standardized format to accommodate a broad range of discharge requirements for dischargers in California. Only those sections or subsections of this Order that are specifically identified as “not applicable” have been determined not to apply to this Discharger. Sections or subsections of this Order not specifically identified as “not applicable” are fully applicable to this Discharger.

I. PERMIT INFORMATION

The following table summarizes administrative information related to the facility.

Table F-1. Facility Information

Facility Information	Description
WDID	4B190107106
Discharger	Los Angeles County Department of Beaches and Harbors
Name of Facility	Royal Palms Public Restroom
Facility Address	2100 Paseo del Mar
	San Pedro, CA 90732
	Los Angeles County
Facility Contact, Title and Phone	Zemedkun Solomon, Division Chief-Accounting, (424) 526-7795
Authorized Person to Sign and Submit Reports	Salim Sioufi, Project Manager, (626) 300-2361
Mailing Address	13575 Mindanao Way, Marina del Rey, CA 90292
Billing Address	13575 Mindanao Way, Marina del Rey, CA 90292
Type of Facility	Publicly-Owned Treatment Works
Major or Minor Facility	Minor
Threat to Water Quality	3
Complexity	B
Pretreatment Program	No
Recycling Requirements	None
Facility Permitted Flow	0.0005 million gallons per day (mgd)
Facility Design Flow	0.0005 mgd
Watershed	Santa Monica Bay Watershed Management Area
Receiving Water	Pacific Ocean
Receiving Water Type	Ocean waters

- A. The Los Angeles County Department of Beaches and Harbors (Discharger) owns the Royal Palms Public Restroom (Facility) including the treatment system yet to be constructed, a Publicly Owned Treatment Works (POTW), located at 2100 Paseo del Mar, San Pedro, California. The Discharger also operates the Facility and will operate the treatment system once it is installed.

For the purposes of this Order, references to the “discharger” or “permittee” in applicable federal and state laws, regulations, plans, or policy are held to be equivalent to references to the Discharger herein.

- B. The Facility discharges wastewater to the Pacific Ocean, a water of the United States, via JWPCP outfalls. This is the first National Pollutant Discharge Elimination System (NPDES) permit for the Facility. Attachment B provides a map of the area around the Facility. Attachment C provides a flow schematic of the Facility.
- C. The Discharger filed a report of waste discharge and submitted an application for issuance of its waste discharge requirements (WDRs) and NPDES permit on May 22, 2019. Supplemental information was requested on June 6, 2019 and received on August 28, 2019. Additional correspondence occurred with the Discharger throughout September 2019 and a revised application was received on October 14, 2019. The application was deemed complete on October 22, 2019. Subsequently, on January 15, 2020 the Regional Water Board received a revised application including modifications to the disinfection method used in the treatment system. A site visit will be conducted after installation is complete to document the facility treatment process and collect additional data to inform decisions regarding future permit limitations and requirements for waste discharge.
- D. Regulations at Title 40 of the Code of Federal Regulations (40 CFR) section 122.46 limit the duration of NPDES permits to a fixed term not to exceed five years. Accordingly, Table 3 of this Order limits the duration of the discharge authorization. However, pursuant to California Code of Regulations, title 23, section 2235.4, the terms and conditions of an expired permit are automatically continued pending reissuance of the permit if the Discharger complies with all federal NPDES requirements for continuation of expired permits.

II. FACILITY DESCRIPTION

A. Description of Wastewater and Biosolids Treatment and Controls

1. The Facility is one of two public restrooms located on Royal Palms State Beach. The Facility is located by the shoreline near the underground ocean outfall manifold owned by JWPCP, while the other restroom is located at higher elevation near the public road, Paseo del Mar. This permit is for the restroom and its treatment system located by the shoreline near the underground ocean outfall manifold. The facility has women’s and men’s restrooms, each of which includes one low-flow toilet and one sink. The men’s restroom also has a waterless urinal. The restrooms also have two drinking water fountains and floor drains. Wastewater coming from the floor drains flows into an existing sand trap chamber. Currently, untreated wastewater from the restrooms, including water from the sand trap and drinking fountains, is pumped approximately 125 feet to a sewer collection system flowing to the JWPCP for treatment. The pipeline to the sewer crosses private property, which can present challenges when access is needed for maintenance. The new process will treat wastewater onsite and convey it to a nearby manhole, which conveys water to the ocean outfall manifold at White Point within the Palos Verdes Peninsula Subwatershed that is part of the Santa Monica Bay Watershed.

2. The treatment system has a design flow of 500 gallons per day (GPD). The annual average daily flow from the Facility is 70 GPD and the maximum daily flow rate is 160 GPD. The permitted flow under this Order is 500 GPD.
3. The treatment system has some similarities to those used at Dan Blocker Beach and Zuma Beach, which LACDBH also owns. Wastewater from the restrooms flows into underground primary and secondary treatment units before being disinfected and discharged. The primary treatment unit includes a septic chamber and pumping unit. The septic chamber provides primary clarifying treatment to separate solids, including settleable biochemical oxygen demand (BOD) and total suspended solids (TSS). Wastewater from the secondary treatment unit is chemically dosed with sodium hydroxide and returned to the septic tank for alkalinity control and to condition the wastewater in preparation for secondary treatment. Wastewater overflows from the septic chamber into the pumping unit where it is pumped into the secondary treatment chamber. The secondary treatment chamber (labeled AX-Max Treatment Unit in Attachment C – Flow Schematic) is partially buried and includes a fixed film media biological treatment unit over a recirculation well, two UV disinfection units, an effluent well, and recirculation and discharge pumps. Wastewater continuously recirculates from the recirculation well through the fixed film media. The secondary treatment provides additional soluble BOD and TSS removal and some ammonia removal. Following secondary treatment, the wastewater is disinfected by flowing through two UV disinfection units and into the effluent well. The secondary treated and disinfected wastewater is then pumped intermittently to manhole MH J204 after a high-level threshold is reached in the effluent well. The effluent mixes with secondary treated water from JWPCP and flows to the outfall manifold into the Pacific Ocean. Any necessary maintenance will be performed by a contractor also used for the systems at Dan Blocker Beach and Zuma Beach. Sludge generated in the facility will be hauled to JWPCP for treatment.

B. Discharge Points and Receiving Waters

1. A new force main pipeline will be installed to convey secondary-treated wastewater to pressure manhole MH J204. The pipeline will connect to the manhole through an isolation valve so that it can be completely isolated for service.
2. Manhole MH J204 is a part of the ocean outfall system owned and operated by Los Angeles County Sanitation Districts, which discharges treated wastewater through four outfalls into the Santa Monica Bay Watershed Management Area of the Pacific Ocean off the Palos Verdes Peninsula at White Point. Discharge Points 001, 002, 003, and 004 in this Order correspond to the discharge points in the JWPCP NPDES permit Order No. R4-2017-0180. The table below provides a description of the four JWPCP discharge points.

Table F-2. Discharge Point Descriptions

Discharge Point	Description
001	White Point 120-inch ocean outfall (Latitude 33.6892, Longitude -118.3167) This outfall routinely discharges approximately 65% of the combined effluent from the Royal Palms Restrooms and JWPCP. It discharges south of the shoreline off White Point, San Pedro. The outfall is 7440 ft. long to the beginning of a single L-shaped diffuser leg which is 4440 ft. long. Depth at the beginning of the diffuser is 167 ft. and at the end of the diffuser is 190 ft.
002	White Point 90-inch ocean outfall (Latitude 33.7008, Longitude -118.3381) This outfall routinely discharges approximately 35% of the combined effluent from the Royal Palms Restrooms and JWPCP. It discharges southwest of the shoreline off White Point, San Pedro. The outfall is 7982 ft. long to the beginning of a y-shaped diffuser with two legs. Each leg is 1208 ft. long. Depth at the beginning of the diffusers is 196 ft. and at the end of the diffusers is 210 ft.
003	White Point 72-inch ocean outfall (Latitude 33.7008, Longitude -118.3300) This outfall is used only during times of heavy rains to provide hydraulic relief for flow in the outfall system. When used, it discharges off the White Point shoreline between Discharge Points 001 and 002 and about 160 ft. below the ocean surface. The outfall is about 6500 ft. long and connects to a diffuser with two legs, each approximately 200 ft. long.
004	White Point 60-inch ocean outfall (Latitude 33.7061, Longitude -118.3283) This outfall is used as a standby to provide additional hydraulic relief during the heaviest flow. When used, it discharges off the White Point shoreline between Discharge Serial Nos. 002 and 003 and about 110 ft. below the ocean surface. The outfall is about 5000 ft. long and connects to a single, very short diffuser.

3. The Santa Monica Bay (SMB) watershed is home to unique wetland, sand dune, and open ocean ecosystems that support a rich diversity of wildlife and serve as migration stopovers for marine mammals and birds. The SMB and its beaches are invaluable recreational resources and important sources of revenue for the region. The SMB is heavily used for fishing, swimming, surfing, diving, and other activities classified as water contact and noncontact recreation. Additionally, the Palos Verdes Peninsula coastline is designated as a Significant Ecological Area and has marine protected areas. Receiving water monitoring and regional monitoring for the outfall is covered under Order R4-2017-0180.

C. Summary of Existing Requirements and Self-Monitoring Report (SMR) Data – NOT APPLICABLE

D. Compliance Summary – NOT APPLICABLE

E. Planned Changes – NOT APPLICABLE

III. APPLICABLE PLANS, POLICIES, AND REGULATIONS

The requirements contained in this Order are based on the requirements and authorities described in this section.

A. Legal Authorities

This Order serves as WDRs pursuant to article 4, chapter 4, division 7 of the California Water Code (commencing with section 13260). This Order is also issued pursuant to section 402 of the federal Clean Water Act (CWA) and implementing

regulations adopted by the USEPA and chapter 5.5, division 7 of the Water Code (commencing with section 13370). It shall serve as an NPDES permit authorizing the Discharger to discharge into waters of the United States at the discharge location described in Table 2 subject to the WDRs in this Order.

B. California Environmental Quality Act (CEQA)

Under Water Code section 13389, this action to adopt an NPDES permit is exempt from the provisions of Chapter 3 of CEQA, (commencing with section 21100) of Division 13 of the Public Resources Code.

C. State and Federal Laws, Regulations, Policies, and Plans

- 1. Water Quality Control Plan.** The Regional Water Board's Water Quality Control Plan for the Los Angeles Region (hereinafter Basin Plan) designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve those objectives for the Pacific Ocean. Requirements in this Order implement the Basin Plan.

Beneficial uses applicable to the Pacific Ocean are as follows:

Table F-3. Basin Plan Beneficial Uses

Discharge Point	Receiving Water Name	Beneficial Use(s)
001 002 003 004	Pacific Ocean Offshore	<u>Existing:</u> Industrial Service Supply (IND); Navigation (NAV); Commercial and Sport Fishing (COMM); Water Contact Recreation (REC-1); Non-Contact Water Recreation (REC-2); Marine Habitat (MAR); Wildlife Habitat (WILD); Rare, Threatened, or Endangered Species (RARE), Migration of Aquatic Organisms (MIGR), Spawning, Reproduction, and/or Early Development (SPWN), and Shellfish Harvesting (SHELL). <u>Potential:</u> None.
001 002 003 004	Pacific Ocean Nearshore Zone (The zone bounded by the shoreline and a line 1000 feet from the shoreline or the 30-foot depth contours, whichever is further from the shoreline)	<u>Existing</u> IND; NAV; REC-1; REC-2; COMM; MAR; WILD; Preservation of Biological Habitats (BIOL); RARE; MIGR; SPWN; and SHELL. <u>Potential:</u> None.
001 002 003 004	Point Vicente Beach Royal Palms Beach White Point Beach	<u>Existing:</u> NAV; REC-1; REC-2; COMM; MAR; WILD; and SHELL. <u>Potential:</u> SPWN

1. **California Thermal Plan.** The State Water Board adopted the Water Quality Control Plan for Control of Temperature in the Coastal and Interstate Waters and Enclosed Bays and Estuaries of California (Thermal Plan) on January 7, 1971 and amended this plan on September 18, 1975. This plan contains temperature objectives for coastal waters. This Order includes temperature objectives for coastal waters; therefore, the requirements of this Order implement the Thermal Plan.
2. **California Ocean Plan.** The State Water Board adopted the Water Quality Control Plan for Ocean Waters of California, California Ocean Plan (Ocean Plan) in 1972 and amended it in 1978, 1983, 1988, 1990, 1997, 2000, 2005, 2009, 2012, 2015, and 2019. The last amendment became effective on February 4, 2019. The Ocean Plan is applicable, in its entirety, to point source discharges to the ocean. The Ocean Plan identifies beneficial uses of ocean waters of the state to be protected as summarized below:

Table F-4. Ocean Plan Beneficial Uses

Discharge Point	Receiving Water	Beneficial Uses
Outfalls 001, 002, 003, and 004	Pacific Ocean	Industrial water supply; water contact and non-contact recreation, including aesthetic enjoyment; navigation; commercial and sport fishing; mariculture; preservation and enhancement of designated Areas of Special Biological Significance (ASBS); rare and endangered species; marine habitat; fish spawning and shellfish harvesting

To protect the beneficial uses, the Ocean Plan establishes water quality objectives and a program of implementation. Requirements of this Order implement the Ocean Plan.

4. **Santa Monica Bay Restoration Plan.** The Facility discharges to Santa Monica Bay, one of the most heavily used recreational areas in California. Recognizing the importance of the Bay as a national resource, the State of California and USEPA nominated Santa Monica Bay in the National Estuary Program, and Congress subsequently included Santa Monica Bay in the program. The USEPA, with support from the Santa Monica Bay Restoration Commission, developed the Bay Restoration Plan (BRP), which serves as a blueprint for restoring and enhancing the Bay. The Regional Water Board plays a lead role in the implementation of the BRP. Three of the proposed priorities of the BRP are reduction of pollutants of concern at the source (including municipal wastewater treatment plants), attainment of full secondary treatment at the Los Angeles County Sanitation Districts Joint Water Pollution Control Plant and at the City of Los Angeles' Hyperion Treatment Plant, and implementation of the mass emission approach for discharges of pollutants to the Bay.
5. **Alaska Rule.** On March 30, 2000, USEPA revised its regulation that specifies when new and revised state and tribal water quality standards become effective for CWA purposes (40 CFR § 131.21, 65 Federal Register 24641 (April 27, 2000)). Under the revised regulation (also known as the Alaska Rule), new and

revised standards submitted to USEPA after May 30, 2000, must be approved by USEPA before being used for CWA purposes. The final rule also provides that standards already in effect and submitted to USEPA by May 30, 2000, may be used for CWA purposes, whether or not approved by USEPA.

6. **Stringency of Requirements for Individual Pollutants.** This Order contains restrictions on individual pollutants that are no more stringent than required by the federal CWA and California Ocean Plan. Individual pollutant restrictions consist of technology-based effluent limitations (TBELs) and water quality-based effluent limitations (WQBELs). The TBELs consist of restrictions on BOD, TSS, pH, and percent removal of BOD and TSS, which implement the minimum applicable federal technology-based requirements. Table 4 of the 2019 Ocean Plan specifies additional effluent limitations on oil and grease, settleable solids, and turbidity.

WQBELs for total chlorine residual, chronic toxicity, and TCDD equivalents, have been scientifically derived to implement WQOs that protect beneficial uses. Both the beneficial uses and the WQOs have been approved pursuant to federal law and are the applicable federal water quality standards. All beneficial uses and WQOs contained in the Basin Plan and the Ocean Plan were approved under state law and submitted to and approved by USEPA prior to May 30, 2000. Any WQOs and beneficial uses submitted to USEPA prior to May 30, 2000, but not approved by USEPA before that date, are nonetheless “applicable water quality standards for purposes of the CWA” pursuant to 40 CFR § 131.21(c)(1). Collectively, this Order’s restrictions on individual pollutants are no more stringent than required to implement the requirements of the CWA.

7. **Antidegradation Policy.** Federal regulation 40 CFR section 131.12 requires that the state water quality standards include an antidegradation policy consistent with the federal policy. The State Water Board established California’s antidegradation policy in State Water Board Resolution 68-16 (“Statement of Policy with Respect to Maintaining High Quality of Waters in California”). Resolution 68-16 is deemed to incorporate the federal antidegradation policy where the federal policy applies under federal law. Resolution 68-16 requires that existing water quality be maintained unless degradation is justified based on specific findings. The Regional Water Board’s Basin Plan implements, and incorporates by reference, both the state and federal antidegradation policies. The permitted discharge must be consistent with the antidegradation provision of section 131.12 and State Water Board Resolution 68-16 and is described in further detail in Section IV.D.2. of the Fact Sheet.
8. **Anti-Backsliding Requirements.** Sections 402(o) and 303(d)(4) of the CWA and federal regulations at 40 CFR section 122.44(l) restrict backsliding in NPDES permits. These anti-backsliding provisions require that effluent limitations in a reissued permit must be as stringent as those in the previous permit, with some exceptions in which limitations may be relaxed. The applicability of these requirements to this Order is discussed in detail in Section IV.D.1. of this Fact Sheet.

- 9. Endangered Species Act (ESA) Requirements.** This Order does not authorize any act that results in the taking of a threatened or endangered species or any act that is now prohibited, or becomes prohibited in the future, under either the California ESA (Fish and Game Code, §§ 2050 to 2097) or the Federal ESA (16 U.S.C.A. §§ 1531 to 1544). This Order requires compliance with effluent limits, receiving water limits, and other requirements to protect the beneficial uses of waters of the state, including protecting rare and endangered species. The Discharger is responsible for meeting all requirements of the applicable ESA.
- 10. Monitoring and Reporting.** 40 CFR § 122.48 requires that all NPDES permits specify requirements for recording and reporting monitoring results. CWC sections 13267 and 13383 authorize the Regional Water Board to require technical and monitoring reports. The Monitoring and Reporting Program (MRP) establishes monitoring and reporting requirements to implement federal and state requirements. This monitoring program for the Royal Palms Public Restrooms consists of requirements to demonstrate compliance with the conditions of the NPDES permit and ensure compliance with State water quality standards. This MRP is provided in Attachment E.

Additionally, the accompanying monitoring and reporting program requires continued data collection and if monitoring data show reasonable potential for a constituent to cause or contribute to an exceedance of water quality standards, the Order may be reopened to incorporate WQBELs. Such an approach ensures that the discharge will adequately protect water quality standards for designated beneficial uses and conform with antidegradation policies and anti-backsliding provisions.

- 11. Standard and Special Provisions.** Standard Provisions, which apply to all NPDES permits in accordance with 40 CFR § 122.41, and additional conditions applicable to POTWs in accordance with 40 CFR § 122.42, are provided in Attachment D. The Regional Water Board and USEPA have also included in this Order Special Provisions applicable to the Discharger. The rationale for the Special Provisions contained in this Order is provided in the attached Fact Sheet.

D. Impaired Water Bodies on the CWA section 303(d) List

The State Water Board adopted the California 2014-16 Integrated Report on October 03, 2017. On April 06, 2018, the 2014-2016 Integrated Report Section 303(d) List of Impaired Waters was approved by USEPA. The CWA section 303(d) list can be viewed at the following link:

https://www.waterboards.ca.gov/water_issues/programs/tmdl/integrated2014_2016.shtml.

The Santa Monica Bay (offshore/nearshore) is listed as impaired on the 2014-2016 303(d) list for arsenic, DDT, mercury, PCBs, and trash. Total Maximum Daily Loads (TMDLs) for mercury and arsenic have not yet been scheduled for the Santa Monica Bay. There are currently TMDLs for DDT, PCBs, bacteria, and trash. The following beaches are also listed as impaired waterbodies with the associated pollutants/stressors: Point Vicente Beach for indicator bacteria; Royal Palms Beach for DDT and PCBs; White Point Beach for DDT, PCBs, and indicator bacteria.

1. **Santa Monica Bay Beaches Bacteria TMDLs.** The Regional Water Board has adopted two TMDLs to reduce bacteria in the Santa Monica Bay beaches during dry and wet weather. See the Basin Plan, Chapter 7, Section 7-4 “Santa Monica Bay Beaches Bacteria TMDL.”

In this TMDL, Waste Load Allocations (WLAs) are expressed as the number of sample days at a shoreline monitoring site that may exceed the single sample targets for total coliform, fecal coliform, and *Enterococcus* identified under “Numeric Target” in the TMDL. WLAs are expressed as allowable exceedance days because the bacterial density and frequency of single sample exceedances are the most relevant to public health protection at beaches. The final shoreline compliance point for the WLAs in the TMDLs is the wave wash where there is a freshwater outlet (i.e. publicly owned storm drain or natural creek) to the beach, or at ankle depth at beaches without a freshwater outlet.

Los Angeles County Sanitation Districts, as the owner of the JWPCP, is identified as a responsible agency in this TMDL. In this TMDL, JWPCP is assigned a WLA of zero days of exceedances of the single sample bacterial objectives during all three identified periods – summer dry weather, winter dry weather, and wet weather. JWPCP’s WLA of zero exceedance days requires that no discharge from its outfalls may cause or contribute to any exceedances of the single sample bacterial objectives at the shoreline compliance points identified in the TMDL. The shoreline monitoring data collected as part of the Los Angeles County MS4 Permit will be used to demonstrate compliance with the bacteria WLA assigned to discharges from JWPCP outfalls in this TMDL.

The Ocean Plan also contains numeric bacteria water quality objectives. These were updated in the most recent Ocean Plan amendment that became effective February 4, 2019. The 2019 Ocean Plan allows TMDL requirements, including WLAs, to remain in effect if the TMDL was adopted prior to the Ocean Plan’s effective date (2019 Ocean Plan Section III.D.1.b.). Since this TMDL falls under that category, effluent limitations and receiving water limitations consistent with the WLAs and numeric targets established under the TMDL are included in this Order.

2. **Santa Monica Bay Inshore and Offshore Debris TMDL.** The Regional Water Board adopted the *Santa Monica Bay Nearshore and Offshore Debris TMDL* on November 04, 2010, to eliminate trash in the Santa Monica Bay. The TMDL was revised and adopted by the Regional Water Board on March 14, 2019. The amendments are pending approval by the State Water Resources Control Board, OAL, and USEPA. Waste Load Allocations (WLAs) are only assigned to the Municipal Separate Storm Sewer System (MS4) permittees and thus are not applicable to this discharge.
3. **Santa Monica Bay TMDLs for DDTs and PCBs.** The USEPA adopted the *Santa Monica Bay Total Maximum Daily Loads for DDTs and PCBs* on March 26, 2012. Because this is a new facility, there is no historical data on DDTs and PCBs in the wastewater effluent. These constituents, however, continue to persist in the environment, particularly in ocean sediments. The concentrations of DDTs and PCBs in surface sediments have decreased substantially since the

1970s as much of the contamination has been carried away by currents, buried below the active sediment layer, or degraded as a result of natural processes. Despite the decreasing trend, the concentrations of DDT and PCBs in surface sediments today are at levels that can still accumulate in fish tissues at levels of concern for safe human health consumption. The Los Angeles County Sanitation Districts' JWPCP is identified as a POTW with specific WLAs. The wastewater effluent from the Facility to JWPCP's outfalls shall not cause an exceedance of the JWPCP WLAs of 15.8 ng/l DDTs or 0.351 ng/l PCBs or 8,717 g/yr DDT or 194 g/yr PCBs (Table 6-2 of the TMDL).

E. Other Plans, Policies and Regulations

1. **Secondary Treatment Regulations.** 40 CFR § 133 establishes the minimum levels of effluent quality to be achieved by secondary treatment. These limitations, established by USEPA, are incorporated into this Order, except where more stringent limitations are required by other applicable plans, policies, or regulations or to prevent backsliding.
2. **Sewage Sludge/Biosolids Requirements.** Section 405 of the CWA and implementing regulations at 40 CFR § 503 require that producers of sewage sludge/biosolids meet certain reporting, handling, and use or disposal requirements. The State has not been delegated the authority to implement this program; therefore, USEPA is the implementing agency.
3. **Watershed Management.** This Regional Water Board has been implementing a Watershed Management Approach (WMA) to address water quality protection in the Los Angeles Region. Information about watersheds in the region can be obtained at the Regional Water Board's website at http://www.waterboards.ca.gov/losangeles/water_issues/programs/regional_program/watershed/index.shtml. The WMA emphasizes cooperative relationships between regulatory agencies, the regulated community, environmental groups, and other stakeholders in the watershed to achieve the greatest environmental improvements with the resources available.

This Order and the accompanying Monitoring and Reporting Program (Attachment E) fosters implementation of this approach.

IV. RATIONALE FOR EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

The CWA requires point source dischargers to control the amount of conventional, non-conventional, and toxic pollutants that are discharged into the waters of the United States. The control of pollutants discharged is established through effluent limitations and other requirements in NPDES permits. There are two principal bases for effluent limitations in the Code of Federal Regulations: 40 CFR § 122.44(a) requires that permits include applicable technology-based limitations and standards; and 40 CFR § 122.44(d) requires that permits include water quality-based effluent limitations to attain and maintain applicable numeric and narrative water quality criteria to protect the beneficial uses of the receiving water and consistent with the assumptions and requirements of available WLAs in TMDLs. Where numeric water quality objectives have not been established, 40 CFR § 122.44(d) specifies that WQBELs may be established using USEPA recommended criteria established under CWA section 304(a); proposed State criteria or a State policy

interpreting narrative criteria supplemented with other relevant information; or an indicator parameter.

A. Discharge Prohibitions

This permit implements discharge prohibitions that are applicable under sections III.I.1.a, III.I.3.a, and III.I.4.a of the California Ocean Plan.

B. Technology-Based Effluent Limitations

1. Scope and Authority

Section 301(b) of the CWA and implementing US EPA permit regulations at 40 CFR section 122.44 require that permits include conditions meeting applicable technology-based requirements at a minimum, and any more stringent effluent limitations necessary to meet applicable water quality standards. The discharge authorized by this Order must meet minimum federal technology-based requirements based on Secondary Treatment Standards at 40 CFR part 133 and Best Professional Judgment (BPJ) in accordance with 40 CFR § 125.3.

Regulations promulgated in 40 CFR section 125.3(a)(1) require technology-based effluent limitations for municipal Dischargers to be placed in NPDES permits based on Secondary Treatment Standards or Equivalent to Secondary Treatment Standards.

The Federal Water Pollution Control Act Amendments of 1972 (PL 92-500) established the minimum performance requirements for POTWs [defined in section 304(d)(1)]. Section 301(b)(1)(B) of that Act requires that such treatment works must, as a minimum, meet effluent limitations based on secondary treatment as defined by the US EPA Administrator.

Based on this statutory requirement, US EPA developed secondary treatment regulations, which are specified in 40 CFR part 133. These technology-based regulations apply to all municipal wastewater treatment plants and identify the minimum level of effluent quality attainable by secondary treatment in terms of biochemical oxygen demand (BOD₅ 20°C), total suspended solids (TSS), and pH.

2. Applicable Technology-Based Effluent Limitations

Table F-5 provides a summary of technology-based effluent limitations specified in 40 CFR Part 133. The discharge from the Facility is expected to be intermittent and estimated to occur 35 times per year throughout all months of the year. Therefore, some weeks may not have discharge available to measure applicable parameters.

Table F-5. Summary of TBELs in 40 CFR §133.102

Parameter	Units	Average Monthly	Average Weekly	Instantaneous Minimum	Instantaneous Maximum
BOD ₅ 20°C	mg/L	30	45	45	
TSS	mg/L	30	45	45	
Removal Efficiency for BOD & TSS	%	85	---	---	
pH	Standard Units	---	---	6.0	9.0

Also, Table 4 of the Ocean Plan establishes the following technology-based effluent limitations, which are applicable to the Facility:

Table F-6. Summary of TBELs for POTWs established by the Ocean Plan

Parameter	Units	Average Monthly	Average Weekly	Instantaneous Minimum	Instantaneous Maximum
Oil & Grease	mg/L	25	40	---	75
TSS ¹	mg/L	---	---	---	---
Settleable Solids	mL/L	1.0	1.5	---	3.0
pH	Standard Units	---	---	6.0	9.0
Turbidity	NTU	75	100	---	225

The following table summarizes the technology-based effluent limitations for the discharge from the Facility:

Table F-7. Summary of TBELs

Parameter	Units	Average Monthly	Average Weekly	Instantaneous Minimum	Instantaneous Maximum
BOD ₅ 20°C	mg/L	30	45	---	---
BOD ₅ 20°C	lbs/day ²	0.13	0.19	---	---
TSS	mg/L	30	45	---	---
TSS	lbs/day ³	0.13	0.19	---	---
BOD ₅ 20°C & TSS	% removal	85	--	---	---
Oil & Grease	mg/L	25	40	---	75
Oil & Grease	lbs/day ³	0.10	0.17	---	0.31
Settleable Solids	mL/L	1.0	1.5	---	3.0
Turbidity	NTU	75	100	---	225
pH	Standard Units	---	---	6.0	9.0

C. Water Quality-Based Effluent Limitations (WQBELs)

1. Scope and Authority

CWA Section 301(b) and 40 CFR section 122.44(d) require that permits include limitations more stringent than applicable federal technology-based requirements where necessary to achieve applicable water quality standards.

Section 122.44(d)(1)(i) of 40 CFR requires that permits include effluent limitations for all pollutants that are or may be discharged at levels that have the reasonable potential to cause or contribute to an exceedance of a water quality standard, including numeric and narrative objectives within a standard. Where reasonable potential has been established for a pollutant, but there is no numeric criterion or objective for the pollutant, WQBELs must be established using: (1) US EPA criteria guidance under CWA section 304(a), supplemented where necessary by other relevant information; (2) an indicator parameter for the pollutant of concern;

¹ The Discharger shall, as a 30-day average, remove 75 % of TSS from the influent stream before discharging the wastewater to the ocean, except that the effluent limitation to be met shall not be lower than 60 mg/L.

² The mass emission rates are calculated using the plant design flow rate of 0.0005 mgd, and are calculated as follows: lbs/day = 0.00834 x Ce (effluent concentration, µg/L) x Q (flow rate, mgd).

or (3) a calculated numeric water quality criterion, such as a proposed state criterion or policy interpreting the state's narrative criterion, supplemented with other relevant information, as provided in section 122.44(d)(1)(vi).

The process for determining reasonable potential and calculating WQBELs when necessary is intended to protect the designated uses of the receiving water as specified in the Basin Plan, and achieve applicable water quality objectives and criteria that are contained in other state plans and policies, or any applicable water quality criteria contained in the Ocean Plan.

2. Applicable Beneficial Uses and Water Quality Criteria and Objectives

The Basin Plan, Ocean Plan and Thermal Plan establish the beneficial uses and Water Quality Objectives for ocean waters of the State. The beneficial uses of the receiving waters affected by the discharge have been described previously in this Fact Sheet. The Basin Plan contains Water Quality Objectives for bacteria for water bodies designated for water contact recreation, the Ocean Plan contains water quality objectives for bacterial, physical, chemical, and biological characteristics, and radioactivity, and the Thermal Plan contains water quality objectives for temperature. The Water Quality Objectives from the Thermal Plan, Ocean Plan and Basin Plan were incorporated into this Order as either final effluent limitations or receiving water limitations.

3. Expression of WQBELs

Pursuant to 40 CFR § 122.45(e), non-continuous discharges shall be particularly described and limited considering as appropriate frequency, total mass, maximum rate of pollutant discharge, and limitations of specified pollutants by mass, concentration, or other appropriate measure. The discharge from the Facility will be intermittent and, based on the application and other information provided by the Discharger, will occur approximately 35 times per year throughout all months of the year.

4. Determining the Need for WQBELs

The need for effluent limitations based on water quality objectives from Table 3 of the Ocean Plan was evaluated in accordance with the Reasonable Potential Analysis (RPA) procedures contained in Appendix VI of the Ocean Plan. This analysis determines whether pollutants discharged from the Facility cause, have the reasonable potential to cause, or contribute to an exceedance above Table 3 water quality objectives or narrative objectives as required by 40 CFR 122.44(d)(1)(iii). There is no historical data available from the treatment system at the Facility since it has not yet been installed. The Discharger provided estimates for effluent concentrations based on data from a similar treatment system owned by the Discharger at Dan Blocker Beach. Considering the limited data available, the RPA was conducted based on Best Professional Judgement using all information provided by the Discharger. Factors included discharge flow, type of effluent, location of discharge, and water quality objectives from Table 3 of the Ocean Plan.

The design flow for the treatment system is 500 gallons per day but the average daily flow is expected to be 70 gallons per day and not to exceed 160 gallons per

day. Discharge flow will be intermittent and occur about 35 times per year. The operating volume per pump cycle will be 75 gallons and treated wastewater will typically be pumped at a rate of 28 gallons per minute for roughly three to five minutes, occurring once per discharge day. The wastewater will only come from two restrooms and be discharged into a manhole connected to JWPCP discharge pipeline and mixed with secondary treated wastewater from JWPCP. The mixed wastewater will then be discharged via JWPCP's ocean outfall. Considering the effluent is domestic wastewater, focus of the RPA was on the ammonia objective in Table 3 of the Ocean Plan. Treated wastewater from the Facility undergoes two dilution events: the first is in JWPCP's pipeline at manhole MH J204 and the second is upon discharge into the ocean at the diffusers. Order R4-2017-0180 for JWPCP and Order R4-2018-0090 for Juanita Millender-McDonald Carson Regional Water Recycling Plant, which discharges brine into a JWPCP pipeline leading to the JWPCP ocean outfall, were used to determine appropriate dilution credits and calculation methodologies for the Facility's RPA analysis. The *Final Joint Water Pollution Control Plant Outfalls Initial Dilution Calculation Study* (final report) was submitted on May 31, 2016 and based on the results, Regional Water Board approved the continued use of existing dilution ratios of 166:1 for Discharge Points 001 and 002. These two discharge points are the only ones typically used, with Discharge Point 001 continuously discharging 65% of treated wastewater and Discharge Point 002 continuously discharging 35% of treated wastewater. Discharge Points 003 and 004 are used during times of heavy rainfall. Those outfalls have dilution ratios of 150:1 and 115:1, respectively.

Since the treated wastewater undergoes two mixing events, two dilution calculation steps are needed to determine if there is reasonable potential for the discharge to cause exceedances and thus require effluent limitations. Conservative calculations based on maximum discharge flows from the Facility and minimum discharge flow from JWPCP were used. Even with the most conservative calculations, the calculated ammonia effluent limitation was found to be very high due to the relatively low flow rates from the Facility and approved high dilution factors. Based on the Discharger's estimated pollutant discharge concentrations, it is not expected, with reasonable certainty, that the discharge from the Facility will ever approach the calculated effluent limitations suggesting reasonable potential to cause exceedances. Therefore, an ammonia effluent limitation is not included in this Order. Since there is no historical data for the Facility, Table 3 pollutants shall be monitored at least twice during the permit term (the first and last year of the permit term) during a discharge event in accordance with Appendix III of the Ocean Plan. As more data is gathered, the permit may be reopened if it is determined that the discharge may cause, has reasonable potential to cause, or contributes to an excursion above any Table 3 water quality objectives.

For temperature, the final effluent limitation is included in this Order to comply with the Thermal Plan, which requires elevated temperature waste be discharged to the open ocean away from the shoreline to achieve dispersion through the vertical water column. The Thermal plan also requires that elevated temperature waste be discharged a sufficient distance from areas of special biological significance (ASBS) to assure the maintenance of natural temperature in these

areas. The Facility discharges its disinfected secondary treated water to the JWPCP ocean outfall. The JWPCP's outfall consists of four discharge points and only two, Points 001 and 002, are routinely used to discharge over 7,000 feet from the shoreline at depths over 150 feet into the open ocean. In addition, the JWPCP's outfall is located approximately 20 miles away from the ASBS near Santa Catalina Island and Newport Beach.

In general, for constituents that have been determined to have no reasonable potential to cause, or contribute to, excursions of water quality objectives, no numerical limits are prescribed; instead a narrative statement to comply with all Ocean Plan requirements is provided and the Discharger is required to monitor for these constituents to gather data for use in RPAs for future Order renewals and/or updates.

The Regional Water Board developed WQBELs for DDTs and PCBs that have available waste load allocations (WLAs) under the *Santa Monica Bay Total Maximum Daily Loads for DDTs and PCBs* approved and adopted by the USEPA on March 26, 2012. Under the TMDL, the total loads for DDTs and PCBs from the Hyperion Treatment Plant, JWPCP, and West Basin's water recycling plants (including the Edward C. Little Water Reclamation Plant and the Carson WRP) shall not be more than 14,567 g/yr for DDT and 351 g/yr for PCBs. However, this facility is a new facility and has a 0 g/yr WLA for both DDTs and PCBs under the TMDL. A reasonable potential analysis was conducted to determine if a water quality-based effluent limitation is required and it was determined that the discharger does not have a reasonable potential to cause or to contribute to an exceedance of PCBs and DDTs. The Facility discharges to the JWPCP outfall but, based on the pollutant sources described in TMDL, it is not expected to contribute toward an exceedance of the WLA assigned to the JWPCP. Thus, no effluent limitations were established for DDTs and PCBs, however, this Order requires effluent from the Facility to not cause exceedance of the JWPCP WLA. This approach is also consistent with the implementation recommendations of this TMDL. To collect data, these pollutants shall be monitored at least twice during the permit term (the first and last year of the permit term).

5. WQBEL Calculations

From the Table 3 water quality objectives in the Ocean Plan, effluent limitations are calculated according to the following equation for all pollutants, except for acute toxicity (if applicable):

$$C_e = C_o + D_m(C_o - C_s)$$

where

C_e = the effluent concentration limit ($\mu\text{g/L}$)

C_o = the water quality objective to be met at the completion of initial dilution ($\mu\text{g/L}$)

C_s = background seawater concentration ($\mu\text{g/L}$) (see Table below)

D_m = minimum probable initial dilution expressed as parts seawater per part wastewater

Initial dilution is the process that results in the rapid and irreversible turbulent mixing of wastewater with ocean water around the point of discharge. For a submerged buoyant discharge, characteristic of most municipal and industrial wastes that are released from the submerged outfalls, the momentum of the discharge and its initial buoyancy act together to produce turbulent mixing. Initial dilution in this case is completed when the diluting wastewater ceases to rise in the water column and first begins to spread horizontally. As site-specific water quality data is not available, in accordance with Table 3 implementing procedures, C_s equals zero for all pollutants, except the following:

Table F-8. Pollutants with Background Seawater Concentrations

Constituent	Background Seawater Concentration (C_s)
Arsenic	3 µg/L
Copper	2 µg/L
Mercury	0.0005 µg/L
Silver	0.16 µg/L
Zinc	8 µg/L

For the mixing event in the JWPCP effluent pipeline, a conservative ammonia background concentration was determined based on the highest JWPCP effluent ammonia 24-hour composite sample (58.5 mg/L sampled on March 13, 2017) received during the latest permit period between January 2016 and October 2019. Ammonia that enters the pipeline through the brine discharge effluent from the Juanita Millender-McDonald Carson Regional Water Recycling Plant is considered to be minimal based on effluent data and small design flow compared to the JWPCP design flow. The D_m is based on observed waste flow characteristics, receiving water density structure, and the assumption that no currents of sufficient strength to influence the initial dilution process flow across the discharge structure. A 2016 dilution study confirmed that the existing initial dilution factors (D_m) can apply. For Discharge Points 001 and 002 the value is 166:1, for Discharge Point 003, 150:1 and for Discharge Point 004, 115:1.

The calculation is based on the same methodology used in Order R4-2018-0090 which includes a similar double dilution process. Treated wastewater from the Facility undergoes two mixing events before it is discharged to the Pacific Ocean. The first mixing event occurs when effluent from the Facility combines with effluent from JWPCP. The second mixing event occurs during the actual discharge to the Pacific Ocean through the diffuser on the ocean outfall. Because the effluent from the Facility undergoes two mixing events during its discharge, both mixing events must be considered when determining reasonable potential and developing an effluent limitation. The initial dilution ratio during ocean discharge is previously mentioned. The dilution with effluent from JWPCP is derived from a worst-case scenario of maximum flow output from the Facility and minimum output from JWPCP which would result in higher pollutant concentrations in the effluent. The lowest monthly flow average used for Order R4-2018-0090 was 249 MGD. The design flow for the Facility is 0.0005 MGD.

This results in a dilution ratio of 498,000:1. The process of calculating WQBELs during the RPA process is included below for one pollutant as an example. No WQBELs are included in this Order based on the RPA.

The calculation of WQBELs for ammonia is demonstrated below for Discharge Points 001 and 002:

Table F-9. Ocean Plan Water Quality Objectives (C_o) for Ammonia

Constituents	6-Month Median	Daily Maximum	Instantaneous Maximum	30 Day Average
Ammonia (expressed as nitrogen)	600 µg/L	2400 µg/L	6000 µg/L	---

Using the equation, $C_e = C_o + D_m(C_o - C_s)$, effluent limitations are calculated as follows before rounding to two significant digits. All calculations are based on discharge through Discharge Points 001 and 002. A dilution ratio (D_m) of 166:1 is applied for dilution into the ocean. A dilution ratio (D_m) of 498,000:1 is applied for dilution into JWPCP's effluent pipeline.

Total Ammonia Calculation

Second Mixing Event – Dilution into the Ocean

$$C_e = 600 \mu\text{g/L} + 166(600 \mu\text{g/L} - 0 \mu\text{g/L}) = 100,200 \mu\text{g/L} \text{ Average Monthly Limit}$$

$$C_e = 2400 \mu\text{g/L} + 166(2400 \mu\text{g/L} - 0 \mu\text{g/L}) = 400,800 \mu\text{g/L} \text{ Daily Maximum Limit}$$

$$C_e = 6000 \mu\text{g/L} + 166(6000 \mu\text{g/L} - 0 \mu\text{g/L}) = 1,002,000 \mu\text{g/L} \text{ Instantaneous maximum}$$

The C_e calculated based on dilution into the ocean becomes the objective (C_o) that needs to be met in the first mixing event at completion of dilution in the JWPCP effluent pipeline.

First Mixing Event – Dilution into JWPCP Effluent Pipeline

$$C_e = 100,200 \mu\text{g/L} + 498,000(100,200 \mu\text{g/L} - 58,500 \mu\text{g/L}) = 2.1 \times 10^{10} \mu\text{g/L} \text{ Average Monthly Limit}$$

$$C_e = 400,800 \mu\text{g/L} + 498,000(400,800 \mu\text{g/L} - 58,500 \mu\text{g/L}) = 2.0 \times 10^{11} \mu\text{g/L} \text{ Daily Maximum Limit}$$

$$C_e = 1,002,000 \mu\text{g/L} + 166(1,002,000 \mu\text{g/L} - 58,500 \mu\text{g/L}) = 5.0 \times 10^{11} \mu\text{g/L} \text{ Instantaneous Maximum Limit}$$

Since the calculated effluent limitation for ammonia is almost 10⁸ times higher than the Ocean Plan objective (see Table F-9), it is concluded that there is no reasonable potential for this discharge to cause exceedance of the water quality objective for ammonia in the receiving water. Thus, an ammonia effluent limitation has not been established for this discharge.

6. Whole Effluent Toxicity (WET)

Whole effluent toxicity (WET) testing protects the receiving water quality from the aggregate toxic effect of a mixture of pollutants in the effluent. An acute toxicity test is conducted over a short time period and measures mortality. A chronic toxicity test is conducted over a longer period of time and may measure mortality, reproduction, and growth. Chronic toxicity is a more stringent requirement than acute toxicity. A chemical at a low concentration can have chronic effects but no acute effects until it gets to the higher level.

The discharge from this facility is treated wastewater from a public restroom at the Royal Palms Beach Park located along the shoreline in Palos Verdes. The maximum flow of secondary effluent from the treatment facility is 500 gallons per day and it discharges into the JWPCP outfall with a monthly average flow rate of 239 MGD (from 2016 to 2019). Due to the high dilution in the outfall (239 to 0.5, or 478 to 1) and the additional dilution at the outfall diffuser (166:1), the ocean discharge from the outfall contains only a maximum of 0.0002 % of treated wastewater from the Royal Palms facility. Since the influent to the treatment facility is solely sanitary waste from a 2-stall restroom, the likelihood of the presence of any toxic pollutant is negligible. To verify that is the case, monitoring for priority pollutants is required on the influent and the effluent from the treatment facility. In consideration of the high dilution by the JWPCP's effluent and the ocean, and the nonexistence of toxic pollutant in the inflow and effluent, no chronic or acute toxicity final limitations have been established.

D. Final Effluent Limitation Considerations

1. Anti-Backsliding Requirements

Sections 402(o) and 303(d)(4) of the CWA and federal regulations at 40 CFR section 122.44(l) prohibit backsliding in NPDES permits. These anti-backsliding provisions require effluent limitations in a reissued permit to be as stringent as those in the previous permit, with some exceptions where limitations may be relaxed. Since this facility is new, anti-backsliding requirements are not applicable to this Order.

2. Antidegradation Policies

Federal regulations at 40 C.F.R. section 131.12 require that state water quality standards include an antidegradation policy consistent with federal requirements. The State Water Board established California's antidegradation policy in State Water Board Resolution 68-16 ("*Statement of Policy with Respect to Maintaining High Quality of Waters in California*"). Resolution 68-16 incorporates the federal antidegradation policy where the federal policy applies under federal law. The Los Angeles Water Board's Basin Plan implements, and incorporates by reference, both the State and federal antidegradation policies. The permitted discharge must be consistent with the antidegradation provision of 40 C.F.R. section 131.12 and State Water Board Resolution 68-16. Resolution 68-16 and 40 C.F.R. section 131.12 require that high quality waters be maintained unless degradation is justified based on specific findings.

In the context of the Order, a federal NPDES permit, compliance with the federal antidegradation policy requires consideration of the following. First, the Board must ensure that “existing instream uses and the level of water quality necessary to protect the existing uses” are maintained and protected.³ Second, if the baseline quality of a water body for a given constituent “exceeds levels necessary to support propagation of fish, shellfish, and wildlife and recreation in and on the water, that quality shall be maintained and protected” through the requirements of the Order unless the Board makes findings that (1) any lowering of the water quality is “necessary to accommodate important economic or social development in the area in which the waters are located”; (2) “water quality adequate to protect existing uses fully” is assured; and (3) “the highest statutory and regulatory requirements for all new and existing point sources and all cost-effective and reasonable best management practices for nonpoint source control” are achieved. The Order must also comply with any requirements of State Water Board Resolution No. 68-16 beyond those imposed through incorporation of the federal antidegradation policy.⁴ In particular, the Board must find that not only present, but also anticipated future uses of water are protected, and must ensure “best practicable treatment or control” of the discharges.⁵ The baseline quality considered in making the appropriate findings is the best quality of the water since 1968, the year of the adoption of Resolution No. 68-16, or a lower level if that lower level was allowed through a permitting action that was consistent with the federal and state antidegradation policies.⁶

³ 40 C.F.R. § 131.12(a)(1). This provision has been interpreted to mean that, “[i]f baseline water quality is equal to or less than the quality as defined by the water quality objective, water quality shall be maintained or improved to a level that achieves the objectives.” (State Water Board, Administrative Procedures Update, Antidegradation Policy Implementation for NPDES Permitting, 90-004 (APU 90-004), p. 4.) This provision is completely consistent with, and implemented by, the receiving water limitations provisions of the Order. The provision does not require immediate achievement of objectives where the water quality is impaired.

⁴ See State Water Board Order WQ 86-17 (*Fay*), p. 23, fn. 11.

⁵ State Water Board Resolution No. 68-16, Resolve 2. Best practicable treatment or control is not defined in Resolution No. 68-16; however, the State Water Board has evaluated what level of treatment or control is technically achievable using “best efforts.” (See State Water Board Orders WQ 81-5 (*City of Lompoc*), WQ 82-5 (*Chino Basin Municipal Water District*), WQ 90-6 (*Environmental Resources Protection Council*).) A Questions and Answers document on Resolution No. 68-16 by the State Water Board states as follows: “To evaluate the best practicable treatment or control method, the discharger should compare the proposed method to existing proven technology; evaluate performance data, e.g. through treatability studies; compare alternative methods of treatment or control; and/or consider the method currently used by the discharger or similarly situated dischargers . . . The costs of the treatment or control should also be considered . . .” (Questions and Answers, Resolution No. 68-16, State Water Board (Feb. 16, 1995), pp. 5-6.)

⁶ APU 90-004, p.4. The baseline for application of the federal antidegradation policy is 1975. For state antidegradation requirements, see also *Asociacion de Gente Unida por el Agua v. Central Valley Water Board* (2012) 210 Cal.App.4th 1255,1270. The baseline for the application of the state antidegradation policy is generally the highest water quality achieved since 1968. However, where a water quality objective for a particular constituent was adopted after 1968, the baseline for that constituent is the highest water quality achieved since the adoption of the objective. Resolution 68-16 requires a comparison of the existing quality to “the quality established in policies as of the date on which such policies become effective.” (Resolution 68-16, Resolve 1.)

The discharges permitted in the Order are consistent with the antidegradation provisions of 40 C.F.R. section 131.12 and Resolution 68-16 as set out in the Findings below. In making this determination, the Board has appropriately considered this permit as a whole (i.e., the totality of the provisions) when assessing the expected impact on water quality. The reasons supporting this finding are set forth below.

The beneficial uses of the Santa Monica Bay are provided in Tables F-3 and F-4. The Order protects both existing in stream uses and the level of water quality to protect those uses for the following reasons. First, the Order includes both narrative and numeric final effluent limitations and receiving water limitations to maintain the chemical, physical, and biological characteristics, and to protect the beneficial uses, of the receiving water. These requirements ensure that all water quality objectives are being met outside the zone of initial dilution, thereby maintaining the beneficial uses. Any degradation is minimal at best. The Ocean Plan allows for minimal degradation within the zone of initial dilution as long as the water quality objectives are maintained just outside the zone of initial dilution. The minimal degradation permitted by the Ocean Plan is consistent with the antidegradation policy because it maintains maximum benefit to the people of the State, it will not unreasonably affect the present and anticipated beneficial uses, and it will not result in water quality less than that prescribed in the Basin Plan and the Ocean Plan water quality objectives.

Second, Santa Monica Bay is impaired for bacteria, DDTs, PCBs, trash, arsenic, and mercury. Thus, any discharges from the Facility cannot contribute to further loading of these particular constituents.⁷ The Los Angeles Water Board finds that the discharge will not contribute to the impairment of Santa Monica Bay for bacteria, DDTs, PCBs, trash, arsenic and mercury for the following reasons. The discharge from this facility is UV disinfected secondary treated wastewater from a public restroom. The maximum flow of secondary effluent from the treatment facility is 500 gallons per day and it discharges into the JWPCP outfall, which provides dilution (478 to 1) in the JWPCP's pipeline at manhole MH J204 and the additional dilution at the outfall diffuser (166 to 1). The volume contributed by this facility to the outfall is only a maximum of 0.0002% of ocean discharge from the JWPCP. Since the influent to this facility is solely sanitary waste from a 2-stall restroom, the likelihood of the presence of any toxic pollutants, including DDTs, PCBs, arsenic and mercury, are negligible. In addition, the secondary treated effluent is UV disinfected before going into the dilution processes, it is expected to not contribute toward exceeding bacteria water quality objectives in the Ocean Plan. As such, there is no reasonable potential the effluent will cause excursions above water quality objectives.

With respect to the Santa Monica Bay TMDL for DDTs and PCBs, in particular, the Los Angeles Water Board finds that any discharges from the Facility will not contribute to the further loading of PCBs and DDTs. The TMDL notes that targets are set "for water quality and sediment contaminant concentrations to

⁷ The 2014 – 2016 303(d) list, approved by USEPA on April 6, 2018, shows that Santa Monica Bay is impaired for DDT, PCBs, trash, arsenic, and mercury. The 2012 303(d) list included "fish consumption advisory", specifying it was due to DDT and PCBs.

meet fish tissue concentration targets that would allow safe human fish consumption” (see page iv of the TMDL). This is also noted in the December 2015 State of the Bay report by the Santa Monica Bay Restoration Commission⁸, which states, “the EPA’s TMDL for Santa Monica Bay is focused on PCB and DDT contamination of fish, and establishes concentration targets for both tissue and sediment that are intended to minimize the health risk of consuming seafood. Ongoing inputs of these legacy contaminants are very small; most fish contamination is due to existing sediment contamination, a result of legacy discharges of contamination from wastewater outfalls and other sources. Reduction in fish contamination is therefore dependent on natural processes of contaminant degradation and burial by sedimentation, which are predicted to take more than 30 years to achieve TMDL targets.” The TMDL also notes that, “USEPA has determined that a TMDL is not required for the Santa Monica Bay sediment toxicity listing. This determination is based on lack of toxicity in regional surveys (1994, 1998, 2003, 2008)” (refer to page 3 of the TMDL). This Order prohibits effluent from the Facility from causing exceedance of the JWPCP WLAs for DDTs and PCBs. To ensure that there will be no degradation, monitoring of Table 3 pollutants in the 2019 Ocean Plan, except toxicity, is required at least twice during this permit term.

The impairment due to trash is being addressed by the *Santa Monica Bay Nearshore and Offshore Debris TMDL*⁹. For point sources, the debris TMDL is implemented through the Los Angeles County MS4 and Ventura County MS4 permits (i.e. no Waste Load allocation is included for the Facility or JWPCP). In addition, this Order includes a narrative limitation that discharge from the Facility must not result in trash in the ocean waters (see section V.A.3.e.). Thus, there will be no degradation for trash.

There is currently no TMDL scheduled for arsenic and mercury, but the waters are impaired for these constituents. The Regional Water Board finds that the discharge will not lower water quality with respect to these pollutants due to low, intermittent flow rates and high dilutions. If a TMDL is developed for arsenic and mercury, as prescribed in the 303(d) list, the Order may be reopened to include any WLA applicable to the Facility. If new information demonstrates that the discharge has reasonable potential to cause or contribute to an exceedance of a WQO, the Order may be reopened to include WQBELs.

3. Stringency of Requirements for Individual Pollutants

This Order contains both technology-based and water quality-based effluent limitations and/or monitoring requirements for individual pollutants. The technology-based effluent limitations consist of restrictions on BOD, TSS, settleable solids, turbidity, oil and grease, and pH. Restrictions on BOD, TSS, settleable solids, turbidity, oil and grease, and pH are discussed in section IV.B.

⁸ Wang, G., and L. Protopapadakis (2015). State of the Bay Report. “Executive Summary: At a Glance.” *Urban Coast* 5(1): ES1-6.

⁹ *The Santa Monica Bay Nearshore and Offshore Debris TMDL*. California Regional Water Quality Control Board, Los Angeles Region. October 25, 2010.

of the Fact Sheet. This Order's technology-based pollutant restrictions implement the minimum, applicable federal technology-based requirements.

Water quality-based effluent limitations have been scientifically derived to implement water quality objectives that protect beneficial uses. Both the beneficial uses and the water quality objectives have been approved pursuant to federal law and are the applicable federal water quality standards. The scientific procedures for calculating the individual water quality-based effluent limitations are based on the Ocean Plan, which was approved by USEPA on February 14, 2006 and has since been further amended. Most beneficial uses and water quality objectives contained in the Basin Plan were approved under state law and submitted to and approved by USEPA prior to May 30, 2000. Any water quality objectives and beneficial uses submitted to USEPA prior to May 30, 2000, but not approved by USEPA before that date, are nonetheless "applicable water quality standards for purposes of the CWA" pursuant to 40 CFR section 131.21(c)(1). The remaining water quality objectives and beneficial uses implemented by this Order were approved by USEPA and are applicable water quality standards pursuant to section 131.21(c)(2). Collectively, this Order's restrictions on individual pollutants are no more stringent than required to implement the requirements of the CWA.

Table F-10. Summary of Final Effluent Limitations for Monitoring Point EFF-001¹⁰

Parameter	Units	Average Monthly	Average Weekly	Instantaneous Minimum	Instantaneous Maximum	Basis
BOD ₅ 20°C	mg/L	30	45	---	---	Secondary treatment standard
BOD ₅ 20°C	lbs/day	0.13	0.19	---	---	Secondary treatment standard
Removal Efficiency for BOD ₅ 20°C	%	85	---	---	---	Secondary treatment standard
TSS	mg/L	30	45	---	---	Secondary treatment standard
TSS	lbs/day	0.13	0.19	---	---	Secondary treatment standard
Removal Efficiency for TSS	%	85	---	---	---	Secondary treatment standard
pH	Standard Units	---	---	6.0	9.0	Secondary treatment standard

¹⁰ The mass emission rates are calculated using the plant design flow rate of 0.0005 mgd and are calculated as follows: lbs/day = 0.00834 x Ce (effluent concentration, µg/L) x Q (flow rate, mgd).

Oil and Grease	mg/L	25	40	---	75	Ocean Plan
Oil and Grease	lbs/day	0.10	0.17	---	0.31	Ocean Plan
Settleable Solids	mL/L	1.0	1.5	---	3.0	Ocean Plan
Turbidity	NTU	75	100	---	225	Ocean Plan

E. Interim Effluent Limitations - NOT APPLICABLE

F. Land Discharge Specifications - NOT APPLICABLE

G. Recycling Specifications - NOT APPLICABLE

V. RATIONALE FOR RECEIVING WATER LIMITATIONS

A. Surface Water

The Thermal Plan, Ocean Plan and Basin Plan contain numeric and narrative water quality standards applicable to surface waters within the Los Angeles Region. Water quality objectives include a policy to maintain the high-quality waters pursuant to federal regulations (40 CFR § 131.12) and State Water Board Resolution No. 68-16. Receiving water limitations applicable to the discharge points 001, 002, 003, and 004 are included in this Order. Monitoring to determine compliance with these receiving water limitations is conducted under the MRP for Order R4-2017-0180 for LACSD's JWPCP.

B. Groundwater - NOT APPLICABLE

VI. RATIONALE FOR PROVISIONS

A. Standard Provisions

Standard Provisions, which apply to all NPDES permits in accordance with 40 CFR section 122.41, and additional conditions applicable to specified categories of permits in accordance with 40 CFR section 122.42, are provided in Attachment D to the order.

Sections 122.41(a)(1) and (b) through (n) of 40 CFR establish conditions that apply to all State-issued NPDES permits. These conditions must be incorporated into the permits either expressly or by reference. If incorporated by reference, a specific citation to the regulations must be included in the Order. Section 123.25(a)(12) allows the state to omit or modify conditions to impose more stringent requirements. In accordance with 40 CFR section 123.25, this Order omits federal conditions that address enforcement authority specified in 40 CFR sections 122.41(j)(5) and (k)(2) because the enforcement authority under the Water Code is more stringent. In lieu of these conditions, this Order incorporates by reference Water Code section 13387(e).

B. Special Provisions

1. Reopener Provisions

These provisions are based on 40 CFR § 123.25. The Regional Water Board may reopen the Order to modify conditions and requirements. Causes for modifications can include, but are not limited to, the promulgation of new

regulations, modification in biosolid use or disposal practices, or adoption of new regulations by the State Water Board or Regional Water Board, including revisions to the Ocean Plan and Basin Plan.

2. Special Studies and Additional Monitoring Requirements

- a. **Treatment Plant Capacity.** The treatment plant capacity study required by this Order shall serve as an indicator for the Regional Water Board regarding the Facility's increasing hydraulic capacity and growth in the service area.

3. Best Management Practices and Pollution Prevention

a. **Spill Clean-Up Contingency Plan (SCCP)**

The POTW is located on Royal Palms Beach and clean up protocols for spills to beach sands should be developed and updated as needed by the Discharger. The Discharger shall ensure that the up-to-date SCCP is readily available to the sewage system personnel at all times and that the sewage personnel are familiar with it.

4. Construction, Operation, and Maintenance Specifications

a. **Climate Change Effects Vulnerability Assessment and Mitigation Plan**

On March 7, 2017, the State Water Board adopted a resolution in recognition of the challenges posed by climate change that requires a proactive approach to climate change in all State Water Board actions, including drinking water regulation, water quality protection, and financial assistance (Resolution No. 2017-0012). The resolution lays the foundation for a response to climate change that is integrated into all State Water Board actions, by giving direction to the State Water Board divisions and encouraging coordination with the Regional Water Boards. In response to the State Water Board's Resolution (No. 2017-0012), the Los Angeles Water Board adopted "A Resolution to Prioritize Actions to Adapt to and Mitigate the Impacts of Climate Change on the Los Angeles Region's Water Resources and Associated Beneficial Uses" (Resolution No. R18-004) on May 10, 2018. The resolution summarizes the steps taken so far to address the impacts of climate change within the Los Angeles Water Board's programs and lists a series of steps to move forward. These include the identification of potential regulatory adaptation and mitigation measures that could be implemented on a short-term and long-term basis by each of the Los Angeles Water Board's programs to take into account, and assist in mitigating where possible, the effects of climate change on water resources and associated beneficial uses. This Order contains provisions to require planning and actions to address climate change impacts in accordance with both the State and Regional Water Boards' resolutions.

The Permittee shall develop a Climate Change Effects Vulnerability Assessment and Management Plan (Climate Change Plan) and submit the Climate Change Plan to the Regional Water Board for the Executive Officer's approval no later than 12 months after adoption of this Order. The Climate Change Plan shall include an assessment of short and long term vulnerabilities of the facility and operations as well as plans to address

vulnerabilities of collection systems, facilities, treatment systems, and outfalls for predicted impacts in order to ensure that facility operations are not disrupted, compliance with permit conditions is achieved, and receiving waters are not adversely impacted by discharges. Control measures shall include, but are not limited to, emergency procedures, contingency plans, alarm/notification systems, training, backup power and equipment, and the need for planned mitigations to ameliorate climate-induced impacts including, but not limited to, changing influent and receiving water quality and conditions, as well as the impact of rising sea level (where applicable), wildfires, storm surges and back-to-back severe storms that are expected to become more frequent.

b. Alternate Power Source

This provision is based on the requirements of 40 CFR §122.41(e).

c. Operation and Maintenance Manual

This provision is based on the requirements of 40 CFR §122.41(e).

5. Special Provisions for Publicly Owned Treatment Works (POTWs)

- a. Sanitary Sewer Overflows (SSO).** The Discharger's collection system is part of the POTW that is subject to this permit. As such, pursuant to federal regulations, the Discharger must properly operate and maintain its collection system (40 CFR §122.41(e)), report any non-compliance (40 CFR § 122.41(l)(6) and (7)), and mitigate any discharge from the collection system in violation of this NPDES permit (40 CFR§ 122.41(d)).

The requirements contained in this Order in sections VI.C.3.b (SCCP), VI.C.4 (Construction, Operation and Maintenance Specifications), and VI.C.7 (Spill Reporting Requirements) are intended to be consistent with the requirements of the SSO WDR.

- b. Sludge (Biosolids) Requirements.** To implement CWA section 405(d), on February 19, 1993, USEPA promulgated 40 CFR § 503 to regulate the use and disposal of municipal sewage sludge. This regulation was amended on September 3, 1999. The regulation requires that producers of sewage sludge meet certain reporting, handling, and disposal requirements. It is the responsibility of the Discharger to comply with said regulations that are enforceable by USEPA, because California has not been delegated the authority to implement this program.
- c. Collection System.** This Order (see section VI.C.5.b.) incorporates federal requirements that the Discharger ensure all parts of the treatment system, including the collection system, do not cause discharges that likely could affect public health or the environment.
- d. Spill Reporting Requirements.** This Order established a reporting protocol for how different types of spills, overflows, and bypasses of raw or partially treated sewage from the POTW shall be reported to regulatory agencies. In addition, since the effluent from the Facility connects to JWPCP's pipeline,

LACSD should be properly notified of spills that could affect their sewer system, outfall system, and receiving water monitoring results.

6. Compliance Schedules - NOT APPLICABLE

VII. RATIONALE FOR MONITORING AND REPORTING REQUIREMENTS

CWA section 308 and 40 CFR sections 122.41(h), (j)-(l), 122.44(i), and 122.48 require that all NPDES permits specify monitoring and reporting requirements. Water Code sections 13267 and 13383 also authorize the Regional Water Board to establish monitoring, inspection, entry, reporting, and recordkeeping requirements. The Monitoring and Reporting Program (MRP), Attachment E of this Order establishes monitoring, reporting, and recordkeeping requirements that implement federal and state requirements. The following provides the rationale for the monitoring and reporting requirements contained in the MRP for this facility.

A. Influent Monitoring

Influent monitoring is required to determine compliance with NPDES permit conditions and assess treatment plant performance.

B. Effluent Monitoring

The Discharger is required to conduct monitoring of the permitted discharge to evaluate compliance with permit limitations and conditions. Monitoring requirements are specified in the Monitoring and Reporting Program (Attachment E). This Order requires compliance with the Monitoring and Reporting Program, and is based on 40 CFR § 122.48, 122.44(i), 122.41(j), 122.62, 122.63, and 124.5. The Monitoring and Reporting Program is a standard requirement in NPDES permits (including this Order) issued by the Regional Water Board or USEPA. In addition to containing definitions of terms, it specifies general sampling/analytical protocols and the requirements of reporting spills, violation, and routine monitoring data in accordance with NPDES regulations, the California Water Code, and Regional Water Board and USEPA policies. The Monitoring and Reporting Program also contains a sampling program specific for the Discharger's wastewater treatment plant. It defines the sampling stations and frequency, pollutants to be monitored, and additional reporting requirements.

Pollutants to be monitored include all pollutants for which effluent limitations are specified. The Ocean Plan also requires periodic monitoring of chemical constituents specified in Table 3 and Table 4 of the 2019 Ocean Plan but gives the Regional Water Board some discretion regarding monitoring based on Best Professional Judgement. Effluent limitations are not included in this Order; however, there is no historical data to establish monitoring history. Effluent monitoring is required for constituents included in Table 3 of the Ocean Plan to generate data for the Facility which will provide more effluent information and the basis, if needed, to reopen the permit to modify requirements to protect water quality objectives. The monitoring of two discharge events during the permit term (the first and last year) will suffice to establish historical data and determine reasonable potential since the discharge from the Facility is intermittent, a relatively low flow, and only consists of domestic waste. Since the treatment system does not include significant ammonia removal, quarterly monitoring of ammonia will be necessary to provide more data on treatment system

performance and effluent concentrations. Quarterly monitoring for total organic carbon, nitrate nitrogen, organic nitrogen, and total phosphorus are included to generate data to help determine the potential of the discharge to contribute to objectionable aquatic growths or degrade indigenous biota, which is a narrative water quality objective in the Ocean Plan. Quarterly monitoring will show if there are seasonal variations throughout the year.

Table F-11. Effluent Monitoring Frequency¹¹

Parameter	Monitoring Frequency
Flow	Continuous
BOD ₅ 20°C	Weekly
Total Suspended Solids	Weekly
pH	Weekly
Oil and Grease	Weekly
Temperature	Monthly
Settleable Solids	Monthly
Dissolved Oxygen	Monthly
Turbidity	Monthly
Total Organic Carbon	Quarterly
Nitrate Nitrogen	Quarterly
Organic Nitrogen	Quarterly
Total Phosphorus	Quarterly
Arsenic	Twice
Cadmium	Twice
Chromium (VI)	Twice
Copper	Twice
Lead	Twice
Mercury	Twice
Nickel	Twice
Selenium	Twice
Silver	Twice
Zinc	Twice
Cyanide	Twice
Total Chlorine Residual	Twice
Ammonia Nitrogen	Quarterly
Toxicity, Chronic	Twice
Phenolic Compounds (non-chlorinated)	Twice
Phenolic Compounds (chlorinated)	Twice

¹¹ All pollutants with frequency of twice will be monitored during the first and the last permit term.

Parameter	Monitoring Frequency
Endosulfan	Twice
Endrin	Twice
HCH	Twice
Radioactivity (including gross alpha, gross beta, combined radium-226 & radium-228, tritium, strontium-90 and uranium)	Twice
Acrolein	Twice
Antimony	Twice
Bis(2-chloroethoxy) methane	Twice
Bis(2-chloroisopropyl) ether	Twice
Chlorobenzene	Twice
Chromium (III)	Twice
Di-n-butyl-phthalate	Twice
Dichlorobenzenes	Twice
Diethyl phthalate	Twice
Dimethyl phthalate	Twice
4,6-dinitro-2-methylphenol	Twice
2,4-Dinitrophenol	Twice
Ethylbenzene	Twice
Fluoranthene	Twice
Hexachlorocyclopentadiene	Twice
Nitrobenzene	Twice
Thallium	Twice
Toluene	Twice
Tributyltin	Twice
1,1,1-Trichloroethane	Twice
Acrylonitrile	Twice
Aldrin	Twice
Benzene	Twice
Benzidine	Twice
Beryllium	Twice
Bis(2-chloroethyl) ether	Twice
Bis(2-ethylhexyl) phthalate	Twice
Carbon tetrachloride	Twice

Parameter	Monitoring Frequency
Chlordane	Twice
Chlorodibromomethane	Twice
Chloroform	Twice
DDT	Twice
1,4-dichlorobenzene	Twice
3,3'-dichlorobenzidine	Twice
1,2-Dichloroethane	Twice
1,1-Dichloroethylene	Twice
Dichlorobromomethane	Twice
Dichloromethane	Twice
1,3-Dichloropropene	Twice
Dieldrin	Twice
2,4-dinitrotoluene	Twice
1,2-diphenylhydrazine	Twice
Halomethanes	Twice
Heptachlor	Twice
Heptachlor epoxide	Twice
Hexachlorobenzene	Twice
Hexachlorobutadiene	Twice
Hexachloroethane	Twice
Isophorone	Twice
N-Nitrosodimethylamine	Twice
N-Nitrosodi-N-propylamine	Twice
N-Nitrosodiphenylamine	Twice
PAHs	Twice
PCBs as Aroclors	Twice
TCDD Equivalents	Twice
1,1,2,2-Tetrachloroethane	Twice
Tetrachloroethylene	Twice
Toxaphene	Twice
Trichloroethylene	Twice
1,1,2-Trichloroethane	Twice
2,4,6-Trichlorophenol	Twice
Vinyl chloride	Twice

C. Whole Effluent Toxicity Testing Requirements

The rationale for WET has been discussed extensively in Section IV.C.6. of this Fact Sheet.

D. Receiving Water Monitoring

1. Surface Water

Receiving water monitoring is currently being conducted by LACSD to ensure the combined discharge from JWPCP (CI-1758) and the Facility are in compliance with the receiving water limitations and to characterize the quality of the receiving water. Receiving water monitoring requirements are based on the Ocean Plan and the Basin Plan.

Ocean-specific Regional Monitoring requirements may be required by the Discharger if determined by the Executive Officer.

2. Groundwater - NOT APPLICABLE

E. Other Monitoring Requirements – NOT APPLICABLE

VIII. PUBLIC PARTICIPATION

The Regional Water Board has considered the issuance of WDRs that will serve as an NPDES permit for the Royal Palms Public Restroom. As a step in the WDR adoption process, the Regional Water Board staff has developed tentative WDRs and has encouraged public participation in the WDR adoption process.

A. Notification of Interested Parties

The Regional Water Board notified the Discharger and interested agencies and persons of its intent to prescribe WDRs for the discharge and provided an opportunity to submit written comments and recommendations. Notification was provided through the following:

The public had access to the agenda and any changes in dates and locations through the Regional Water Board's website at: <http://www.waterboards.ca.gov/losangeles/>.

B. Written Comments

Interested persons were invited to submit written comments concerning tentative WDRs as provided through the notification process. Comments were due either in person or by mail to the Executive Office at the Regional Water Board at the address on the cover page of this Order or by email submitted to danielle.robinson@waterboards.ca.gov.

To be fully responded to by staff and considered by the Regional Water Board, the written comments were due at the Regional Water Board office by 5:00 p.m. on March 11, 2020.

C. Public Hearing

The Regional Water Board held a public hearing on the tentative WDRs during its regular Board meeting on the following date and time and at the following location:

Date: April 16, 2020
Time: 9:00 a.m.
Location: Video and Teleconference Meeting Only
(No Physical Meeting Location)

Interested persons were invited to attend. No testimony was given at the meeting.

D. Reconsideration of Waste Discharge Requirements

Any person aggrieved by this action of the Regional Water Board may petition the State Water Board to review the action in accordance with Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Board must receive the petition by 5:00 p.m., within 30 calendar days of the date of adoption of this Order at the following address, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Board by 5:00 p.m. on the next business day:

State Water Resources Control Board
Office of Chief Counsel
P.O. Box 100, 1001 I Street
Sacramento, CA 95812-0100

Or by email at waterqualitypetitions@waterboards.ca.gov

For instructions on how to file a petition for review, see:

http://www.waterboards.ca.gov/public_notices/petitions/water_quality/wqpetition_instr.shtml

E. Information and Copying

The Report of Waste Discharge, other supporting documents, and comments received are on file and may be inspected at the address above at any time between 8:30 a.m. and 4:45 p.m., Monday through Friday. Copying of documents may be arranged through the Regional Water Board by calling (213) 576-6600.

F. Register of Interested Persons

Any person interested in being placed on the mailing list for information regarding the WDRs and NPDES permit should contact the Regional Water Board, reference this facility, and provide a name, address, and phone number.

G. Additional Information

Requests for additional information or questions regarding this order should be directed to Danielle Robinson at (213) 576-6656.